



CHAPTER xlv

An Act to confer further powers on the Nottinghamshire County Council and local authorities in the county of Nottingham in relation to lands and highways and the local government improvement health and finances of the county to include provisions with respect to massage establishments hairdressers' and barbers' premises and places of entertainment to make further provision for the superannuation of employees to authorise the supply of heat in certain areas in the county and for other purposes. [1st August 1951.]

WHEREAS it is expedient that further and better provision should be made with reference to lands roads and highways and for the local government improvement health and finances of the administrative county of Nottingham and that the powers of the county council of that administrative county (hereinafter referred to as "the Council") and of the local authorities within the county should be enlarged and extended as by this Act provided :

And whereas it is expedient to make further provision for the superannuation of officers and servants of the Council and of persons who contribute to the superannuation fund of the Council and to amend the enactments relating thereto :

And whereas it is expedient to empower the borough councils in the county to supply heat by means of hot water or steam within their respective boroughs :

And whereas it is expedient to confer further powers on the Council and local authorities with reference to massage establishments hairdressers and barbers and places used for certain classes of public entertainment :

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24 Geo. 5. c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Nottinghamshire County Council Act 1951.

Division of
Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Highways.

Part IV.—Open spaces camps and pleasure grounds.

Part V.—Police.

Part VI.—Public health.

Part VII.—Establishments for massage or special treatment.

Part VIII.—Weights and measures.

Part IX.—Superannuation pensions etc.

Part X.—Finance.

Part XI.—Miscellaneous.

Part XII.—Supply of heat by borough councils.

Part XIII.—General.

Incorporation
of Lands
Clauses Acts.
8 & 9 Vict.
c. 18.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 (so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation.

26 Geo. 5. &
1 Edw. 8. c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 220 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires—

PART I
—cont.

“ Act of 1933 ” means the Local Government Act 1933 ;

“ Act of 1936 ” means the Public Health Act 1936 ;

“ Act of 1947 ” means the Town and Country Planning Act 1947 ; 10 & 11 Geo. 6.
c. 51.

“ Act of 1950 ” means the Public Utilities Street Works Act 1950 ; 14 Geo. 6.
c. 39.

“ Area boards ” means the East Midlands Gas Board the East Midlands Electricity Board and the Yorkshire Electricity Board ;

“ Area board ” means any one of the area boards ;

“ Authorised security ” means any mortgage stock bond or other security which the Council are for the time being authorised to grant create or issue or upon or by means of which the Council are for the time being authorised to raise money ;

“ Burial authority ” has the same meaning as in section 11 of the Burial Act 1900 ;

63 & 64 Vict.
c. 15.

“ Claimed road ” means a county road in respect of which a local authority have claimed under section 32 of the Local Government Act 1929 to exercise and are exercising the functions of maintenance and repair ; 19 & 20 Geo. 5.
c. 17.

“ Coal industry activities ” has the same meaning as in section 63 of the Coal Industry Nationalisation Act 1946 ; 9 & 10 Geo. 6.
c. 59.

“ Commission ” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ; 10 & 11 Geo. 6.
c. 49.

“ Contravention ” includes a failure to comply and “ contra-vene ” shall be construed accordingly ;

“ Council ” means the county council of the administrative county of Nottingham ;

“ County ” means the administrative county of Nottingham ;

“ County fund ” means the county fund of the Council ;

“ County road ” has the same meaning as in Part III of the Local Government Act 1929 ;

“ Daily penalty ” means a penalty for each day on which an offence is continued after conviction thereof ;

PART I
—cont.

“ District ” means a borough or an urban or rural district in the county ;

“ Enactment ” includes this Act and any general or local Act order byelaw or regulation for the time being in force within the county or within a district ;

“ Financial year ” means the period of twelve months commencing on the first day of April in any year and ending on the thirty-first day of March in the next following year ;

“ Gas board ” means the East Midlands Gas Board ;

“ General rate fund ” and “ general rate ” mean respectively the general rate fund and the general rate of a district ;

“ Highway authority ” means—

(a) in the case of a trunk road the Minister of Transport or with his consent the authority who are for the time being acting as his agent under the Trunk Roads Acts 1936 and 1946 with respect to that trunk road ;

(b) in the case of a county road except a claimed road and in the case of any other road for the time being maintained by the Council the Council ; and

(c) in the case of any other highway (not being a highway repairable by the commission) the local authority for the district in which the highway is situate ;

“ Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 by the Lands Tribunal Act 1949 and by this Act ;

“ Local authority ” means the council of a district ;

“ Minister ” means the Minister of Local Government and Planning ;

“ Parish council ” means the parish council of a rural parish in the county or where there is no parish council the parish meeting of such parish ;

“ Rural district council ” means the council of a rural district in the county ;

“ Standing joint committee ” means the standing joint committee of the Nottingham quarter sessions and the Council appointed under section 30 of the Local Government Act 1888 ;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in

1 Edw. 8. &
1 Geo. 6. c. 5.
9 & 10 Geo. 6.
c. 30.

9 & 10 Geo. 5.
c. 57.
12 13 & 14
Geo. 6. c. 42.

51 & 52 Vict.
c. 41.

respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any enactment or sanction of any government department made or given or to be made or given by authority of any enactment but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Act of 1933 ;

“ Statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by the council of any county or county district or by any authority being a local authority as defined by section 34 of the Local Loans Act 1875 but does not include any annuities rentcharges or securities transferable by delivery ;

“ Statutory undertakers ” means any company body or person authorised by any Act of Parliament or Order having the force of an Act to supply electricity gas or water ;

“ Street ” and “ road ” have the meanings assigned to the word “ street ” in the Act of 1936 ;

“ Trolley vehicle ” has the same meaning as in section 121 of the Road Traffic Act 1930 ;

20 & 21 Geo. 5.
c. 43.

“ Urban district ” means a borough or an urban district in the county ;

“ Verge ” includes lands situate between two carriageways and any part of a street which is not a carriageway footway or cycle track.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

5. The sections of this Act of which the numbers and marginal notes are set out in the First and Second Schedules to this Act shall not be exercisable by or apply to a rural district council unless and until in the case of the sections set out in the said First Schedule they have adopted those sections in accordance with section 6 (Adoption by rural district councils of certain provisions of Act) of this Act or in the case of the sections set out in the said Second Schedule the sections have been applied to them pursuant to section 7 (Application of certain provisions of Act to rural district councils) of this Act.

Certain provisions of Act not to operate in rural districts until adopted or applied.

PART I
—cont.

Adoption by
rural district
councils of
certain
provisions of
Act.

6.—(1) A rural district council may adopt in respect of their district or a part thereof all or any of the sections of this Act of which the numbers and marginal notes are set out in Part I of the First Schedule to this Act.

(2) The adoption by a rural district council of all or any of the said sections of this Act shall be by a resolution of that council passed in accordance with the provisions contained in Part II of the said First Schedule and upon a resolution of adoption coming into operation the provisions of this Act to which it extends shall apply to the district of that council or to the part thereof to which the said resolution relates.

Application
of certain
provisions of
Act to rural
district
councils.

7.—(1) The Minister may on the application of a rural district council by order to be published in the London Gazette or in such other manner as he may direct apply to the district of that council or to any part thereof any of the sections of this Act of which the numbers and marginal notes are set out in the Second Schedule to this Act and upon such order coming into force the provisions of this Act to which it relates shall be in force within the district or within such part thereof from such date as may be specified in that behalf in the order.

(2) Before any application is made to the Minister for an order under this section notice of the intended application specifying the provisions of this Act in respect of which an order is desired shall be inserted by the rural district council intending to apply for the order once at least in each of two successive weeks in one or more newspapers circulating in their district.

PART II

LANDS

Extension of
power to
acquire land
by agreement.

8.—(1) The Council may by agreement acquire (whether by purchase lease or exchange) and hold any land which in their opinion it is desirable that they should acquire for or in connection with the purposes of any of their powers or duties notwithstanding that the land may not be immediately required.

(2) Any land acquired under this section may be appropriated by the Council subject to and in accordance with the provisions of section 163 of the Act of 1933 as if it were not required for the purposes for which it was acquired.

(3) Pending such appropriation as aforesaid all expenses incurred by the Council under this section shall be payable out of the county fund.

Power to
reinstate
owners or
occupiers of
property.

9.—(1) The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired under this Act with respect to his reinstatement elsewhere.

(2) Any such agreement may provide for the exchange of land and for that purpose the Council may pay or receive money for equality of exchange.

PART II
—cont.

10.—(1) The Council may—

Retention and
disposal of
land.

- (a) retain and hold and use for such time as they think fit any land or interest in land acquired by them under this Act ;
- (b) sell lease exchange or otherwise dispose of any such land or interest in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of payment in any other form) ;
- (c) appropriate any such land for any purpose for which they are authorised to acquire land ;
- (d) sell exchange or dispose of any rents reserved on the sale lease exchange or other disposition of any such land or interest ;
- (e) make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition ;
- (f) on any such exchange pay or receive money for equality of exchange :

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such land or any interest therein at a price or rent or for a consideration of a value less than the current market value of the land or interest but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any land or interest in land from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Council or any persons from or through whom the Council have derived title to it.

11.—(1) Any capital money received by the Council on the resale or exchange of or by leasing any land acquired under this Act may (so far as they consider necessary and subject to the approval of the Minister) be applied by them in the purchase of other land.

Proceeds of
disposal of
surplus land.

(2) Any capital money so received and not so applied shall (subject to the provisions of section 201 (Capital fund) and section 203 (Consolidated loans fund) of this Act) be applied in or towards the extinguishing of any loan raised by the Council under any enactment.

PART II
—cont.

(3) Any application of money under the last foregoing subsection shall unless the Minister on the application of the Council otherwise directs and subject in that event to such conditions as he may impose be in addition to and not in substitution for such method of extinguishing the loan as may have been adopted by the Council under any enactment.

(4) Any capital money received by the Council on the resale or exchange of or by leasing any land acquired under any enactment other than this Act shall be applied in the same manner as capital money received under that enactment is applicable or in such other manner as may be approved by the Minister.

Undertakings
and agreements
binding
successive
owners.

12.—(1) Every undertaking given by or to the Council to or by the owner of any legal estate in land and every agreement made between the Council and any such owner being an undertaking or agreement—

- (a) given or made under seal on the passing of plans or otherwise in connection with the land ; and
- (b) expressed to be given or made in pursuance of this section ;

shall be binding not only upon the Council and any owner joining in the undertaking or agreement but also upon the successors in title of any owner so joining and any person claiming through or under them.

15 & 16 Geo. 5. c. 22.
16 & 17 Geo. 5. c. 11. (2) Any such undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926.

(3) Any person upon whom any such undertaking or agreement is binding shall be entitled to require from the Council a copy thereof.

Enforcement
of restrictive
covenants
relating to land
acquired for
open spaces
etc.

13.—(1) Where the Council have either before or after the passing of this Act contributed or agreed to contribute towards or in connection with the acquisition or utilisation by the council of any other county or of any county borough or district or by any other public body (in this section referred to as an “authority”) or by any person or any trustees of land for the purpose of a public or private open space recreation or pleasure ground public walk sports ground or playing fields or towards the layout or maintenance of such land and such authority person or trustees have either before or after the passing of this Act in consideration of such contribution or of an agreement to make such contribution entered into a covenant with the Council restrictive of the user of such land the Council shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against such

authority person or trustees and against the persons deriving title under them in the like manner and to the like extent as if the Council were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(2) Where an authority have either before or after the passing of this Act contributed towards or in connection with the acquisition or utilisation by the Council of land for the purpose of a public or private open space recreation or pleasure ground public walk sports ground or playing fields and the Council have either before or after the passing of this Act in consideration of such contribution or of an agreement to make such contribution entered into a covenant with such authority restrictive of the user of such land such authority shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against the Council and the persons deriving title under them in the like manner and to the like extent as if such authority were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(3) (a) For the purposes of section 15 of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 any covenant referred to in this section shall be deemed to be a restriction on the user or mode of user of land or buildings enforceable by a local authority under a covenant or agreement made with them.

(b) This section shall not apply to a covenant contained in any instrument made before the twenty-seventh day of November one thousand nine hundred and fifty unless the restrictions enforceable under such covenant were registered as local land charges within twelve months after that date.

(4) Any covenant to which this section applies shall continue to be enforceable notwithstanding that the land intended to be affected thereby may have passed to an authority acquiring the same by agreement under the Lands Clauses Acts or any Act incorporating those Acts.

(5) Nothing in this section shall deprive the Council or any authority person or trustees of any right to enforce a covenant to which this section applies which they or he would have had if this section had not been enacted.

14. The Council when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any government department is required only with such consent. Compensation may be in land.

PART II
—cont.Application of
Lands Clauses
Acts to
purchases by
agreement.

15.—(1) For the purpose of any enactment empowering the acquisition by the Council of land by agreement for a purpose for which they may be authorised to acquire the land compulsorily the Lands Clauses Acts (except the provisions relating to access to the special Act and except sections 127 to 132 of the Lands Clauses Consolidation Act 1845) shall so far as concerns any such acquisition be deemed to be incorporated with such enactment and in construing those Acts for the purposes of this section such enactment shall be deemed to be the special Act and the Council shall be deemed to be promoters of the undertaking.

(2) The powers exercisable under this section shall be in addition to the powers exercisable under any other enactment.

Application
of certain
provisions of
Part II to local
authorities.

16.—(1) Subject to the provisions of this Act a local authority may exercise the powers contained in the foregoing provisions of this Part of this Act and those provisions shall accordingly have effect with any necessary modifications including the substitution of—

- (a) “local authority” for “Council”;
- (b) “district” for “county”; and
- (c) “general rate fund” for “county fund”.

(2) In its application to a local authority section 8 (Extension of power to acquire land by agreement) of this Act shall have effect as if the words “undertakings powers or duties or for the benefit improvement or development of their district” had been inserted therein in lieu of the words “powers or duties”.

Loans for
erection etc. of
buildings.

17.—(1) A local authority may advance money to the purchaser or lessee of any land acquired from or leased by them for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed in the case of a building being a house nine-tenths or in the case of any other building three-quarters of the amount which in the opinion of the local authority will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

(2) Before any advance is made under this section its repayment shall be secured to the satisfaction of the local authority by a mortgage of the land and building in respect of which the advance is to be made or of the lessee’s interest therein and the instrument securing the advance shall—

- (a) fix the rate of interest to be paid being a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 of the Housing Act 1935;

- (b) fix the period within which the advance is to be repaid being a period not exceeding thirty years from the date of the advance ;
- (c) require the repayment to be made either by equal instalments of principal or by an annuity of principal and interest combined ;
- (d) fix the intervals at which all payments on account of principal and interest are to be made being intervals not exceeding half a year ;
- (e) authorise the borrower at any of the usual quarter days after one month's notice and on paying all sums due on account of interest to repay the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the said instrument or as the local authority may be prepared to accept) or a multiple of one hundred pounds (or of such less sum as aforesaid) ;
- (f) where the repayment is to be made by an annuity of principal and interest combined provide for determining the amount by which the annuity is to be reduced when a part of the advance is paid off otherwise than by way of an instalment of the annuity ;
- (g) require the borrower either—
 - (i) to keep the building in respect of which the advance is made insured against fire to the satisfaction of the local authority and to produce to them when required the receipts for the premiums paid in respect of the insurance ; or
 - (ii) (if the local authority elect themselves to insure the said building against fire) to repay to them the amounts of any premiums paid by them from time to time in that behalf ;
- (h) require the borrower to keep the said building in good repair.

(3) Any person acting on behalf of the local authority and authorised in writing by the clerk of the local authority shall have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(4) The borrower may with the permission of the local authority (which shall not be unreasonably withheld) at any time transfer his interest in the land and building in respect of which the advance was made but any such transfer shall be made subject to the terms of the instrument securing the advance.

(5) In this section the expression "lessee" includes a person to whom the local authority have agreed to grant a lease and the expression "lease" shall be construed accordingly.

PART II
—cont.
Development
of land.

18.—(1) A local authority may (with the consent of the Minister) lay out and develop any land for the time being belonging to them and not required for the purpose for which it was acquired and may on any such land erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave channel and kerb streets and highways.

(2) The local authority may use or dispose of the building or other materials of any houses or structures on any land acquired or appropriated by them which they deem it necessary or desirable to pull down.

(3) Nothing in this section shall apply to land acquired by the local authority under section 38 or section 40 of the Act of 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections.

PART III

HIGHWAYS

A New streets

Interpretation
of Part III.

19.—(1) In this Part of this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“classified road” has the same meaning as in the Local Government Act 1929;

“private street” means a street within the meaning of the Private Street Works Act 1892 or a street to which section 150 of the Public Health Act 1875 applies or land which is deemed to be a private street by virtue of subsection (2) of section 48 of the Act of 1947;

“private street works” means works executed under the Private Street Works Act 1892 or section 150 of the Public Health Act 1875 or in relation to land which is deemed to be a private street as aforesaid works executed under either of those Acts as applied by subsection (3) of the said section 48 or by this Act;

“public service vehicle” has the same meaning as in the Road Traffic Acts 1930 to 1947;

“street byelaws” means any byelaws for the time being in force in any district with respect to the construction and laying out of new streets;

“structure” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “wall” does not include a wall forming part of a permanent building;

“transfer” includes any disposal of land whether by way of sale lease exchange gift or otherwise and “transfers” shall be construed accordingly.

55 & 56 Vict.
c. 57.
38 & 39 Vict.
c. 55.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof began.

PART III
—cont.

20.—(1) Where a plan and sections of a new street have been deposited with a local authority in pursuance of street byelaws and have been approved by them no person shall without their consent begin to erect a building on land abutting on the street until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts on the land on which the building is to be erected and on any land which will be occupied in connection with the building. Prohibition of building until street defined.

(2) Where the approved width of a new street has been defined as aforesaid no person shall begin to erect a building or structure nearer to the centre of the street than the line of the posts or other marks by which the width has been so defined.

(3) If any person contravenes the provisions of either of the foregoing subsections he shall be liable to a penalty not exceeding twenty pounds and the local authority may—

(a) in the case of a contravention of subsection (1) define as aforesaid the approved line width and level of the new street ; and

(b) in the case of a contravention of subsection (2) remove the building or structure ;

and in either case recover the expenses of so doing from that person.

21.—(1) Where a plan and sections of a new street deposited with a local authority in pursuance of street byelaws are approved by them they may by notice prohibit the erection of any building on land abutting on the street until the carriageway of the street has been constructed and the street has been sewered in accordance with the said byelaws : Prohibition of building until street formed and sewered.

Provided that where the plan shows that the street will exceed one hundred yards in length the local authority shall divide the street for the purpose of the notice into lengths not exceeding one hundred yards and each such length shall for that purpose be treated as a separate street.

(2) Any such notice shall be given to the person by whom or on whose behalf the plan and sections were deposited and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes the provisions of any such notice he shall be liable to a penalty not exceeding twenty pounds and the local authority may construct the carriageway and works of

PART III
—cont.

sewerage which should have been constructed and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 with respect to the avoidance of any such notice for want of registration as a local land charge.

(4) The execution of any works under the provisions of this section shall not relieve any person from any liability under section 150 of the Public Health Act 1875 or under the Private Street Works Act 1892 or any local Act relating to private street works for the time being in force in the district of the local authority.

Termination
of new streets.

22.—(1) Where a plan and sections of a new street deposited with a local authority in pursuance of street byelaws are approved by them they may for the purpose of securing adequate means of communication between the new street and any other street (whether existing or intended) by notice prohibit the erection or retention of any structure at either end of the new street on land belonging at the time of the deposit to the owner of the land upon which the new street is proposed to be constructed or laid out :

Provided that no such notice shall affect any structure existing at the time of the deposit until both the new street and that other street have become highways repairable by the inhabitants at large.

(2) Any such notice shall be given to the person by whom or on whose behalf the plan and sections were deposited and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes any notice under this section he shall be liable to a penalty not exceeding twenty pounds and the local authority may remove the structure and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 with respect to the avoidance of any such notice for want of registration as a local land charge.

Rounding or
splaying off
corners at
street
junctions.

23.—(1) Where a plan and sections of a new street deposited with a local authority in pursuance of street byelaws are approved by them they may for the purposes of safety by notice require that the corners formed at the junction of the new street with another street (whether existing or intended but not being a trunk road) shall be rounded or splayed off in such manner as may be specified in the notice.

(2) Any such notice—

(a) shall be given to the person by whom or on whose behalf the plan and sections were deposited ; and

(b) shall be binding on successive owners of the land to which it relates ; and

(c) shall be treated for the purposes of section 15 of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 as if the said requirement were a restriction on the user of land imposed thereby and shall be registered accordingly under the said section as a local land charge.

(3) The local authority shall pay compensation to any person injuriously affected by the exercise of powers conferred by this section and in default of agreement the amount thereof shall be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(4) If any person lays out or constructs a new street otherwise than in compliance with a notice in respect of the street under this section he shall be liable to a penalty not exceeding twenty pounds and the local authority may do such work as may be necessary to comply with the notice and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 with respect to the avoidance of any such notice for want of registration as a local land charge.

(5) This section shall not apply to a new street laid out by the Council or to a county road (not being a claimed road) except with the consent of the Council.

24.—(1) Where a plan and sections of a new street deposited with a local authority in pursuance of street byelaws are approved by them they may for the purpose of securing the proper laying out or development of any estate through which the street is to run by notice require that such provision shall be made—

Adjustment of
boundaries of
estates in
connection
with streets.

(a) for adjusting and altering the boundaries of the estate and any other estate adjacent or near thereto and for effecting exchanges of land in connection therewith ; and

(b) for the removal modification or imposition of covenants restrictions and conditions attaching to the land comprised in the estate or any such other estate ;

as may be necessary or desirable having regard to the line and lay out of the new street.

PART III
—cont.

(2) Any such notice shall be given to the owners of all the estates affected thereby.

(3) The powers conferred by subsection (1) of this section may also be exercised on the approval of a plan for the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street.

(4) The provision so to be made and the terms and conditions upon which it is to be made shall failing agreement between the local authority and the persons interested in the respective estates be determined by arbitration.

(5) An agreement or award made under this section may provide for the payment of money by the local authority but no such award shall provide for the payment of money by any other person without his consent.

(6) Any award made under this section shall operate to effect any adjustment or alteration of boundaries or exchange of land or the removal modification or imposition of covenants restrictions and conditions attaching to any land which may be provided for by the award and shall be duly stamped accordingly.

(7) The costs and expenses of any arbitration under this section shall unless and except in so far as the award may otherwise provide be paid by the local authority.

(8) Any land or money received by any person in respect of any adjustment or alteration of boundaries or exchange of land under this section shall be held by him subject to the same trusts (if any) as the land exchanged therefor.

(9) Any land received by any person as aforesaid shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the land exchanged therefor and any such covenants restrictions or conditions shall be deemed to be applicable unless otherwise provided in an agreement or award made under this section.

(10) For the purposes of this section a local authority may themselves purchase any land by agreement and—

(a) may sell or lease the whole or part of any land so purchased at such time and at such price and on such conditions as they think fit; or

(b) may exchange the whole or part of any such land for other land at such time and on such conditions as they think fit and pay or receive money for equality of exchange; or

(c) may appropriate any such land for any purpose approved by the Minister;

and until any such sale lease exchange or appropriation may occupy manage or let the land or any part thereof in such manner as they think reasonable:

Provided that a local authority shall not without the consent of the Minister sell or lease any such land at a price or rent or

for a consideration of a value less than the current market value of the land but a purchaser or lessee shall not be concerned to inquire whether such consent is necessary or has been obtained.

PART III
—cont.

(11) In this section the expression "estate" includes any parcel of land.

B Verges and trees

25.—(1) Subject to the provisions of this section the highway authority shall have power—

Trees grass
verges and
gardens.

- (a) to cause trees or shrubs to be planted in any street repairable by them or in tubs placed by them for the purpose in any such street ;
- (b) to cause grass verges or gardens to be laid out in any such street ;
- (c) to erect and maintain guards or fences and otherwise do anything expedient for the maintenance or protection of such trees shrubs tubs grass verges or gardens ;
- (d) to cut down any such tree or shrub to remove any such tub and to abolish any such grass verge or garden or enlarge or diminish the area thereof ;
- (e) by notice to prohibit persons from entering upon or causing or permitting horses cattle or vehicles to enter upon any such grass verge which is maintained in an ornamental condition or mown or any such garden.

(2) Any such notice as is referred to in paragraph (e) of the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge or garden to which it relates and if any person contravenes a notice so posted he shall be liable to a penalty not exceeding twenty shillings.

(3) Subject to the provisions of this subsection the powers conferred by this section shall not be exercisable except in a street maintainable by and vested in the highway authority or upon land so vested which forms part of a street :

Provided that when carrying out in any street or any part thereof any private street works the authority carrying out such works may exercise any such power in the street or that part thereof with the consent of the majority in number and rateable value of the owners of land abutting on the street or that part thereof and treat any expenses incurred in so doing as part of the expenses of carrying out the said works.

(4) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

PART III
—cont.15 & 16 Geo. 5.
c. 68.

(5) Section 1 of the Roads Improvement Act 1925 shall cease to apply within the county and anything done by the highway authority under that section before the passing of this Act shall be deemed to have been done under this section.

(6) Nothing in this section shall affect the duty of the highway authority to provide footpaths or grass or other margins under section 58 of the Road Traffic Act 1930.

Damage to
trees etc. on
highways and
in open spaces.

26.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall on any highway or in any open space to which the public have access within the county—

(a) remove or cut any turf; or

(b) pluck any bud blossom flower or leaf of any tree shrub or plant or remove cut or displace any plant if the tree shrub or plant has been planted by the person having control of the highway or open space for the purpose of improving the amenities thereof and a notice stating the effect of this paragraph is conspicuously placed in the neighbourhood of the tree shrub or plant.

(2) Any person offending against this section shall be liable to a penalty not exceeding forty shillings and to the payment of such further amount as appears to the court reasonable compensation for any damage so committed which last-mentioned amount shall be paid to the person having control of the highway or open space.

(3) Nothing in this section shall—

(a) apply to any open space vested in or under the control of the council of a district a board of conservators or the National Trust for Places of Historic Interest or Natural Beauty; or

(b) affect any right of any persons authorised by any enactment to open or break up any street or road or any land for the purpose of laying making altering repairing or renewing any main pipe sluice weir sewer electric line duct substation transformer station street-box drain tramway or trolley vehicle equipment or other apparatus.

(4) In this section the expression “open space” includes any land in private ownership not separated from a highway by means of a fence provided such land is within one hundred and twenty feet from the centre of the highway.

Removal of
trees etc. from
streets.

27. If any tree fence wall or structure or any part thereof shall fall on or across any street repairable by them so that obstruction is caused or is likely to be caused to persons or vehicles using such street or the footpath thereof the highway authority may remove the same and recover the reasonable cost

of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree fence wall or structure or any part thereof was situate from the occupier thereof.

PART III
—cont.

C Improvements

28.—(1) Subject to the provisions of this section the highway authority may vary the relative widths of the carriageway and footway or footways in any street repairable by them.

Variation of
width of
carriageways
and footways.

(2) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the highway authority shall send notice of the proposed work to the Minister of Transport.

(3) The highway authority shall not exercise the powers of this section in relation to so much of any street as is situate upon a bridge over any railway canal or inland navigation or upon the approaches to any such bridge without the consent in writing of the railway canal or inland navigation undertakers concerned:

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

29.—(1) Subject to the provisions of this section the Council may enter into and carry into effect agreements with persons having a legal interest in land adjoining any county road in the county for the adjustment of the boundary of the road.

Adjustment of
boundaries of
county roads.

(2) For the purposes of this section the Council—

(a) may exchange land including land forming the site of the road for other land and pay or receive money for equality of exchange; and

(b) shall be deemed to be the owners of the land forming the site of the road and shall be entitled to convey any such land in accordance with the agreement.

(3) No such agreement shall be entered into until the expiration of one month from the date on which notice giving particulars of the proposed agreement has been published in some local newspaper circulating in the district in which such land is situate.

(4) During the said period of one month any four ratepayers of the district may appeal to a court of summary jurisdiction against the proposal to enter into the agreement.

(5) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any land of the Council in any case in which the consent of that department would have been required if this Act had not been passed.

PART III
—cont.15 & 16 Geo. 5.
c. 90.Enforcement of
improvement
line.15 & 16 Geo. 5.
c. 71.

(6) In this section the expression "ratepayers" has the same meaning as in the Rating and Valuation Act 1925.

30.—(1) At any time after prescribing the improvement line of any street under section 33 of the Public Health Act 1925 the highway authority may by notice require the owner of any building which or any part of which was beyond or in front of the improvement line when it was prescribed to demolish set back or alter the said building within such reasonable period as may be prescribed in the notice not being less than twelve months from the service of the notice so that it shall not project beyond or in front of the improvement line.

(2) For the purpose of complying with any such notice the owner may notwithstanding anything in any lease or other agreement enter upon any land or building affected by any requirement of the notice and carry out the work required by the notice.

(3) Where any building is demolished set back or altered in compliance with a notice under this section the highway authority shall pay compensation to any owner or tenant thereof for any damage or loss sustained by him in consequence of the compliance and the amount of such compensation shall in default of agreement be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(4) In determining the amount of the compensation payable under this section to the owner or tenant of a building in a case where—

(a) he has an interest in land abutting on so much of the improvement line as immediately before the service of the said notice intersected or abutted on the building or land occupied in connection therewith; and

(b) the value of his said interest is enhanced by reason of the widening or improvement of the street;

the amount of the enhancement in value shall be set off against the compensation:

Provided that any such enhancement in value shall be estimated on the assumption that planning permission in respect of the land would be granted under the Act of 1947 for the operations or uses specified in the Third Schedule to that Act but for no other development.

(5) If any person fails to comply with a notice under this section he shall be liable to a penalty not exceeding twenty pounds and the highway authority may do all such things as may be necessary to comply with the notice and recover the cost of so doing from that person.

(6) Any owner on whom a notice is served under subsection (1) of this section may appeal against such notice to a court of summary jurisdiction.

PART III
—cont.

(7) In this section the expression “building” includes a structure.

31. Where the boundary between the county and any other county or county borough or the boundary between any districts in the county divides any road longitudinally the councils or authorities who but for this enactment would be responsible for the maintenance and repair of the portions of the road on each side of the boundary shall in lieu of maintaining and repairing the portion for which they are so responsible maintain and repair respectively such part or parts of the road throughout its entire width as shall be agreed upon or as failing agreement shall in the case of any road wholly within the county be determined by the Council on the application of either party and in any other case be determined by the Minister of Transport on the application of either party.

Repair of
boundary
roads.

D Stopping up

32.—(1) Subject to the provisions of this section a court of summary jurisdiction—

Stopping up
and diversion
of highways.

(a) if satisfied on the application of the highway authority that a highway within the county is unnecessary may by order authorise the stopping up thereof; and

(b) if so satisfied that such a highway can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) An application or order under this section—

(a) may provide for the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway;

(b) may be made with respect to any part of a highway;

(c) may be made with respect to two or more highways or parts of highways which are connected with each other;

and in relation to any application or order in respect of a part of a highway or two or more highways or parts of highways any reference in the subsequent provisions of this section to a highway shall be construed as a reference to that part or those highways or parts of highways (as the case may be).

(3) No application or order shall be made under this section with respect to a trunk road or to a public path within the meaning of Part IV of the National Parks and Access to the Countryside Act 1949.

12 13 & 14
Geo. 6. c. 97.

PART III
—cont.

(4) No order shall be made under this section unless the court is satisfied that notice of the intention to apply for the order specifying the time and place at which the application is to be made and the terms of the order applied for (embodying a plan showing the effect of the order)—

(a) has at least twenty-eight days before the date on which the application is made been served on the local planning authority and on the local authority and parish council concerned and on the owners or reputed owners and the occupiers of all land abutting on the highway and also when the application relates to a classified road on the Minister of Transport ; and

(b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as may be reasonably sufficient for notifying persons using the highway of the application ;

and that a similar notice (except that there may be substituted for the plan a statement of the place where the plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the area in which the highway to which the application relates is situate.

(5) No order under this section authorising the diversion of a highway—

(a) shall be made unless the written consent of the local planning authority and of every person having a legal interest in the land over which the highway is to be diverted is produced to and deposited with the court ;

(b) shall authorise the stopping up of any part of the highway until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices of the peace and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace.

(6) On the hearing of the application the highway authority the local planning authority and the local authority and parish council concerned and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard.

(7) An appeal against a decision of a court of summary jurisdiction under this section may be brought to quarter sessions by any person who was entitled under the last foregoing subsection to be and was or claimed to be heard on the application

and for the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—
(a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order ;

PART III
—cont.

42 & 43 Vict.
c. 49.
23 & 24 Geo. 5.
c. 38.

(b) where more than two persons were heard or claimed to be heard in opposition to the application it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court but without prejudice to the right of any of those persons to appear as respondents to the appeal ;

(c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.

(8) Where by reason of the diversion of a highway under this section any person is relieved from liability to repair the highway he shall be liable to pay to the highway authority such sum as may be agreed between him and the highway authority or in default of agreement as may be determined by arbitration to represent the value to him of the relief and any such sum shall be payable either—

(a) as a lump sum ; or

(b) by annual payments of such amount and continuing for such number of years as may be agreed or determined as aforesaid.

(9) Every order made under this section—

(a) shall have annexed thereto a plan signed by the chairman of the court ; and

(b) shall be transmitted by the clerk of the court to the clerk of the peace together with any written consents produced to the court under subsection (5) of this section ;

and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (5) of this section among the records of quarter sessions.

(10) Every order made under this section shall be binding on all persons whatsoever.

(11) The exercise by the highway authority of their powers under this section shall not prejudice their powers under any statutory provision relating to the stopping up and diversion of highways.

PART III
—cont.

Maintenance
of forecourts
to which
public have
access.

E Erections etc. in highways

33.—(1) Where the forecourt of any premises abutting upon a street in the county is unfenced and is habitually used or is open to use by the public as part of the footway of such street the owner of such forecourt shall (if so required by a notice under the next following subsection) maintain and keep such forecourt in proper repair and so as not to be a danger to persons using the same.

(2) A local authority may serve upon the owner of any such forecourt notice requiring him to make good any want of repair to the forecourt or to remove any source of such danger as aforesaid and if within twenty-eight days—

- (a) (where the owner has not appealed against the requirements under subsection (6) of this section or has brought such an appeal which is subsequently withdrawn) from the service of the notice ; or
- (b) (where the owner has so appealed and the requirements have been confirmed with or without variation) from the date of such confirmation ;

such owner shall not have complied with the requirements of the notice as served or (as the case may be) with the requirements as so confirmed the local authority may themselves execute all such works and take all such steps as may be necessary to comply with the requirements.

(3) For the purpose of complying with the requirements of any notice served under subsection (2) of this section it shall be lawful for the owner of any premises (not being the occupier thereof) notwithstanding anything to the contrary contained in any lease underlease or agreement of or relating to such premises to enter on such premises or any part thereof and carry out all such works or do all such things as may be necessary to comply with any such requirements.

(4) (a) The reasonable expenses incurred by a local authority in the execution of any works under the provisions of subsection (2) of this section shall be repaid to the local authority by the owner of the forecourt upon whom the notice under that subsection was served.

(b) A local authority may remit in whole or in part as they may think fit the amount of any expenses repayable to them by virtue of this subsection.

(c) All expenses repayable to a local authority under this subsection may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount of such expenses does not exceed the sum of twenty pounds summarily as a civil debt.

(5) Nothing in this section shall prejudice the right of any owner who has incurred expenses in complying with the provisions thereof or of any notice served thereunder or has under such provisions or under any such notice repaid the expenses to the local authority to recover the amount thereof from any other person under the terms of any lease underlease or agreement.

(6) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

34.—(1) If a local authority by resolution determine that any stall or other erection on any forecourt in their district is by reason of its character injurious to the amenities of the street on which the forecourt abuts the local authority may by notice require the owner or occupier of the forecourt either to make such alterations in the stall or erection as may be necessary to prevent it from being injurious to the amenities of the street or if he so elects to remove it.

Forecourts
injurious to
amenities of
street.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) In this section the expression “erection” does not include an advertisement to which regulations made under section 31 of the Act of 1947 for the time being apply.

35.—(1) The Council and any parish council or person with the consent of the highway authority and subject to such conditions as the highway authority may impose may in proper and convenient situations in any road or roadside waste thereof provide and erect and maintain seats for the use of the public.

Public seats
in roads.

(2) The Council may contribute to the expenses incurred by any parish council in exercising the powers of this section.

36.—(1) In any street in the county or on land belonging to them and abutting on any such street the Council or the local authority may subject to the provisions of this section erect and maintain at stopping places on the routes of public service vehicles or trolley vehicles—

Shelters etc. for
passengers on
public service
vehicles.

(a) shelters and other accommodation for persons intending to travel by such vehicles ; and

(b) barriers for the regulation of queues of such persons :

Provided that the powers of this section for the erection of barriers shall not be exercisable in any district in which bye-laws under section 75 of the Public Health Act 1925 are for the time being in force.

PART III
—cont.

(2) The Council or the local authority shall not exercise the powers of this section—

(a) without the consent of the Minister of Transport in any street being a trunk road or on land abutting on any such street ; or

(b) without the consent of the undertakers concerned—

(i) in or upon any bridge carrying a street over any railway canal or inland navigation or the approaches thereto or under a bridge carrying a railway canal or inland navigation over any street ; or

(ii) in any street belonging to and repairable by any transport undertakers and forming the approach to any station dock wharf or depot of such undertakers ; or

(iii) so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of any transport undertakers ; or

(c) without the consent of the owner of the land or premises concerned in any street or on land abutting on any street in such manner as to obstruct an existing access to any land or premises abutting on such street.

(3) A local authority shall not exercise the powers of this section without the consent of the Council in any street being a county road (not being a claimed road) or on land abutting on any such street.

(4) Any consent required by this section shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the Council or the local authority (as the case may be) shall remove any shelter or other accommodation or barriers either at any time or at or after the expiration of a period if reasonably required so to do by the person giving the consent.

(5) Any question arising as to whether any consent required by this section has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any shelter or other accommodation or barriers has been unreasonably required shall—

(a) in the case of a consent of the Minister of Transport be referred to and determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers ;

(b) in the case of any other consent be referred to and determined by the Minister of Transport.

(6) The Council or a local authority may enter into and carry into effect agreements with any person authorised to run public service vehicles or trolley vehicles within the county in

relation to the erection maintenance and use of any such shelter or other accommodation or barriers and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(7) In this section the expression “transport undertakers” means any railway dock canal inland navigation or passenger road transport undertakers.

37.—(1) Any person with the consent of the highway authority and subject to such conditions as they may impose may in proper and convenient situations in any road or roadside waste thereof provide stands for milk churns and containers:

Provided that the consent of the highway authority shall not be given to the provision of any stand in any road or roadside waste thereof in such a situation as to obstruct an existing access to any land or premises abutting on such road.

(2) Any person who without the consent of the highway authority provides stands for milk churns and containers in any road or roadside waste thereof shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and the highway authority may themselves remove the said stands in respect of which the offence has been committed and recover the expense of so doing from the person guilty of the offence.

38.—(1) Any parish council may erect and maintain direction posts of such size and type as may be approved by the Council in or adjacent to public footpaths (not being footpaths at the side of a highway repairable by the inhabitants at large) and bridle-paths with the consent of the owner in fee simple of the land in which it is proposed to erect the same and of any person having the control or management of such land.

As to direction posts relating to rights of way.

(2) The Council may contribute to the expenses incurred by any parish council in exercising the powers of this section.

39.—(1) A local authority may on a conspicuous part of any building structure (other than a tower pylon or other similar apparatus belonging to an area board) or land in their district at or near the corner of any street cause to be put up or painted signs indicating the classified road number of the street and the direction and distance to towns railway stations public buildings and other places of a public character.

Direction signs.

(2) At least one month before exercising their powers under this section the local authority shall give to the highway authority and to the owner of the building structure or land notice of their decision so to do together with particulars of the size design and position of the sign proposed and the highway authority or any person aggrieved by the decision of the local authority may appeal to a court of summary jurisdiction.

PART III
—cont.

(3) If any person wilfully and without the consent of the local authority removes, obliterates, alters, defaces or obscures any such sign otherwise than in the course of demolishing or altering the building or structure or executing work on the land, he shall be liable to a penalty not exceeding forty shillings and the local authority may recover from him the expenses of replacing or making good the sign.

(4) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1947 and to any regulations made or any general or other directions given by the Minister of Transport in pursuance of the said provisions.

Illumination of
street names
etc.

40. A local authority may illuminate—

(a) any inscription which has been set up of the name of any street within their district; and

(b) any sign caused to be put up or painted by them under the powers of section 39 (Direction signs) of this Act:

Provided that a local authority shall on being so requested by the commission cease to illuminate any inscription or sign under the powers of this section in such a manner as in the opinion of the commission will hinder the ready interpretation of any railway signal or so as otherwise to render hazardous the use of any railway.

Attachment of
street lamps
brackets etc.

41.—(1) Subject to the provisions of this section a local authority may affix to any building in their district such lamps, brackets, pipes, electric lines and apparatus (in this section called "attachments") as may be required for the purposes of street lighting.

(2) A local authority shall not affix attachments to a building under this section without the consent of the owner of the building:

Provided that where in the opinion of the local authority any consent required under this subsection is unreasonably withheld, they may apply to the appropriate authority who may either allow the attachments subject to such conditions (if any) as to rent or otherwise as the appropriate authority thinks fit or disallow the attachments.

(3) Where any attachments have been affixed to a building under this section and the person who gave the consent or who was the owner of the building when the attachments were allowed by the appropriate authority ceases to be the owner thereof, the subsequent owner may give to the local authority notice requiring them to remove the attachments and subject to the provisions of this subsection the local authority shall comply with the requirement within three months after the service of the notice:

Provided that where in the opinion of the local authority any such requirement is unreasonable, they may apply to the

appropriate authority who may either annul the notice subject to such conditions (if any) as to rent or otherwise as the appropriate authority thinks fit or confirm the notice subject to such extension (if any) of the said three months as the appropriate authority thinks fit.

(4) Where any attachments have been affixed to a building under this section the owner of the building may require the local authority at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

(5) If the owner of any building suffers damage by or in consequence of the affixing to the building of any attachments under the powers of this section he shall be entitled to be paid by the local authority compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(6) In this section the following expressions have the meanings hereby assigned to them:—

“appropriate authority” means a court of summary jurisdiction except that in relation to a building mentioned in the first column of the following table it means the Minister specified in relation thereto in the second column of that table:—

1	2
Building forming part of an aerodrome licensed pursuant to an order made under the Civil Aviation Act 1949 or any enactment repealed by that Act.	The Minister of Civil Aviation. 12 13 & 14 Geo. 6. c. 67.
Building which— (i) is subject to a building preservation order made under section 29 of the Act of 1947; or (ii) is included in a list of buildings of special architectural or historic interest compiled or approved by the Minister of Town and Country Planning or the Minister under section 30 of the last-mentioned Act; or (iii) is alleged by the owner thereof to be a building of special architectural or historic interest; or (iv) is owned by statutory water undertakers.	The Minister.
Building owned by a highway authority or railway canal dock or inland navigation undertakers.	The Minister of Transport.
Building owned by electricity or gas undertakers.	The Minister of Fuel and Power.

PART III
—cont.

“ building ” includes a structure and a bridge or aqueduct over a street ;

“ owner ” means—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired and not forming part of such an aerodrome as aforesaid the occupier of the building ;

(b) in relation to a building forming part of such an aerodrome as aforesaid the person having control of the aerodrome ;

(c) in relation to any other building the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent ; and the expression “ owned ” shall be construed accordingly.

Awnings over
footways.

42.—(1) No part of any awning over the footway of a street in the county being a highway repairable by the inhabitants at large shall project over any part of the footway which is less than one foot six inches from the outer edge of the footway.

(2) If any person places or causes or permits to be placed over any such footway an awning which contravenes the foregoing subsection he shall be liable to a penalty not exceeding forty shillings.

(3) If an awning over any such footway is so constructed or maintained as to be prejudicial to the safety or convenience of the public the local authority may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to prevent the awning being so prejudicial.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) In this section the expression “ awning ” includes a blind shade or other covering.

Barriers in
streets.

43.—(1) For the purpose of securing public order or public safety or preventing congestion of traffic a local authority may in any case of emergency or on any occasion on which it is likely by reason of some special attraction that any street in their district will be thronged or obstructed cause barriers to be erected in any street in the district and kept in position for so long as may be necessary for that purpose :

Provided that the local authority shall not exercise the power of this subsection—

(a) as respects any trunk road without the consent of the Minister of Transport ; or

- (b) as respects any county road (not being a claimed road) without the consent of the Council ; or
- (c) as respects any street belonging to or repairable by any transport undertakers and forming the approach to any station dock wharf or depot of those undertakers or so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of any transport undertakers without the consent of those undertakers ; or
- (d) as respects any street belonging to or repairable by the National Coal Board without the consent of that board ; or
- (e) so as to deprive foot-passengers bona fide going to or from any building or land abutting on the street of reasonable access to the building or land.

(2) The consent of any undertakers under proviso (c) or of the National Coal Board under proviso (d) to the preceding subsection shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

(3) For the purpose of erecting barriers in a street under this section the local authority may provide slots or sockets in or under the surface of the street.

(4) If any person wilfully removes or damages any barrier erected under this section he shall be liable to a penalty not exceeding five pounds.

(5) In this section the expression “ transport undertakers ” means any railway dock canal inland navigation or statutory passenger road transport undertakers or any passenger road transport undertakers providing a regular service or services of public service vehicles.

44.—(1) The owner or occupier of any premises situated under or abutting on a pavement forming part of a street in the county may with the consent of the highway authority provide means for the admission of light or air to the premises through the pavement. Pavement lights and ventilators.

(2) In giving their consent under this section the highway authority may attach thereto such terms and conditions as they think fit.

(3) Anything done before the passing of this Act which would have been lawfully done under this section if done after the passing thereof is hereby ratified.

*F Protection of highways*PART III
—cont.Erection of
structures at
street corners.

45.—(1) No person shall place or erect any structure at or within a distance of ten yards from the corner of any street unless he has given to the highway authority notice of his intention so to do accompanied by plans and particulars of the structure and the highway authority have approved the placing or erection thereof under this section:

Provided that this subsection shall not apply to any structure being development which by virtue of the Act of 1947 and any development order for the time being in force thereunder may be undertaken only with permission granted on an application or an advertisement which may be displayed only with consent granted on an application under regulations for the time being in force under section 31 of that Act.

(2) Within five weeks from the receipt of such a notice from any person the highway authority may give him notice that they disapprove the placing or erection of the structure or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the structure would by obstructing the view of foot-passengers or drivers of vehicles constitute a danger to the traffic on the street upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The highway authority may at any time within the said five weeks give notice that they approve the placing or erection of the structure in accordance with the plans and particulars submitted to them and if within the said five weeks the highway authority have not given notice under the last foregoing subsection they shall be deemed for the purposes of this section to have approved the placing or erection of the structure in accordance with those plans and particulars.

(4) Where the highway authority have approved the placing or erection of the structure it shall not be placed or erected—

(a) otherwise than in accordance with the plans and particulars submitted as aforesaid; or

(b) if notice has been given under subsection (2) of this section of any conditions or modifications otherwise than in accordance with those conditions and with the said plans and particulars as modified by the notice.

(5) Any person giving notice under subsection (1) of this section who is aggrieved by any notice given under subsection (2) thereof may within twenty-one days from the service of the

last-mentioned notice appeal to the Minister of Transport who may make such order as he thinks fit and whose decision shall be final.

PART III
—cont.

(6) If any person places or erects any structure in contravention of the foregoing provisions of this section he shall be liable to a penalty not exceeding five pounds.

(7) The foregoing provisions of this section shall not apply to a temporary structure required to be placed or erected at or within a distance of ten yards from the corner of a street for the purpose of the construction alteration repair or maintenance of any building or works:

Provided that if any such temporary structure is not removed when the construction alteration repair or maintenance of the building or works is completed the person who placed or erected it shall be liable to a penalty not exceeding five pounds.

(8) Where any person is convicted of an offence under either of the last two foregoing subsections the court by which he is convicted may order him within such time as may be fixed by the order to remove the structure in respect of which he was convicted and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding twenty shillings for each day on which the failure continues; and

(b) the highway authority after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the highway authority have given him notice of their intention to remove the structure.

(9) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925.

(10) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

46.—(1) No person shall erect or bring forward beyond the building line on land abutting on a street in a district any structure of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street. Application of building line to walls etc.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding five pounds.

PART III
—cont.

(3) The foregoing provisions of this section shall not apply to a temporary structure required to be erected as mentioned in subsection (1) of this section for the purpose of the construction alteration repair or maintenance of any building or works:

Provided that if any such temporary structure is not removed when the construction alteration repair or maintenance of the building or works is completed the person who erected the structure shall be liable to a penalty not exceeding five pounds.

(4) Where any person is convicted of an offence under either of the last two foregoing subsections the court by which he was convicted may order him within such time as may be fixed by the order to remove the structure or if he so elects to set it back or alter it so that it no longer contravenes the provisions of subsection (1) of this section and if he fails to comply with the order—

(a) he shall be liable to a daily penalty not exceeding twenty shillings ; and

(b) the local authority after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the local authority have given him notice of their intention to remove the structure.

(5) Where after the expiration of five years from the passing of this Act there is on any site in a district a structure which existed on that site at the passing of this Act and could not have been erected there after the passing thereof without contravening the provisions of subsection (1) of this section—

(a) the local authority may by notice stating the effect of paragraphs (b) and (c) of this subsection require the owner or occupier of the site to remove set back or alter the structure within such time (not being less than seven days) as may be specified in the notice so that it will comply with those provisions ;

(b) if the owner or occupier complies with the said notice the local authority shall on demand repay to him the reasonable expenses incurred by him in so doing ;

(c) if the owner or occupier fails to comply with the said notice the local authority at their own expense may remove the structure but shall if he so requires re-erect it so as not to contravene the said provisions.

(6) In this section the expression “ building line ” in relation to any land means—

(a) any building line prescribed by the local authority in respect of the land under the provisions of any enactment ; or

(b) if there be no such line then any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the local authority under subsection (2) of section 140 of the Housing Act 1936 ; or

26 Geo. 5. & 1
Edw. 8. c. 51.

(c) if there be neither of such lines then the line beyond which a house or building may not (except with the consent of the local authority) be erected or brought forward on the land without contravening the provisions of the Public Health (Buildings in Streets) Act 1888.

51 & 52 Vict.
c. 52.

(7) The provisions of this section shall not apply to any wall erected on land belonging to any railway dock canal or inland navigation undertakers so long as that land is used by those undertakers primarily for the purposes of their railway dock canal or inland navigation undertaking.

47.—(1) In this section the expression “retaining wall on a street” means a wall which—

Retaining
walls.

(a) is situated wholly or partly within twelve feet of a street in a district ; and

(b) is of greater height than six feet ; and

(c) serves or is intended to serve as a support for earth or other material on one side only ; and

(d) does not form part of a permanent building.

(2) After the passing of this Act no retaining wall on a street shall be erected otherwise than in accordance with plans sections and specifications approved by the local authority and if any person erects such a wall in contravention of this subsection he shall be liable to a penalty not exceeding five pounds.

(3) If any retaining wall on a street—

(a) is in such disrepair as to be liable to endanger persons using the street ; or

(b) being a wall erected before the passing of this Act or erected in contravention of the last foregoing subsection is so constructed as to be liable as aforesaid ;

the local authority may by notice to the owner or occupier require him to execute such work as may be necessary to prevent the wall being liable as aforesaid and the provisions of section 290 of the Act of 1936 shall apply in relation to such a notice as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) The provisions of this section shall not apply to a retaining wall on a street erected on land belonging to any railway dock canal or inland navigation undertakers so long as that land is used by those undertakers primarily for the purpose of their railway dock canal or inland navigation undertaking.

PART III
—cont.

(5) The provisions of this section shall not apply to a retaining wall on a street erected by the highway authority.

Hoads to be
set up during
building
operations.

48.—(1) Every person intending to build or take down any building or to alter or repair the outward part of any building in or abutting on any road in the county being a road repairable by the inhabitants at large shall if required by the Council—

- (a) before beginning the same cause close-boarded hoards or fences to be put up to the satisfaction of the Council in order to separate the building from the road ;
- (b) make a convenient covered platform and handrail to serve as a footway for passengers outside such hoard or fence ;
- (c) maintain such hoard or fence with such platform and handrail as aforesaid in good condition to the satisfaction of the Council during such time as they may require and cause the same to be sufficiently lighted during the night ; and
- (d) remove such hoard or fence with such platform and handrail as aforesaid when required by the Council.

(2) Any person aggrieved by a requirement of the Council under the preceding subsection may appeal to a court of summary jurisdiction.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

10 & 11 Vict.
c. 34.

53 & 54 Vict.
c. 59.

(4) The provisions of section 80 of the Towns Improvement Clauses Act 1847 and of section 34 of the Public Health Acts Amendment Act 1890 shall not apply to any building operations in respect of which the Council have made requirements under this section.

(5) In the application of this section to a trunk road the powers thereof may be exercised with the consent of the Minister of Transport by the authority who are for the time being acting as his agent under the Trunk Roads Acts 1936 and 1946 with respect to that trunk road.

Restriction on
buildings under
footways.

49.—(1) After the passing of this Act no part of any building (including the foundations) shall except with the consent of the local authority and (where the local authority is not the highway authority) the highway authority be constructed so as to extend under the footway of any street at a less depth than six feet below the surface of such footway.

(2) Any person aggrieved by the withholding of a consent under the preceding subsection may appeal to a court of summary jurisdiction.

(3) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(4) Nothing in this section shall extend or apply to the construction of any building (not being a house or building to be used as offices) by any railway canal or inland navigation undertakers in the exercise of their statutory powers.

50.—(1) Where the plans of any new building in a district intended or adapted for use as a house have been deposited with the local authority of that district in pursuance of building byelaws they may by notice prohibit either the erection of the building or the sale letting or occupation thereof (as may be specified in the notice) until sufficient means of communication are provided between the building and a street which either is a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with street byelaws.

(2) Any such notice shall be given to the person by whom or on whose behalf the plans were deposited—

(a) before or together with the notice required to be given under subsection (2) of section 64 of the Act of 1936 ; or

(b) where the plans have been passed but the erection of the building has not begun before the passing of this Act at any time before the erection thereof has begun ;

and the prohibition imposed by any such notice shall be binding on successive owners of the building.

(3) A copy of any notice given under subsection (1) of this section shall be sent to the area board concerned and such area board may lower any mains pipes or apparatus situate in or under such means of communication to such depth below the surface of the means of communication not exceeding four feet measured from the upper side of any such main pipe or apparatus as may be necessary and the cost reasonably incurred by them in so doing shall be repaid to them by the local authority who may recover the same from the person by whom or on whose behalf the plans were deposited.

(4) If it appears to the local authority to be necessary any such notice may require that the provision of the means of communication shall include the carrying out of constructional work not exceeding that required for a new street by street byelaws.

(5) If any person contravenes any notice under this section he shall be liable to a penalty not exceeding twenty pounds and the local authority may themselves provide the means of communication to which the notice refers and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the

PART III
—cont.

Law of Property (Amendment) Act 1926 with respect to the avoidance of any such notice for want of registration as a local land charge.

Fencing and
lighting of
obstructions in
highways.

51.—(1) Where in any highway repairable by the inhabitants at large any danger or obstruction is caused or is likely to be caused to persons or vehicles using such highway by reason of the erection thereon or thereover of any hoarding or scaffolding or the deposit thereon or therein of any material or of the presence thereon or therein of any defective gully grid grating manhole or other cover step area grate or other fitting or structure of whatsoever character or description (all of which are in this section included in the expression “defective fitting or structure”) the surveyor to the highway authority may cause proper boards or fences to be put up for the protection of passengers or vehicles and may cause such hoarding or scaffolding or such boards or fences to be lighted during the hours of darkness.

(2) Any expenses reasonably incurred by the highway authority in erecting or removing any such board or fence or in lighting any such hoarding scaffolding board or fence shall be recoverable from the owner of such hoarding scaffolding or material or of the defective fitting or structure or from the person or persons responsible for the erection of the hoarding or structure or for the deposit of the material on over or in the highway or for the condition of the defective fitting or structure.

(3) The provisions of this section shall not apply in cases where there is a duty to secure the observance of the requirements of paragraphs (a) to (e) of subsection (1) of section 8 of the Act of 1950.

G Private streets

Urgent repairs
of private
streets.

52.—(1) A local authority may in any street in their district not being a highway repairable by the inhabitants at large execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the general rate fund:

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds for each one hundred yards of the length of the street.

(2) The exercise by a local authority of their powers under this section shall not prejudice their powers or the powers of the highway authority under any statutory provision for the time being in force in the district of the local authority relating to private street works or private street improvement expenses or

7 Edw. 7. c. 53. under section 19 of the Public Health Acts Amendment Act 1907.

53. If—

PART III
—cont.

Evasion by
owners of
private street
works
expenses.

- (a) any owner of land fronting adjoining or abutting on a private street in the county transfers the part or any portion of the part of that land which fronts adjoins or abuts on that street ; and
- (b) any expenses of private street works in or in relation to that street are apportioned on that part or portion of that land ; and
- (c) the highway authority are unable to recover those expenses in whole or in part from the person to whom that part or portion of the land was transferred or by the sale thereof ; and
- (d) a court of summary jurisdiction is satisfied that the transfer was intended for the purpose of evading the payment of any expenses of private street works ;

then the expenses so apportioned or so much thereof as has not been recovered by the highway authority may to such extent as the court may determine be recovered from the owner in the same manner as expenses of private street works may be recovered as though he had not made the transfer.

54.—(1) Where the termination of a new street not being a highway repairable by the inhabitants at large abuts on any highway so repairable and the use of such street involves passage across or interference with any part of such highway the highway authority may require the person by whom such street has been or is being laid out or constructed to construct across such part of the highway a carriage-crossing of such materials and in such manner as they may prescribe.

Carriage-
crossings at
ends of private
streets.

(2) Any person aggrieved by a requirement of the highway authority under the preceding subsection may appeal to a court of summary jurisdiction.

(3) Not less than twenty-eight days before prescribing the manner in which a carriage-crossing shall be constructed under subsection (1) of this section the highway authority shall give notice thereof to any statutory undertakers any of whose mains pipes or apparatus would be situate in or under such carriage-crossing and shall if requested by such undertakers require the lowering of any such mains pipes or apparatus to such depth below the surface of the carriage-crossing not exceeding four feet measured from the upper side of any such mains pipes or apparatus as the undertakers may prescribe and the work of such lowering may be carried out by the undertakers and the cost reasonably incurred by them in so doing shall be repaid to them by the highway authority who may recover the same from the person and in the manner from whom and in which expenses are recoverable under subsection (4) of this section.

PART III
—cont.

(4) If the highway authority require the construction of any carriage-crossing across any part of a highway repairable by the inhabitants at large they may execute such works as may be necessary to secure compliance with such requirement and recover the expenses of so doing from the person by whom such street has been or is being laid out or constructed.

(5) Nothing in this section shall impose on the person by whom such street has been or is being laid out or constructed any obligation to maintain any crossing constructed in pursuance of a requirement under this section.

(6) Nothing in this section shall extend or apply to any such new street as aforesaid in any case where a certificate of the surveyor of the highway authority made before the passing of this Act certified that such street had before the first day of July one thousand nine hundred and fifty been completed in accordance with plans and specifications approved and required by the highway authority as a condition of declaring the street to be a highway repairable by the inhabitants at large but had not at that date been taken over by the highway authority.

Application of
Act of 1892 to
parts of public
streets.

55.—(1) Notwithstanding anything in the Private Street Works Act 1892 where it appears to a highway authority that by reason of additions made otherwise than by the giving up for the purpose by such highway authority of lands owned by them to an existing footpath bridle-path or other right of way repairable by the inhabitants at large (not being or comprising a carriageway) a new street has been formed the highway authority may in respect of such street or any part of such street carry out private street works under the provisions of the said Act of 1892 and apportion the expenses thereof on the premises fronting adjoining or abutting on such street or such part thereof as if no part of the said street was so repairable.

(2) Notwithstanding anything in the said Act of 1892 the highway authority may under the provisions of that Act carry out private street works throughout the width of a street notwithstanding that part of the width consists of a highway repairable by the inhabitants at large but save in a case falling within the provisions of subsection (1) of this section the highway authority shall be entitled to apportion against the premises liable to be charged therewith only such part of the expenses as relates to the portion of the street which is not so repairable.

(3) For the purposes of any apportionment under subsection (2) of this section premises fronting adjoining or abutting on a street shall be deemed to front adjoin or abut on the portion of the street which is not repairable by the inhabitants at large.

(4) In this section the expression “private street works” means works executed under the said Act of 1892.

56. The power of a highway authority under section 15 of the Private Street Works Act 1892 to contribute the whole or a portion of the expenses incurred by them in executing private street works with respect to any street or part of a street shall be extended so as to cover also the contribution of the whole or any portion of the amount which would otherwise be apportioned and charged under that Act in respect of the said expenses against any premises of which only a flank fronts adjoins or abuts on such street or part of a street and the amount which would otherwise so be apportioned and charged against any such premises shall be reduced by the amount of the contribution made by the highway authority under this section in respect of such premises.

PART III
—cont.

Extension of power to contribute to expenses of private street works.

H Footpaths

57.—(1) Where the owner or occupier of any premises in the county which abut on any street repairable by the inhabitants at large habitually uses or permits to be used any grass verge or kerbed or paved footway in the street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from those premises the highway authority may by notice to the owner or occupier (as the case may be) either—

Crossings over footways.

- (a) require the construction across the grass verge or footway of a carriage-crossing constructed of such materials and in such manner as may be specified in the notice ; or
- (b) in the case of a footway require it to be strengthened or adapted in such manner as may be so specified ; or
- (c) impose such other reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as may be so specified :

Provided that this subsection shall not apply to any premises used exclusively for agricultural purposes within the meaning of the Act of 1947.

(2) Any person aggrieved by a requirement of or a condition imposed by the highway authority under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If the highway authority make any requirement under paragraph (a) or paragraph (b) of subsection (1) of this section they may execute such works as may be necessary to secure compliance with that requirement and may recover the expenses of so doing from the owner or occupier.

(4) If the highway authority impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a penalty not exceeding five pounds.

PART III
—cont.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

(6) Section 18 of the Public Health Acts Amendment Act 1907 shall if in force in a district cease to be in force therein and if not in force in a district shall not be declared to be in force therein and the following provisions of this subsection shall have effect as respects streets in such district which are repairable by the inhabitants at large:—

- (a) Any person desiring to form a carriage-crossing across a grass verge or footway in any such street or to strengthen or adapt a part of any such footway as a carriage-crossing shall apply in writing to the highway authority giving particulars of the work proposed;
- (b) The highway authority may approve the work proposed either with or without modifications or propose alternative work or reject the application;
- (c) The highway authority shall give the applicant notice of their decision under the last foregoing paragraph and if they approve the work proposed or propose alternative work shall furnish him with an estimate of the cost of the work as approved or proposed by them;
- (d) The applicant may deposit with the highway authority the amount of the said estimate and require them to execute the work as approved or proposed by them but shall not himself execute any such work;
- (e) As soon as practicable after such a deposit has been made the highway authority shall execute the work as approved or proposed by them and any difference between the sum deposited and the actual cost of the work shall be paid to or by the highway authority by or to the applicant as the case may require.

Maintenance
of footpaths
etc.

58.—(1) The owner of every house fronting adjoining or abutting on a highway which is not repairable by the inhabitants at large shall maintain the footpath on the frontage of such house and the approach to such house from the highway (exclusive of so much of such footpath or approach as passes through the garden of or through any land within the curtilage of such house) in accordance with the reasonable requirements of the highway authority.

(2) Any person aggrieved by a requirement of the highway authority under this section may appeal to a court of summary jurisdiction.

(3) Any person who contravenes the provisions of this section after the expiration of a period of twenty-eight days (or such longer period as may be allowed by the highway authority) from the receipt of notice from the highway authority shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

PART III
—cont.

I Miscellaneous

59. Where in any street repairable by the inhabitants at large within the county any danger or obstruction is caused or is likely to be caused to persons or vehicles using such street or the footpath thereof by reason of the deposit thereon or thereover of coal coke or wood (other than such deposit for the purpose of delivery through a coal-hole in such footpath) the supplier or if such supplier can show that the person supplied requested such deposit then the person supplied with such coal coke or wood shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Control of
dumping of
coal etc. in
streets.

60.—(1) No person (other than a person selling offering or exposing for sale or depositing for sale any food goods provisions articles or things at any market or fair for which he has paid a toll stallage or rent) shall in the county—

Sale of food
and articles on
verges etc.

(a) sell or offer or expose for sale ; or

(b) deposit for sale ;

on the verge of a trunk road or a road classified by the Minister of Transport under the Ministry of Transport Act 1919 in Class I or Class II or on any roadside waste adjacent thereto any food goods provisions articles or things in such a manner that any danger or obstruction is caused or is likely to be caused to persons or vehicles using such road or the footpath adjacent to such verge or roadside waste by—

9 & 10 Geo. 5.
c. 50.

(i) such sale or offer or exposure for sale or deposit for sale ; or

(ii) a person buying or examining such food goods provisions articles or things ; or

(iii) a vehicle which had been used by such last-mentioned person.

(2) If any person contravenes the provisions of this section he shall be liable to a penalty not exceeding forty shillings.

61.—(1) No person shall mix mortar or any like substance in any street in the county repairable by the inhabitants at large except upon such board or in such receptacle as will protect the street from such mortar or substance:

Mixing of
mortar in
streets.

Provided that this section shall not apply to the mixing in any street of mortar or like substance for the purposes of making up repairing altering or improving such street.

PART III
—cont.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding forty shillings.

Summary
recovery of
damages for
negligence.

62. Any compensation recoverable by the Council or any local authority or highway authority or a joint board or a joint committee of local authorities or a parish council for damage caused by negligence to any lamp or lamp-post belonging to them or any apparatus or equipment provided by them in any street or public place shall if the amount thereof does not exceed twenty pounds be recoverable summarily as a civil debt.

Exercise by
Council of
powers with
respect to
county roads.

63.—(1) The Council shall with respect to county roads (not being claimed roads) and roads constructed by the Council or by some person under agreement with them which when completed are intended to become county roads have the functions of an urban district council or a local authority under the enactments mentioned in this section as amended by any subsequent enactment and those enactments shall apply accordingly.

(2) The enactments referred to in this section are as follows:—
The Towns Improvement Clauses Act 1847 (as incorporated with the Public Health Act 1875 as amended by the Act of 1936)—

Section 68 (Houses projecting beyond line of street when taken down to be set back);

Section 69 (Future projections of houses &c. to be removed on notice);

Section 70 (Commissioners may cause existing projections to be removed and compensation to be made);

Section 71 (Doors in future to be made to open inwards);

Section 72 (Doors opening outwards may be altered by commissioners);

Section 73 (Coverings for cellar doors to be made by occupier);

Section 74 (Waterspouts to be affixed to houses or buildings);

Section 75 (Ruinous or dangerous buildings to be taken down or secured by owners &c.);

Section 76 (The expenses to be levied by distress on the owner);

Section 77 (If owner cannot be found commissioners may take the house or ground making compensation provided by 8 & 9 Vict. c. 18);

Section 78 (Commissioners may sell the materials restoring to the owner overplus arising from the sale) ;

Section 81 (Penalty for not lighting deposits of building materials or excavations) ;

Section 82 (Penalty for continuing deposits of building materials or excavations an unreasonable time) ;

Section 83 (Dangerous places to be repaired or inclosed) :

The Town Police Clauses Act 1847 (as incorporated with the 10 & 11 Vict. Public Health Act 1875)— c. 89.

Section 28 (Penalty on persons committing any of the offences herein named) so far as it relates to the following offences:—

Every person who places or leaves any furniture goods wares or merchandise or any cask tub basket pail or bucket or places or uses any standing place stool bench stall or showboard on any footway or who places any blind shade covering awning or other projection over or along any such footway unless such blind shade covering awning or other projection is eight feet in height at least in every part thereof from the ground ;

Every person who places hangs up or otherwise exposes to sale any goods wares merchandise matter or thing whatsoever so that the same project into or over any footway or beyond the line of any house shop or building at which the same are so exposed so as to obstruct or incommode the passage of any person over or along such footway :

The Public Health Acts Amendment Act 1890—

Section 35 (As to repair of cellars under streets) :

The Public Health Acts Amendment Act 1907—

Section 30 (Dangerous places to be repaired or enclosed) ;

Section 31 (Fencing lands adjoining streets) :

The Public Health Act 1925—

Section 24 (Projections against or in front of houses or buildings).

(3) The Council shall not in the exercise of the powers of this section perform or discharge any of the functions under the enactments mentioned in this section in any district in which such enactments are for the time being in force except at the

PART III
—cont.

request of and by agreement with the local authority of such district and during the continuance of such agreement such functions shall cease to be exercisable by such local authority in relation to the road to which the agreement applies:

Provided that nothing in this subsection shall prevent the Council from exercising any powers conferred on them by any other enactment.

(4) Any agreement made under the provisions of this section may relate to any one or more roads in a district.

(5) The functions conferred on the Council under the enactments referred to in this section shall not be exercised with respect to or so as to affect any advertisement. For the purpose of this section "advertisement" has the same meaning as in section 119 of the Act of 1947.

As to exercise of certain provisions of Part III of Act with respect to certain roads.

64.—(1) The powers of the sections of this Act hereinafter mentioned:—

Section 29 (Adjustment of boundaries of county roads);
and

Section 48 (Hoards to be set up during building operations);

shall not be exercisable by the Council in respect of any claimed road or any unclassified road other than a county road but the said powers may be exercised by the local authority in whom such road is vested and the said sections shall be read and have effect accordingly as if references to such local authority were respectively substituted therein for the references to the Council.

(2) The Council may if they think fit contribute to the expenses incurred by any such local authority in exercising any of the said powers.

For protection of Postmaster-General.

65.—(1) Where pursuant to section 29 (Adjustment of boundaries of county roads) of this Act or to the said section 29 as applied and extended by section 64 (As to exercise of certain provisions of Part III of Act with respect to certain roads) of this Act the Council or a local authority enter into an agreement with a person having a legal interest in land adjoining any road for the conveyance to that person of the site of any part of the road and immediately before the date on which the site ceases to be part of the road there was under in upon over along or across such site any telegraphic line belonging to or used by the Postmaster-General the Postmaster-General shall continue to have the same powers in respect of that line as if such site had remained part of the road:

Provided that if any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to

41 & 42 Vict.
c. 76.

(8) of section 7 of the Telegraph Act 1878 shall apply to the

alteration and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the said person desiring the alteration.

PART III
—cont.

(2) Where any highway or portion of a highway is stopped up in pursuance of an order made under section 32 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the highway authority and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up :—

- (a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (3) of this section unless before the expiration of that period the Postmaster-General has given notice to the highway authority of his intention to remove the line or that part thereof as the case may be ;
- (b) The Postmaster-General may by notice to the highway authority in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it ;
- (c) The Postmaster-General shall be entitled to recover from the highway authority the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require ;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the highway authority and the provisions of the Telegraph Acts 1863 to 1949 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(3) As soon as the whole or any portion of any highway has been stopped up the highway authority shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (2) of this section shall commence to run from the date on which such notice is sent.

PART III
—cont.

(4) In this section the expressions “alter” and “telegraphic line” have the same meanings as in the Telegraph Act 1878.

Application of
Act of 1950
to certain
provisions.

66.—(1) Subject to the provisions of section 65 (For protection of Postmaster-General) of this Act the code in Part II of the Act of 1950 which relates to cases where apparatus is affected by road works shall have effect as if any stopping up diversion or alteration of any road or highway carried out following—

- (a) an agreement entered into under section 29 (Adjustment of boundaries of county roads) of this Act ;
- (b) an agreement entered into under the said section 29 as applied and extended by section 64 (As to exercise of certain provisions of Part III of Act with respect to certain roads) of this Act ;
- (c) an order made under section 32 (Stopping up and diversion of highways) of this Act ;

were such a work as is mentioned in paragraph (a) of subsection (1) of section 21 of the Act of 1950:

Provided that for the purposes of Part I of the Fourth Schedule to the Act of 1950 notices given and plans furnished by an appropriate authority under paragraph (2) of section 291 (For protection of area boards) of this Act shall be deemed to have been given and furnished in pursuance of the said Part I.

(2) The code in Part II of the Act of 1950 which relates to cases where apparatus is affected by road works shall have effect as if the works required to be carried out under section 23 (Rounding or splaying off corners at street junctions) of this Act were mentioned in paragraph (a) of subsection (1) of section 21 of the first-mentioned Act and as if the person required to carry out the works were a promoting authority.

PART IV

OPEN SPACES CAMPS AND PLEASURE GROUNDS

Interpretation
of Part IV.

67. In this Part of this Act unless the context otherwise requires—

“camping ground” means any area of land on which movable dwellings are situated or which is provided for the placing of movable dwellings ;

“movable dwelling” includes—

- (a) any tent ;
- (b) any structure capable of being moved from place to place ; and

(c) any van cart carriage truck tramcar railway-carriage motor-car caravan trailer omnibus or other vehicle ;

used or intended to be used for the purpose of human habitation (whether temporarily or otherwise) but does not include—

(i) any tent structure or vehicle temporarily used by shepherds labourers or other persons for farming agricultural or other like purposes or in connection with building operations ;

(ii) any tent structure or vehicle temporarily used for the service of the Council or of any local authority or other public authority ;

(iii) any canal boat or any other boat ;

(iv) any shelter provided for the treatment of tuberculosis or used in connection with an open air school ;

(v) any vehicle used by the commission in connection with the maintenance and repair of their undertaking ; or

(vi) any van or similar vehicle belonging to any statutory undertakers and any trailers drawn by such van if and so long as the van and trailers are used by those undertakers as travelling showrooms or for the purpose of giving exhibitions and demonstrations of the electrical gas or water appliances provided by those undertakers and the manner in which such appliances can be used ;

“ occupier ” in relation to a movable dwelling shall be deemed to include an owner ;

“ open space ” has the same meaning as in the Open Spaces 6 Edw. 7. c. 25. Act 1906.

A Open spaces

68.—(1) The Council may contribute towards the expenses incurred by a local authority or parish council or joint board or committee of any local authorities or any trustees or public bodies in connection with the acquisition laying out and maintenance of land as and for any open space for public use and recreation. Power for Council to contribute to open spaces.

(2) For the purposes of this section the expression “ local authority ” shall include the lord mayor aldermen and citizens of the city of Nottingham.

69. When any part of a park or pleasure ground provided by or under the management and control of a local authority is set apart by them under paragraph (b) of subsection (1) of section 76 Power to let parks etc. for games.

PART IV
—cont.

of the Public Health Acts Amendment Act 1907 for the purpose of cricket football or any other game or recreation the local authority may permit the exclusive use by any club or other body of persons of—

- (a) any portion of the part set apart as aforesaid ; and
- (b) the whole or any part of any pavilion convenience refreshment room or other building provided under that section ;

subject to such charges and conditions as the local authority think fit:

Provided that nothing in this section shall empower a local authority to permit at one and the same time the exclusive use of—

- (i) more than one-third of the area of any park or pleasure ground ; or
- (ii) more than one-quarter of the total area of all the parks and pleasure grounds provided by them or under their management and control.

Boating pools. **70.**—(1) A local authority may in any park pleasure ground or open space provided by them or under their management and control provide a boating pool.

(2) A local authority may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of any boating pool under this section and references in the following provisions of this section to a boating pool so provided shall include references to any buildings provided or works executed under this subsection and to anything with which any such building or boating pool is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) A local authority may either—

- (a) themselves manage any boating pool provided under this section making such reasonable charges for the use thereof or admission thereto as they think fit ; or
- (b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) (a) If section 44 of the Public Health Acts Amendment Act 1890 is in force in a district the powers of the local authority under subsection (2) of that section with respect to a piece of water in a park or pleasure ground provided by them shall be extended so as to be exercisable with respect to any boating pool provided under this section.

(b) If the said section 44 is not in force in a district the local authority may either themselves provide and let for hire or may license any person to let for hire any pleasure boats on a boating pool provided under this section and may make byelaws for

regulating the numbering and naming of such boats the number of persons to be carried therein the boathouses and mooring places for the same and for fixing rates of hire and the qualifications of boatmen and for securing their good and orderly conduct while in charge of any boat.

PART IV
—cont.

71. For the purpose of providing a parking place under section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 a local authority may with the consent of the Minister utilise any part of a park pleasure ground or open space provided by them or under their management and control: Parking places in parks etc. 25 & 26 Geo. 5. c. 47.

Provided that the part of any park pleasure ground or open space utilised under this section shall not exceed one-eighth of the total area thereof or one acre whichever is the less.

B Movable dwellings camping grounds and fairs

72.—(1) Where it appears to a local authority—

Court may prohibit movable dwellings in certain areas.

- (a) that the amenities of any part of their district are prejudicially affected by the presence of or conditions arising from any movable dwelling or movable dwellings in their district; or
- (b) that annoyance is caused to the residents in or visitors to any part of their district by reason of the noisy indecent or other offensive conduct of the occupiers of or persons frequenting any movable dwelling or movable dwellings in their district;

the local authority may make complaint to a court of summary jurisdiction and the court may by order—

- (i) require the removal by the occupier or occupiers thereof within such period as may be prescribed by the order of the movable dwelling or of all or any particular one or more of the movable dwellings to which the complaint relates; and
- (ii) prohibit any movable dwelling being placed on or limit the number or define the class of movable dwellings to be at any one time situate within the whole or some part of an area to be specified in the order.

(2) Any person aggrieved by any order made by a court of summary jurisdiction under subsection (1) of this section may appeal to the next practicable court of quarter sessions holden in or for the county.

(3) An order made by a court of summary jurisdiction under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings shall take effect as from the expiration of

PART IV
—cont.

fourteen days from the first publication of the terms of the order in the local newspaper under subsection (4) of this section and the area specified in such order shall not extend beyond the distance of two hundred yards from the movable dwelling or all of the movable dwellings to which the complaint related and no limitation or definition in such an order shall operate so as to prevent the retention on the area specified in the order of any movable dwelling not being a movable dwelling to which the complaint related.

(4) As soon as practicable after the making of an order under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings the terms of the order shall be published by the local authority or local authorities of the district or districts within which the area specified in the order is situate in one or more local newspapers circulating in their district or districts and by placards posted in conspicuous positions in or near to some part of that area and such placards shall be left so posted so long as the order is in force.

(5) (a) Any occupier of a movable dwelling who fails to comply with any order of the court made under subsection (1) of this section requiring the removal of a movable dwelling within the period prescribed by the order shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the local authority on whose complaint the order was made may themselves at any time after the expiration of the said period enter on the land and remove the movable dwelling and recover the expense of so doing from the occupier or occupiers.

(b) Any person who places or retains any movable dwelling in contravention of any order of the court made under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the local authority on whose complaint the order was made may themselves enter on the land and remove the movable dwelling in respect of which the offence has been committed and recover the expense of so doing from the person guilty of the offence.

(6) (a) Where a court of summary jurisdiction has made an order under subsection (1) of this section prohibiting any movable dwelling being placed or limiting the number or defining the class of movable dwellings an application for the rescission of the order may be made to the court—

(i) at any time by the local authority on whose complaint the order was made ; or

- (ii) at any date not being less than three years from the date on which the order was made by any person deeming himself aggrieved by it provided he gives to the local authority not less than fourteen days' notice of his intended application ;

and the court may on the hearing of any such application rescind the order.

(b) If the court rescinds the order notice of the rescission of the order shall as soon as practicable be published by the local authority or local authorities of the district or districts within which the area to which the order related is situate in one or more local newspapers circulating in their district or districts and the local authority or local authorities shall forthwith take down and remove all placards previously posted by them in or near to that area in pursuance of subsection (4) of this section.

(7) An order made under this section shall not operate so as to prohibit any development or require the discontinuance of any use for which planning permission under Part III of the Act of 1947 has already been granted otherwise than by a development order but without prejudice to the power of the court by order to require the removal of any particular one or more movable dwellings with respect to which the local authority have complained on any of the grounds mentioned under paragraph (b) of subsection (1) of this section.

73.—(1) A local authority for the purpose of securing the Byelaws as to amenities of their district in relation to the use of camping grounds and movable dwellings situate thereon may make bye-laws with respect to any camping grounds within their district whether provided by the local authority or not—

- (a) for preventing the amenities of their district being prejudicially affected by the state or condition of any such camping ground ;
- (b) for securing the good and orderly conduct of persons frequenting any such camping ground and of the occupiers of the movable dwellings situate thereon ;
- (c) for preventing annoyance to the residents in or visitors to their district by the conduct of the occupiers of or persons frequenting movable dwellings situate on any such camping ground.

(2) (a) A copy of any byelaws made by a local authority under this section shall be appended to any licence granted by them under section 269 of the Act of 1936.

(b) A local authority in granting any licence under the said section 269 shall not attach any condition which is inconsistent with any byelaws made by them under this section.

PART IV
—cont.

Saving from
last two
preceding
sections.

74. The last two preceding sections of this Act shall not apply to—

- (a) any movable dwelling or camping ground provided by or belonging to or used by any duly constituted religious or charitable society ;
- (b) any movable dwelling or camping ground provided by or belonging to or used by any association incorporated by royal charter or any organisation constituted by any such last-mentioned association in pursuance of their charter ;
- (c) any camping ground provided by or belonging to or used by members of any other duly constituted society or body operating throughout Great Britain which by their rules undertake for the management of the camping grounds provided by or belonging to them and used by their members and for the good conduct of their members when in camp ;
- (d) any movable dwelling situate on any such camping ground as is referred to in the foregoing paragraph (c) while the dwelling is occupied or used by the members of any society or body referred to in that paragraph ;
- (e) any movable dwelling which is used by a member of any duly constituted society or organisation which by their rules undertake the responsibility for the good conduct of their members when in camp and for their proper use of movable dwellings ; or
- (f) any movable dwelling which belongs to a person who is the proprietor of a travelling circus roundabout amusement fair stall or store (not being a pedlar hawker or costermonger) and which is regularly used by him in the course of travelling for the purpose of his business:

Provided that—

- (i) the exemptions conferred by the foregoing paragraphs (a) and (b) in respect of any movable dwelling or camping ground referred to in those paragraphs shall apply only for so long as the society association or organisation by or to which such movable dwelling or camping ground is provided or belongs or is used shall continue to make and enforce reasonable arrangements for the maintenance of good order amongst the persons using the movable dwelling and for the proper management of the camping ground ;
- (ii) the exemptions conferred by the foregoing paragraphs (c) and (d) in respect of any camping ground or movable dwelling referred to in those paragraphs shall only apply so long as the society or body by or

to which such camping ground is provided or belongs or is used or by the members of which such movable dwelling is occupied or used are duly exercising responsibility for the management of the camping ground and for the good conduct of their members when in camp thereon ;

- (iii) the exemption conferred by the foregoing paragraph (e) in respect of a movable dwelling used by a member of a society or organisation shall apply only so long as that society or organisation continues to enforce good conduct among its members and their proper use of movable dwellings ;
- (iv) the exemption conferred by the foregoing paragraph (f) on any person referred to in that paragraph shall apply only so long as such person is not guilty of any misconduct ; and
- (v) if any society association or organisation referred to in the said paragraphs (a) and (b) are using any camping ground provided by a local authority or if any person being a member of any such society association or organisation or a person referred to in the said paragraph (f) is occupying or using a movable dwelling situate on any camping ground so provided the members of such society association or organisation or such person shall while camping on or occupying or using any movable dwelling situate on that camping ground comply with any byelaws made by the local authority under this Part of this Act respecting that camping ground.

75.—(1) A local authority may subject to the approval of the Minister by agreement purchase or take on lease land within their district and use the same or any other land for the time being belonging to them for the purpose of providing camping grounds for any or for any particular class or number of movable dwellings as may be prescribed from time to time by the local authority.

Provision of
camping
grounds by
local
authorities.

(2) The local authority before applying for the approval of the Minister of the purchase taking on lease or use by them of any land under this section shall give notice of their proposal to every owner of land contiguous to the land proposed to be purchased taken on lease or used by them and also by advertisement in a local newspaper circulating in their district and in such other manner (if any) as the Minister may direct.

The said notice shall state the matters mentioned in paragraph (d) of subsection (3) of this section and a date (not being less than twenty-one days from the date of the notice) by which

PART IV

—cont.

and the manner in which any person aggrieved by the proposal may make representations thereon to the Minister and shall require that any such person shall at the same time send a copy of his representations to the clerk of the local authority.

(3) Before signifying approval of the purchase taking on lease or use by a local authority of any land under this section the Minister shall consider any representations on the proposal of the local authority which may be duly made with respect to any relevant circumstances and particularly as to—

- (a) the general interests of the public and the neighbourhood in relation to such proposal including the effect of the provisions of the proposed camping ground on the amenities of surrounding properties ;
- (b) the ability of the occupiers of movable dwellings to comply with any byelaws respecting the use of camping grounds made by the local authority under this Part of this Act ;
- (c) the distance between and area of camping grounds in the neighbourhood whether provided by the local authority under this section or not ; and
- (d) the area and situation of and the condition as to the provision of water supply sanitation and otherwise proposed to be prescribed by the local authority with respect to the proposed camping ground ;

and may subject to the provisions of this section signify approval of the said proposal with or without modifications or may withhold such approval.

(4) Before signifying such approval the Minister may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held.

(5) The local authority shall give at least fourteen days' notice of the intention to hold such inquiry by advertisement in a local newspaper circulating in their district and shall also give similar notice in writing to every person who has duly made any representation and has not withdrawn the same.

(6) Where a local authority have provided under this section a camping ground the occupier of any movable dwelling may (subject to any limitation on the number or definition of the class of movable dwellings which may have been prescribed by the local authority with respect to the use of that camping ground for movable dwellings) encamp upon that camping ground on payment of such fee as may be prescribed by the local authority.

76.—(1) A local authority may make byelaws—

- (a) for regulating the hours during which pleasure fairs and roller-skating rinks may be open to the public ;
- (b) for securing safe and adequate means of ingress to and egress from any pleasure fair or roller-skating rink ;
- (c) for the prevention and suppression of nuisances and preserving sanitary conditions cleanliness order and public safety at any pleasure fair or roller-skating rink.

(2) In this section—

(a) the expression “ pleasure fair ” means any place—

(i) which is for the time being used wholly or mainly for providing (whether or not in combination with any other entertainment) any entertainment to which this section applies ; and

(ii) for admission to which or for the use of the contrivances in which a charge is made ;

(b) the expression “ roller-skating rink ” means any place which is for the time being used wholly or mainly for roller-skating and for admission to which a charge is made.

(3) Subject to the provisions of the next following subsection the entertainments to which this section applies are the following :—

- (a) circuses ;
- (b) exhibitions of human beings or of performing animals ;
- (c) merry-go-rounds roundabouts swings switchback railways ;
- (d) coconut shies hoop-las shooting galleries ;
- (e) dodgems or other mechanical riding or driving contrivances ;
- (f) automatic or other machines intended for entertainment or amusement ;
- (g) anything similar to any of the foregoing.

(4) Nothing in this section or the byelaws made thereunder shall apply to—

- (a) any fair held by statute royal charter royal licence letters patent or ancient custom ; or
- (b) any place owned by or under the management and control of an authority having power to make byelaws with respect to entertainments provided at that place ; or
- (c) any entertainment which is not run for profit and is not carried on for more than seven consecutive days ; or
- (d) any entertainment the profits whereof are devoted to a religious or charitable purpose ; or

PART IV
—cont.

9 Edw. 7. c. 30.

(e) any entertainment in any permanent premises in respect of which a licence under the Cinematograph Act 1909 is for the time being in force.

(5) A local authority shall—

(a) not less than one month before making byelaws under this section furnish the Amusement 'Caterers' Association the Association of Amusement Park Proprietors of Great Britain and the Showmen's Guild of Great Britain with a draft of the proposed byelaws; and

(b) on submitting the byelaws to the Secretary of State for confirmation furnish him with a copy of any representations made to the local authority in writing by any of the said bodies and a statement showing the effect if any given to any such representation.

(6) Different byelaws may be made under this section for pleasure fairs and roller-skating rinks and for different kinds of pleasure fairs.

*C Miscellaneous*Provision of
bins for litter.

77.—(1) The Council a local authority or a parish council may provide and place and maintain on any road or roadside waste adjacent thereto or on any open space park or recreation ground belonging to or maintained by the Council local authority or parish council and on any other land within the county to which the public have access bins or other receptacles for the reception or deposit of litter and may from time to time empty and cleanse any such bins or receptacles :

Provided that the powers of this section shall not be exercised—

(a) as respects a road without the consent of the highway authority ;

(b) as respects an open space park or recreation ground without the consent of the Council local authority or parish council to whom the open space park or recreation ground belongs or by whom it is maintained ;

(c) as respects other land to which the public have access without the consent of the owner thereof.

(2) The Council may contribute to the expenses incurred by a local authority or a parish council in exercising the powers of this section.

PART V

POLICE

Music and
dancing
licences.

78.—(1) As from the appointed day in any district a place shall not be kept or used for the purposes of public dancing singing music or any other entertainment of the like kind (in this section referred to as "entertainment purposes") without a licence from the local authority under this section (in this section referred to as "a licence").

(2) The local authority may grant licences to such persons as they think fit to keep or use places specified in the licence for entertainment purposes on such terms and conditions and subject to such restrictions as they by the licence prescribe and may re-new such licences.

(3) In this section “entertainment purposes” shall not include the keeping of or the use of any place for the purposes of a travelling fair.

(4) A licence granted under this section shall be in force for one year or for such shorter period (to be stated in the licence) as the local authority on the grant of the licence shall determine unless it shall have been previously revoked :

Provided that the local authority may if they think fit grant a licence (in this section referred to as an “occasional licence”) for the use of any place for all or any of the purposes aforesaid on such one or more particular occasions only as may be specified in the licence.

(5) The local authority may transfer any licence granted under this section to such person as they think fit.

(6) (a) An applicant for the grant or transfer of a licence under this section shall give not less than twenty-eight days’ notice of his intention to make such application to the local authority and to the chief officer of police of the district and the applicant shall also furnish such particulars and give such other notices as the local authority may by regulation prescribe.

(b) An applicant for an occasional licence or for the renewal thereof need only give to the local authority twenty-eight days’ notice of his intention to make such application and need not give notice to the chief officer of police.

(c) An applicant for the renewal of a licence (other than an occasional licence) shall give to the local authority twenty-eight days’ notice of his intention to make such application.

(7) A person when making application under this section shall pay to the local authority such fee as the local authority may fix not exceeding—

	£	s.	d.
(a) in respect of an application for the grant or renewal of a licence (other than an occasional licence) for any period not less than one year	1	0	0
(b) in respect of an application for the grant or renewal of a licence for any period less than one year five shillings for every month or part thereof so however that the aggregate of the fees payable in any one year in respect of the same premises shall not exceed ...	1	0	0

PART V
—cont.

	s.	d.
(c) in respect of an application for the grant of an occasional licence	5	0
(d) in respect of an application for the transfer of a licence	5	0

and the fees paid on any application for the grant renewal or transfer of a licence may be retained by the local authority whether such licence is or is not granted renewed or transferred :

Provided that fees shall not be payable by any applicant for the grant renewal or transfer of a licence for a purpose which in the opinion of the local authority is the purpose of a charitable or other like entertainment.

(8) Any place licensed under this section for entertainment purposes may be open for those purposes after the hour stated in the licence—

- (a) with the written permission of the local authority ; and
- (b) on any special occasion when a special order of exemption shall have been granted under section 57 of the Licensing (Consolidation) Act 1910 in respect of that place ;

10 Edw. 7. &
1 Geo. 5. c. 24.

until the hour specified in such permission or special order (as the case may be) as the hour for closing.

(9) On and after the appointed day Part IV of the Public Health Acts Amendment Act 1890 shall cease to be in force in any part of the county where that Part was in force immediately before the appointed day and thereafter shall not be adopted by the local authority of any district or be declared to be in force therein.

(10) Nothing in this section shall affect the validity of any licence granted in respect of any place within any district under the said Part IV of the Public Health Acts Amendment Act 1890 and any such licence shall have effect as if it had been duly granted under this Act and shall subject to the provisions of this Act continue in force until the expiration of the period for which it was granted.

Boxing and
wrestling
licences.

79.—(1) In this section “boxing entertainment” and “wrestling entertainment” mean any public contest exhibition or display of boxing or wrestling (as the case may be) but do not include boxing or wrestling entertainments which are provided—

- (a) by travelling showmen at pleasure fairs ;
- (b) in premises licensed under the last foregoing section for music and dancing or under the Theatres Act 1843 provided that such licence continues to be in operation so long as such boxing or wrestling entertainment is in progress ;

6 & 7 Vict.
c. 68.

- (c) by bona fide organisations associations clubs or societies whether for juveniles or adults and whether corporate or unincorporate which are not carried on for profit ; or
- (d) by any university university college college of a university training college establishment of further education or school.

(2) As from the appointed day in any district a boxing or wrestling entertainment shall not be given elsewhere than in premises licensed for the purpose in accordance with the provisions of this section.

(3) A local authority may grant licences to such persons as they think fit to use the premises specified in the licence for the purpose of a boxing or wrestling entertainment on such terms and conditions and subject to such restrictions as they by the licence prescribe and may renew such licences.

(4) A licence granted under this section shall be in force for one year or for such shorter period (to be stated in the licence) as the local authority on the grant of the licence shall determine unless it shall have been previously revoked :

Provided that the local authority may (if they think fit) grant a licence (in this section referred to as an "occasional licence") for the use of any premises for a boxing or wrestling entertainment on such one or more particular occasions only as may be specified in the licence.

(5) The local authority may transfer any licence granted under this section to such person as they think fit.

(6) (a) An applicant for grant or transfer of a licence under this section shall give not less than twenty-eight days' notice of his intention to make such application to the local authority and to the chief officer of police of the district and the applicant shall also furnish such particulars and give such other notices as the local authority may by regulation prescribe.

(b) An applicant for an occasional licence or for the renewal thereof shall give to the local authority twenty-eight days' notice of his intention to make such application.

(c) An applicant for the renewal of a licence (other than an occasional licence) shall give to the local authority twenty-eight days' notice of his intention to make such application.

(7) A person when making application under this section shall pay to the local authority such fee as the local authority may fix not exceeding—

£ s. d.

- (a) in respect of an application for the grant or renewal of a licence (other than an occasional licence) for any period not less than one year

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PART V
—cont.

£ s. d.

- (b) in respect of an application for the grant or renewal of a licence for any period less than one year ten shillings for every month or part thereof so however that the aggregate of the fees payable in any one year in respect of the same premises shall not exceed 2 10 0
- (c) in respect of an application for the grant or renewal of an occasional licence 10 0
- (d) in respect of an application for the transfer of a licence... .. 5 0

and the fees paid on any application for the grant renewal or transfer of a licence may be retained by the local authority whether such licence is or is not granted renewed or transferred.

(8) Any premises used for the purpose of a boxing or wrestling entertainment although licensed under this section shall not be opened for that purpose except on the days and between the hours stated in the licence.

Penalties.

80. Any person who—

- (a) provides an entertainment to which the foregoing provisions of this Part of this Act apply without a licence appropriate for such entertainment under this Part of this Act; or
- (b) being the occupier or rated as occupier of any premises keeps or uses those premises or allows them to be kept or used for any such entertainment without a licence appropriate for such entertainment under this Part of this Act; or
- (c) being a person to whom a licence has been granted or transferred under this Part of this Act in respect of any premises keeps or uses those premises or allows them to be kept or used in contravention of the terms conditions or restrictions on or subject to which the licence was granted or transferred;

shall be liable—

- (i) in respect of an offence under paragraph (a) or (b) of this section to a penalty not exceeding fifty pounds; and
- (ii) in respect of an offence under paragraph (c) of this section to a penalty not exceeding twenty pounds;

and in either case to a daily penalty not exceeding five pounds.

Transmission
in case of
death.

81. In the event of death of the holder of a licence under this Part of this Act then until a legal personal representative of such deceased holder has been duly constituted the person carrying on at the premises the functions in respect of which the licence was granted shall be deemed to be the holder of the licence unless in the meantime it has been transferred to some other person.

82. The local authority may upon receiving from the holder of a licence under this Part of this Act for the time being in force a written request in that behalf accompanied by the licence cancel the licence.

PART V
—cont.

Cancellation
of licences.

83. Except in the case of an occasional licence under this Part of this Act there shall be affixed and kept up in some conspicuous place on or immediately over the outer side of the main entrance of every premises licensed under this Part of this Act an inscription so as to be easily legible in the following terms:—

Notice to be
affixed.

“Licensed in pursuance of Act of Parliament for
with the addition of words showing the purpose or purposes for
which the same are licensed.”

84.—(1) A police officer or any person appointed for the purpose by the local authority may at all reasonable times enter any premises licensed under this Part of this Act in which there is reason to believe that an entertainment to which the foregoing provisions of this Part of this Act apply is being or is about to be given with a view to seeing whether the provisions of this Part of this Act applicable to such an entertainment and the terms conditions or restrictions on or subject to which any licence under this Part of this Act has been granted are complied with.

Powers of
entry and
inspection.

(2) A police officer or any person appointed for the purpose by the local authority may if he shall be authorised in that behalf by a warrant granted by a justice of the peace enter any premises in respect of which there is reason to suspect that an offence under this Part of this Act is being committed.

(3) Every person who refuses to permit any such officer or person to enter or inspect any such premises in accordance with the provisions of this section shall for every such offence be liable to a penalty not exceeding twenty pounds.

85. If the holder of a licence granted renewed or transferred under this Part of this Act be convicted of any breach or disregard of any of the terms conditions or restrictions on or subject to which the licence has been granted renewed or transferred the licence may be revoked by the local authority.

Power to
revoke licences.

86. Any person aggrieved by the refusal of the local authority to grant renew or transfer a licence under this Part of this Act or by the revocation by the local authority of a licence or by any terms conditions or restrictions attached to such licence may appeal to a court of summary jurisdiction.

Initial appeals
under Part V.

87.—(1) No procession shall pass through the streets of a district unless written notice stating the route by which and the time at which it will so pass has been delivered at the office of the clerk of the local authority and the principal police station in the district at least thirty-six hours (exclusive of Sundays) before the time so stated.

Notice of
street
processions.

PART V
—cont.

(2) If any procession passes through the streets of a district in contravention of the foregoing subsection or by a route or at a time other than that stated in the notice delivered with respect thereto under that subsection any person organising or conducting the procession shall be liable to a penalty not exceeding five pounds.

(3) In this section the expression “ procession ” means any public or ceremonial procession or any circus procession or procession of wild animals :

Provided that nothing in this section shall apply to any public or ceremonial procession habitually held.

Police
telephone call
boxes and
shelters.

88.—(1) Subject to the provisions of this section the standing joint committee may place and maintain—

(a) such police telephone call boxes and installations ; and

(b) such shelters or boxes for the use of police constables ;

in such positions in any street park or public place in the county as they think fit.

32 & 33 Vict.
c. 73.

(2) Nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

(3) The standing joint committee shall not exercise the powers of this section—

(a) without the consent of the highway authority in any street ; or

(b) without the consent of the local authority in any park or public place belonging to such local authority ; or

(c) without the consent of the undertakers concerned—

(i) in or upon any bridge carrying a street over any railway canal or inland navigation or the approaches thereto or under a bridge carrying a railway canal or inland navigation over any street ; or

(ii) in any street belonging to and repairable by any transport undertakers and forming the approach to any station dock wharf or depot of such undertakers ; or

(iii) so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of such undertakers.

(4) Any consent required by this section shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the standing joint committee shall remove any box or shelter either at any time or at or after the expiration of a period if reasonably required so to do by the person giving the consent.

(5) Any question arising as to whether any consent required by this section has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any box or shelter has been unreasonably required shall—

(a) in the case of a consent of the Minister of Transport be referred to and determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers ;

(b) in the case of any other consent be referred to and determined by the Minister of Transport.

(6) In this section the expression “transport undertakers” means any railway dock canal inland navigation or passenger road transport undertakers.

89.—(1) If any person wilfully and without the consent of the standing joint committee or of the Council (as the case may require)—

(a) obstructs the access to any police telephone call box or installation provided by the standing joint committee or any shelter or box so provided for the use of police constables ; or

(b) removes obliterates alters defaces or obscures any plate or mark provided by the standing joint committee or by the Council (as the case may be) for indicating the position of any such call box installation shelter or box or the position of any fire hydrant ;

he shall be liable to a penalty not exceeding five pounds and the standing joint committee or the Council (as the case may require) may recover from him the expenses of removing the obstruction or replacing or making good the plate or mark.

(2) If any person—

(a) telephones or causes to be telephoned from any such call box any statement which he knows to be false ; or

(b) for the purpose of requiring the services of the police or an ambulance telephones or causes to be telephoned any such statement from a telephone call box provided in the county by the Postmaster-General ;

he shall be liable to a penalty not exceeding five pounds.

90. Any person who shall wilfully remove or otherwise interfere with any dustbin refuse bin or street orderly bin or other receptacle for the temporary deposit or collection of refuse dust ashes or rubbish or any street sand bin belonging to the Council or a local authority shall be liable to a penalty not exceeding forty shillings and the Council or the local authority (as the case may be) may recover the expenses of replacement and making good from such person.

Interference
with refuse
bins etc.

PART V
—cont.

Prohibition on solicitation of school children to sell or exchange articles etc. at schools.

91.—(1) While any child is entering or leaving any school provided or maintained by the Council as the local education authority or is entering or leaving any yard or playground appurtenant to any such school or is in any such yard or playground no person shall solicit such child—

- (a) to sell to such person any article or thing; or
- (b) to exchange with such person any article or thing for any other article or thing.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) In this section the expression “child” has the meaning assigned to it by section 114 of the Education Act 1944.

7 & 8 Geo. 6.
c. 31.

Derelict petrol tanks.

92.—(1) Where a tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose is kept on any premises in the county the occupier of the premises shall take all such steps as may be reasonably necessary to prevent danger from such container.

(2) Any officer of the Council or of the local authority concerned duly authorised by them may on producing a copy of his authority purporting to be signed by the clerk to the Council or the clerk of the local authority (as the case may be) require the occupier of the premises on which is situated any tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose to show him such container and permit him to ascertain whether steps have been taken to comply with the provisions of this section.

(3) Any person who after due warning contravenes the provisions of subsection (1) of this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) In this section the expression “petroleum spirit” has the meaning assigned to it by the Petroleum (Consolidation) Act 1928.

18 & 19 Geo. 5.
c. 32.

Provisions as to motor vehicles let for hire.

93. The provisions of the Town Police Clauses Act 1847 shall extend to empower the council of an urban district to make byelaws for declaring that to the extent determined by such byelaws those provisions and the byelaws of such council in force with respect to hackney-carriages shall apply to every motor vehicle standing or plying for hire notwithstanding that such vehicle stands or plies for hire on private premises only:

Provided that this section shall not apply to any such vehicle which is kept by any company firm or person in connection with any business carried on by such company firm or person as funeral directors or owners of funeral vehicles available for hire and used wholly or mainly in connection with such business or

is kept and used ordinarily for the purpose of being let on hire by the day or for longer periods of hire or to a trolley vehicle or a public service vehicle as defined in the Road Traffic Acts 1930 to 1947 or to any vehicle belonging to or used by the commission for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicles:

PART V
—cont.

Provided also that nothing in this section shall empower the council of an urban district to fix the site of the stand or starting place of any motor vehicle standing or plying for hire in any railway station or railway premises or in any yard belonging to the commission except with the consent of the commission.

PART VI

PUBLIC HEALTH

94. In this Part of this Act the following expressions have the meanings hereby assigned to them:—

Interpretation
of Part VI.

“ child ” has the same meaning as is assigned thereto by the Education Act 1944 ;

“ clerk ” means the town clerk of a borough or the clerk of the council of an urban district or of a rural district ;

“ flat ” has the same meaning as is assigned thereto by section 188 of the Housing Act 1936 ;

“ food ” has the same meaning as is assigned thereto by section 100 of the Food and Drugs Act 1938 ;

1 & 2 Geo. 6.
c. 56.

“ medical officer ” “ surveyor ” and “ sanitary inspector ” mean respectively the medical officer of health the surveyor and any sanitary inspector of a district ;

“ notifiable disease ” means—

(a) any notifiable disease as defined by section 343 of the Act of 1936 ; and

(b) any infectious disease to which section 144 of that Act for the time being applies in a district by virtue of regulations made under section 143 thereof ;

“ river or stream ” for the purposes of section 152 (For preventing obstruction to streams by culverts etc.) section 153 (Cleansing of rivers and streams) and section 154 (Entry for purposes of last two preceding sections) of this Act includes any watercourse within the meaning of that expression in the Land Drainage Act 1930 but does not include any such watercourse which is for the time being a main river of the Lincolnshire River Board the Trent River Board or the Yorkshire Ouse River Board ;

20 & 21 Geo. 5.
c. 44.

PART VI
—cont.

“tenement house” means a house which is let in lodgings or is occupied by members of more than one family.

Application of
Part VI in
urban
districts.

95.—(1) Subject to the provisions of this section and of section 5 (Certain provisions of Act not to operate in rural districts until adopted or applied) section 6 (Adoption by rural district councils of certain provisions of Act) and section 7 (Application of certain provisions of Act to rural district councils) of this Act this Part of this Act shall come into operation on the first day of April one thousand nine hundred and fifty-two or in the case of the provisions to which section 288 (The appointed day) of this Act applies on such later date as may be determined under subsection (3) of that section.

(2) At any time before the first day of January one thousand nine hundred and fifty-two a poll may be demanded with respect to the question whether this Part of this Act or any sections therein shall come into operation in any urban district by the council thereof or by a requisition in writing signed by not less than one hundred persons registered in accordance with the provisions of the Representation of the People Acts as local government electors in the district and delivered to the mayor in the case of a borough or the chairman of the council in the case of an urban district.

(3) If a poll is demanded in any district in pursuance of this section the mayor in the case of a borough or the chairman of the council in the case of an urban district shall proceed by poll to take the opinion of the electors upon the question upon which the poll is demanded unless the demand is withdrawn.

(4) The provisions contained in subsection (3) of section 255 of the Act of 1933 and in paragraphs 12 to 19 of the Ninth Schedule to that Act and the regulations made and the forms prescribed under those provisions shall so far as applicable apply to and in respect of the taking of a poll under this section.

(5) If the result of a poll taken in any district under this section is against this Part of this Act or any sections therein coming into operation in the district that Part or those sections shall not come into operation therein except as provided in the next succeeding subsection.

(6) If the result of any poll taken in any district under this section is against this Part of this Act or any sections therein coming into operation in the district the council thereof may at any time after the expiration of three years from the date on which the last poll was taken determine that the question shall again be submitted to the local government electors and in that case a poll shall again be taken in accordance with the provisions of this section.

(7) If in pursuance of this section a poll is taken in any district the clerk shall immediately after the result has been declared give notice of such result to the Secretary of State the Minister the Minister of Transport the Minister of Food and the Council.

(8) A certificate purporting to be signed by the clerk stating—

(a) the result of a poll demanded under this section in respect of his district ;

(b) that no such poll has been demanded ; or

(c) that no such poll has been demanded except in reference to the sections mentioned in the certificate ;

shall be evidence of the statement contained therein.

A Sewers and drains

96.—(1) Where the local authority—

(a) resolve to construct a sewer in a street or part of a street in their district being a street or part which is repairable by the inhabitants at large and has not been previously sewered ; and

(b) include in the resolution a declaration that the construction of the sewer will in their opinion increase the value of premises fronting adjoining or abutting on the street or that part thereof ;

then the provisions of the Third Schedule to this Act shall have effect as respects the apportionment and recovery by the local authority of the expenses incurred in constructing the sewer :

Provided that all liabilities under the said schedule in respect of the sewer shall cease at the expiration of two years from the date when the resolution becomes operative if the construction of the sewer is not then complete.

(2) Notice of any such resolution shall be published by the local authority in a local newspaper circulating in their district and the resolution shall become operative for the purposes of this section and the said schedule on the date of such publication.

(3) A copy of—

(a) any such newspaper containing any such notice ; or

(b) a photostatic or other reproduction certified by the clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of publication.

Recovery of
expenses of
sewerage
public
highway.

PART VI
—cont.

Recovery of
expenses of
sewerage
prospective
street.

97. Where land in a district in which a length of sewer has been constructed after the coming into operation of this section at the expense of the local authority becomes a street (whether repairable by the inhabitants at large or not) then the provisions of the Third Schedule to this Act shall have effect as respects the apportionment and recovery by the local authority of the expenses incurred in constructing the length of sewer :

Provided that where compensation due to the owner of any land in respect of damage sustained by reason of the construction therein of the length of sewer has been diminished by setting off any sum on account of the enhancement in value of the land by reason aforesaid this section shall not apply to so much of the length of sewer as has been constructed in that land.

Prevention of
evasion of
liabilities
under last two
preceding
sections.

98.—(1) If on a complaint by a local authority to a court of summary jurisdiction it is proved to the satisfaction of the court—

(a) that by reason of any transfer of land any part of any premises in their district (hereinafter in this section referred to as “the severed part”)—

(i) has ceased to be included in premises fronting adjoining or abutting on a street or part of a street to which the last but one preceding section of this Act applies ; or

(ii) has been excluded from premises which have subsequently become premises fronting adjoining or abutting on a street to which the last preceding section of this Act applies or has ceased to be included in premises fronting adjoining or abutting on such a street ; and

(b) that the transfer was intended for the purpose of evading liability under the Third Schedule to this Act imposed by the last but one preceding or the last preceding section (as the case may be) :

then the court may make such order under the following provisions of this section as it thinks just for the purpose of ensuring that the said liability is not evaded by reason of the transfer.

(2) Any such order may direct—

(a) that for the purposes of paragraph 2 of the said schedule the severed part shall be deemed to be premises fronting adjoining or abutting on the street or part of the street in question and shall be deemed to have had at the relevant date within the meaning of the said schedule such frontage on the street as may be specified in the order ;

(b) that for the purposes of sub-paragraph (a) of paragraph 6 of the said schedule the site of a new building

erected on the severed part and the land occupied therewith shall be deemed to have such frontage on the street or part of the street as may be specified in the order ;

(c) that any such amendment shall be made of any entry in the register of local land charges as may be specified in the order including an amendment taking effect as from a past date.

(3) Any order made under paragraph (a) of subsection (2) of this section may also direct that any premises from which the severed part has been excluded or in which it has ceased to be included shall not be deemed to be premises fronting adjoining or abutting on the street or part of the street or shall be deemed to have such frontage as may be specified in the order.

(4) Orders made under any provision of subsection (2) of this section may be made on separate complaints made by the local authority at different times.

(5) For the purposes of this section the expression “ transfer ” includes any disposal of land whether by way of sale lease exchange gift or otherwise.

99. Section 24 of the Act of 1936 shall have effect in its application to a district as if the following were substituted for the proviso to subsection (1) of that section :—

Recovery of
cost of
maintaining
public sewers.

“ Provided that unless in the opinion of the medical officer of health or the sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall not less than seven days before the work is commenced be given to the owners of any premises known by the local authority to be served by the length of sewer in question and the local authority shall consider any representations as to the need for and the reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice ”.

100. For the purpose of facilitating the disposal of sewage the powers of a local authority under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in their district to provide separate sewers for foul water drainage and surface water drainage respectively.

Separate sewers
for foul water
and surface
water.

101.—(1) In lieu of section 48 of the Act of 1936 the following provisions of this section shall if a local authority by resolution so determine have effect in their district for such period as may be specified in the resolution either as respects the whole of the district or as respects such part or parts thereof as may be so specified.

Delegation of
power to
examine and
test drains etc.

PART VI
—cont.

(2) Where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing—

- (a) that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance ; or
- (b) that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water ;

he may examine its condition and for that purpose may apply any test other than a test by water under pressure and if he deems it necessary open the ground.

(3) If on examination the convenience drain sewer or cesspool is found to be in proper condition the local authority shall as soon as possible reinstate any ground which has been opened by the medical officer or the sanitary inspector and make good any damage done by him.

Summary
power to
remedy
stopped-up
drains etc.

102.—(1) If it appears to the medical officer or the sanitary inspector that on any premises in his district a drain private sewer water-closet or soil pipe is stopped up he may by notice require the owner or occupier of the premises to remedy the defect within forty-eight hours from the service of the notice.

(2) If the notice is not complied with the local authority may themselves carry out the work necessary to remedy the defect and may subject to the next following subsection recover the expenses of so doing from the person on whom the notice was served :

Provided that where the said expenses do not exceed forty shillings the local authority may if they think fit remit the payment thereof.

(3) In any proceedings under this section the court may inquire—

- (a) whether any requirement contained in a notice served under this section or any work done by the local authority was reasonable ; and
- (b) whether the expenses incurred by the local authority in doing the work or any part thereof ought to be borne wholly or partly by the person on whom the notice was served ;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just in the circumstances of the case :

Provided that the court shall not order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

103.—(1) If any drain or private sewer in a district—

(a) is not sufficiently maintained and kept in good repair to the satisfaction of the local authority ; and

(b) can in the opinion of the local authority be sufficiently repaired at a cost not exceeding fifty pounds ;

the local authority may after giving not less than seven days' notice to the owner or owners cause the drain or sewer to be repaired and subject to the next following subsection recover the expenses of so doing so far as they do not exceed fifty pounds from the owner or owners of the drain or sewer in such proportions (if there is more than one owner) as the surveyor may determine :

Provided that where the said expenses do not exceed two pounds the local authority may if they think fit remit the payment thereof.

(2) In any proceedings under this section the court may inquire—

(a) whether the drain or sewer in question required repair and whether the work done by the local authority was reasonable ; and

(b) whether any apportionment made by the surveyor was fair ;

and the court may make such an order concerning the expenses or their apportionment as appears to the court to be just :

Provided that the court shall not revise any apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

104.—(1) Where after the coming into operation of this section in a district any person shall—

(a) reconstruct any drain which communicates with any sewer or other drain ;

(b) lay such drain in a new position ; or

(c) on the occasion of the execution of any works to or in connection with such drain permanently discontinue the use of such drain ;

such person shall cause any drain or portion of drain thereby rendered unnecessary to be cut off and sealed at each end.

(2) Any person who knowingly contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

105. A local authority may at the request of the owner or occupier of any premises in their district undertake the cleansing of any drains water-closets sinks or gullies in or connected with the premises and may make such charge (if any) for so doing as they think fit.

PART VI

—CONT.

Power to
repair drains
and private
sewers.

Abandoned
drains to be
cut off.

Power to
cleanse drains
etc.

PART VI
—cont.Demolition of
buildings.

106.—(1) As from the appointed day in any district no person shall commence to demolish or take down any building or part thereof without first giving notice to the local authority of his intention so to do and without complying with such reasonable terms and conditions as the local authority think fit including terms and conditions requiring—

- (a) the shoring up of adjacent buildings ; and
- (b) the removal of any material or rubbish resulting from the demolition or taking down and the clearance of the site ;

to the satisfaction of the local authority within a reasonable time to be prescribed by the local authority :

Provided that this section shall not apply to the demolition or taking down of an internal part of a building if such demolition or taking down is incidental to an internal alteration of the building the use of which it is intended to continue.

(2) Where notice is given to the local authority under subsection (1) of this section and such notice is accompanied by particulars of such building or part thereof and of the proposals in regard thereto the local authority shall be deemed to have approved the proposals unconditionally unless within six weeks from the receipt thereof or within such longer period as the person giving the notice may agree in writing to allow they give notice to him that they have decided to the contrary.

(3) If any term or condition imposed under this section is not complied with within the time therein prescribed the local authority may themselves enter upon the building and the site thereof and carry out the work.

(4) All expenses incurred by the local authority under subsection (3) of this section may be recovered by the local authority from the person who has given notice under subsection (1) of this section.

(5) Any expenses or any part of the expenses incurred in pursuance of this section in the shoring up of a building not entitled to support from the building to be demolished or taken down may be recovered by the person who has given notice under subsection (1) of this section or the local authority (as the case may be) from the owner of the building to be shored up.

(6) This section shall not apply to any poultry-house greenhouse coal-shed or cycle-shed or other similar structure.

(7) This section shall not apply to any building or part of a building which is situate within the curtilage of or used solely

in connection with a factory and does not adjoin a street if the building or part (as the case may be) either—

PART VI
—cont.

(a) is at a distance from the nearest street not less than the maximum height thereof above the level of the ground ;
or

(b) being at a less distance from the nearest street than as aforesaid is throughout its length or width on the side nearest to that street separated from the street by another building not proposed to be demolished or taken down of which no part opposite to that side is of a less height than the maximum height above the level of the ground of the building or part proposed to be demolished or taken down.

(8) In this section the expression “ factory ” has the meaning assigned to it by the Factories Act 1937 and the expression “ building ” shall include a factory chimney shaft.

1 Edw. 8. &
1 Geo. 6. c. 67.

(9) This section shall not apply in relation to any building (not being a dwelling-house or a showroom) belonging to an area board and held by them for the purposes of their undertaking.

(10) This section shall not apply in relation to any building (not being a dwelling-house) belonging to the commission and held by them for the purposes of their undertaking:

Provided that the exemption conferred by this subsection shall not extend to buildings last used before demolition as offices other than buildings so used which form part of a railway station.

(11) Nothing in this section shall apply in relation to any building belonging to the National Coal Board and held by them for the purposes of coal industry activities:

Provided that the exemption conferred by this subsection shall not extend to houses or to buildings last used before demolition as dwelling-houses or offices.

(12) Any person who contravenes the provisions of this section or of any term or condition imposed under this section shall be liable to a penalty not exceeding five pounds.

(13) Any person aggrieved by the terms or conditions imposed by the local authority under this section may appeal to a court of summary jurisdiction.

107.—(1) Within six weeks from the receipt of a notice under the last preceding section the local authority may if it is reasonable so to do having regard to all the circumstances of the case by counter-notice require the person giving such notice either—

Dealing with
drains and
sewers before
demolition of
premises.

(a) to seal any sewer or drain on in or under the site of the building to which the notice relates ; or

PART VI
—cont.

- (b) to take up and remove any such sewer or drain and seal any other sewer or drain with which such first-mentioned sewer or drain may be connected ;

and to make good and restore to the satisfaction of the local authority the surface of the ground disturbed by or interfered with by the execution of any works under paragraph (a) or (b) of this subsection.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to counter-notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Penalty for
damage to
surface water
drains.

108. Any person who stops up damages injures or removes any surface water drain or land drain in a district by means of which water is conveyed from lands which do not belong to that person shall unless—

- (a) before stopping up damaging injuring or removing such drain he shall have provided a proper substitute to the satisfaction of the local authority ; or
- (b) he shows to the satisfaction of a court of summary jurisdiction that no material detriment is caused to such lands by stopping up damaging injuring or removing such drain ;

be liable to a penalty not exceeding five pounds.

B Conveniences

Penalty for
improper
construction or
repair of water-
closet etc.

109.—(1) If a water-closet drain or soil pipe in a district is so constructed or repaired as to be prejudicial to health or a nuisance the person who undertook or executed the construction or repair thereof shall unless he shows that the prejudice to health or nuisance could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

(2) A person charged with an offence under this section (hereinafter in this section referred to as “the original defendant”) shall upon information duly laid by him and on giving to the prosecutor not less than three clear days’ notice of his intention be entitled to have any other person being his agent servant or workman to whose act or default he alleges the offence was due brought before the court at the time appointed for the hearing of the charge and—

- (a) if after the commission of the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence ; and
- (b) if the original defendant further proves that he used all due diligence to secure that the water-closet drain or

soil pipe in question was so constructed or repaired as not to be prejudicial to health or a nuisance he shall be acquitted of the offence.

PART VI
—cont.

(3) Where the original defendant seeks to avail himself of the provisions of subsection (2) of this section—

(a) the prosecutor as well as the person whom the original defendant charges with the offence shall have the right to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence; and

(b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

110. For the purposes of section 44 of the Act of 1936 any part of a building in a district being a part occupied as a dwelling shall be treated as a separate building and where two or more parts of such a building are occupied as dwellings by separate families each such part shall be treated as a separate building:

Closet
accommoda-
tion for
separate
dwellings.

Provided that where any part of a building has been let for occupation as a separate dwelling without the consent in writing of the owner of the building the person so letting such part of the building shall for the purposes of this section be deemed to be the owner.

111.—(1) A local authority may by notice require a contractor engaged in or upon any building operations or the construction or reconstruction of any works in their district within such time as may be specified in the notice—

Sanitary
conveniences
for persons
employed on
construction
work.

(a) to provide in connection therewith sufficient and satisfactory accommodation in the way of sanitary conveniences for the accommodation of the workpeople employed thereon; and

(b) where persons of both sexes are employed in or in connection with the operations or works to provide separate accommodation as aforesaid for persons of each sex;

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations or works to which section 107 or section 108 of the Factories Act 1937 applies.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

PART VI
—cont.Loan of
temporary
sanitary
conveniences.

112.—(1) A local authority may at the request of the occupier of any premises connected with a sewer or drain on which the local authority propose to carry out any work of maintenance improvement or repair which necessitates the disconnection of the water-closets or other sanitary conveniences provided for or in connection with the premises supply on loan temporary sanitary conveniences in substitution for any water-closets or other sanitary conveniences so disconnected.

(2) Temporary sanitary conveniences loaned by the local authority under subsection (1) of this section shall be supplied free of charge where the disconnection of the premises is necessitated by a defect in a public sewer vested in and maintainable by the local authority (not being a length of sewer to which subsection (3) of this section applies).

(3) Where the disconnection of the premises is necessitated by a defect in any length of a public sewer to which section 24 of the Act of 1936 applies or by a defect in any cesspool private sewer or drain in respect of which the local authority are authorised to serve a notice under section 39 of the Act of 1936 the reasonable costs of supplying removing and cleansing any temporary sanitary conveniences provided by the local authority for the premises under subsection (1) of this section shall be recoverable from the same person or persons and in the like manner as they would be recoverable if they were expenses incurred under the said section 24 or (as the case may be) the said section 39:

Provided that no costs incurred by the local authority under subsection (1) of this section shall be recoverable under this subsection in any case in which the temporary sanitary conveniences are provided for a period not exceeding seven days or if they are provided for more than seven days in respect of the first seven days.

*C Refuse*Tipping of
spoil and
refuse.

113.—(1) A local authority may make byelaws for regulating the tipping of spoil and refuse and for prohibiting the use of any spoil or refuse tip so as to be a nuisance to the occupiers of premises in the neighbourhood thereof.

(2) Byelaws made by virtue of this section may—

- (a) contain provisions for imposing on persons offending against the byelaws penalties not exceeding fifty pounds for each offence and in the case of a continuing offence a daily penalty not exceeding ten pounds;
- (b) provide that any spoil or refuse tip placed kept or used in breach of the byelaws shall be a statutory nuisance for the purpose of Part III of the Act of 1936.

(3) No byelaw under this section shall extend to regulate or control the tipping of spoil or refuse by railway canal or inland navigation undertakers for the purpose of constructing widening or maintaining any railway canal inland navigation dock or wharf works or by the gas board for purposes incidental to the manufacture of gas or by the Trent River Board or any internal drainage board for the purposes of land drainage or flood alleviation.

(4) No byelaw under this section shall extend to regulate or control any dust spoil or refuse tip used for or in connection with coal industry activities.

114.—(1) A local authority may (if they think fit) resolve that on and after a date to be specified in their resolution the cost of providing maintaining and renewing dustbins in their district for the deposit or collection of refuse from dwelling-houses shall be paid out of the general rate fund as part of the expenses of the general rate. Cost of provision maintenance and renewal of dustbins.

(2) While any such resolution as aforesaid is in force in any district section 75 of the Act of 1936 shall cease to apply in that district.

D Verminous premises etc.

115. Section 83 of the Act of 1936 shall in its application to a district have effect as if the following were substituted for sub-section (1) thereof:— Cleansing of filthy or verminous premises.

“(1) Where the local authority upon consideration of a report from any of their officers or other information in their possession are satisfied that any premises other than a factory within the meaning of the Factories Act 1937—

(a) are in such a filthy or unwholesome condition as to be prejudicial to health ; or

(b) are verminous ;

the authority shall give notice to the owner or occupier of the premises requiring him to take such steps as may be specified in the notice to remedy the condition of the premises by cleansing and disinfecting them and by either—

(i) distempering or whitewashing the interior surface thereof ; or

(ii) in the case of premises used for human habitation or as shops or offices papering or painting the said interior surface ;

and the notice may require among other things the removal of wallpaper or other covering of the walls or in the case of verminous premises the taking of such steps as may be necessary for removing or destroying vermin ”.

PART VI
—cont.

Power to
require
vacation of
premises
during
fumigation.

116.—(1) If a local authority serve notice under subsection (3) of section 83 of the Act of 1936 on the owner and occupier of any premises in their district requiring that they shall be allowed to employ gas for the purpose of destroying vermin on the premises—

(a) the notice to the occupier may also require that the premises shall be vacated until the local authority considers that it is safe for the occupier to re-enter such premises ; and

(b) the local authority may also serve notice on the occupiers of any other premises having any floor wall or ceiling contiguous with the first-mentioned premises or into which there is reason to apprehend that the gas may penetrate requiring that those other premises shall be vacated as aforesaid.

(2) No person shall be required to vacate any premises under this section for any period unless shelter or other accommodation has been provided for him by the local authority free of charge for that period and any notice given under this section shall specify the shelter or accommodation so provided.

(3) Any person aggrieved by a requirement of the local authority under this section may appeal to a court of summary jurisdiction.

(4) If any person fails to comply with a notice under this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding ten shillings.

(5) The local authority may pay to any person vacating premises in pursuance of a notice under this section such reasonable allowance as they think fit towards his expenses in removing from and returning to the premises.

(6) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed to cease to apply to any house or premises by reason only of the fact that the house or premises have been vacated in compliance with a notice served under this section.

Prohibition of
sale of
verminous
articles.

117.—(1) No dealer shall in a district—

(a) prepare for sale ;

(b) sell or offer or expose for sale ; or

(c) deposit for sale or preparation for sale ;

any household article if it is to his knowledge verminous or if by taking reasonable precautions he could have known it to be verminous.

(2) If any household article which is verminous is on any premises in the district—

(a) being prepared or offered by a dealer for sale ; or

- (b) exposed by a dealer for sale or deposited by a dealer for sale or preparation for sale ;

PART VI
—cont.

the medical officer or the sanitary inspector may cause the article to be disinfested or destroyed as the case may require and if necessary for that purpose to be removed from the premises and the local authority may recover from the dealer the expenses incurred by the medical officer or the sanitary inspector in taking any action under this subsection.

(3) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds.

(4) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

(5) For the purposes of this section—

- (a) the expression “dealer” means a person who trades or deals in any household article ;
- (b) the expression “household article” means an article of furniture bedding or clothing or any similar article ;
- (c) the expression “preparation for sale” shall not include disinfestation.

E Buildings and structures

118.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in a district and the following provisions of this section shall have effect in lieu thereof. Ruinous and dilapidated buildings and neglected sites.

(2) Where a building or part of a building in the district is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the local authority may by notice require the owner thereof within a reasonable time specified in the notice—

- (a) to execute such works of repair or restoration ; or
- (b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition ;

as may be necessary for remedying the cause of complaint.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building or part of a building is lying on the site of the building or that part thereof or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental

PART VI
—cont.

to the amenities of the neighbourhood the local authority may by notice require the owner of the site or land within a reasonable time specified in the notice to take such steps for removing the rubbish or material as may be necessary for remedying the cause of complaint.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the local authority under this section.

(6) In this section the expression “building” includes any structure.

As to defective
houses.

119.—(1) Where a local authority are satisfied that—

- (a) any house in their district is in such a state (in this section referred to as a “defective state”) as to be prejudicial to health or a nuisance ; and
- (b) having regard to all the circumstances unreasonable delay in remedying the defective state would be occasioned by following in relation to that house the procedure prescribed by sections 93 to 95 of the Act of 1936 ;

the local authority may (instead of serving an abatement notice as required by section 93 of the Act of 1936) serve upon the person upon whom it would otherwise have been appropriate under the said section 93 to serve such an abatement notice a notice to the effect that the local authority intend to remedy the defective state of the house themselves and specifying the defects which they intend to remedy.

(2) Not later than the end of the seventh day after the local authority have served a notice under subsection (1) of this section the person upon whom such notice was served may serve a counter-notice upon the local authority stating that he intends to remedy the defective state of the house and if such person having duly served such counter-notice commences within such time thereafter as the local authority consider reasonable to execute such works and take such steps as may be necessary to remedy such defective state and so long as he progresses to the satisfaction of the local authority with the execution of such works and the taking of such steps the local authority shall not take action under subsection (3) of this section in respect of such house.

(3) At any time after the expiration of nine days after the service of a notice under subsection (1) of this section and subject to the provisions of subsection (2) of this section the local authority may execute such works and take such steps as may be necessary to remedy the defective state of the house to which such notice relates and subject to the provisions of subsection (4) of this section may recover the expenses reasonably incurred by them in so doing from the person upon whom the notice was served.

(4) (a) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

- (i) the alleged defective state did not exist at the time of the service of the notice ; or
- (ii) the need to abate the defective state was not so urgent as to justify the local authority themselves executing such works and taking such steps without first complying with the provisions of section 93 and section 94 of the Act of 1936 ; or
- (iii) the person upon whom the notice was served having duly served a counter-notice under subsection (2) of this section commenced within a reasonable time and progressed reasonably with the execution of such works and the taking of such steps as were necessary to remedy the defective state of the house.

(b) A person against whom proceedings are taken under subsection (3) of this section shall upon information duly laid by him and on giving to the local authority not less than three clear days' notice of his intention be entitled to have any person to whose default or unlawful act or sufferance he alleges that the defective state of the house was due brought before the court in the proceedings and if the original defendant proves that the defective state of the house arose or continued by the default or unlawful act or sufferance of that other person the court shall have power—

- (i) to order that such expenses as aforesaid may be recovered from that other person ; or
- (ii) to apportion the expenses between persons by whose defaults acts or sufferances the defective state of the house arose or continued in such manner as the court may deem fair and reasonable.

(5) The local authority may if they think fit exercise the powers of this section in relation to such defects in a house as may be specified in the notice notwithstanding the fact that other defects may exist in that house and in that case nothing contained in this section or done or executed thereunder shall

PART VI
—cont.

prejudice or affect the powers of the local authority under sections 93 to 98 and section 100 of the Act of 1936 in relation to any such other defect in that house.

(6) The powers and functions of the local authority under this section may be exercised by the medical officer or the sanitary inspector.

Height of new
chimneys.

120.—(1) Where plans for the extension or erection of a building used or to be used for manufacturing or other purposes are in accordance with building byelaws deposited with a local authority and the plans show that it is proposed to construct a chimney for carrying smoke or steam or noisome or deleterious gases or effluvia from the building the local authority shall reject the plans unless they are satisfied that the height of the chimney as shown on the plans will be sufficient to prevent it being prejudicial to health or a nuisance having regard to—

- (a) the purpose of the chimney ;
- (b) the position and description of buildings near thereto ;
- (c) the levels of the neighbouring ground ; and
- (d) any other matters requiring consideration in the circumstances.

(2) If the local authority reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) This section shall not apply to a chimney of a generating station consent to the construction of which has been given in accordance with the provisions of the Electricity (Supply) Acts 1882 to 1936 by the Minister of Fuel and Power.

New building
overreaching
adjoining
chimneys.

121.—(1) Where after the coming into operation of this section in a district—

- (a) any person erects or raises a building in a district (in this section referred to as the “taller building”) to a greater height than an adjoining building ; and
- (b) any chimneys or flues of the adjoining building are in the party wall or in an external wall of the adjoining building ;

the local authority may by notice—

- (i) require that person within such time as may be specified in the notice to build up those chimneys and flues (if it is reasonably practicable so to do) so that the top thereof will be of the same height as the top of the chimneys of the taller building or the top of the taller building whichever is the higher ; and

- (ii) require the owner or occupier of the adjoining building to allow the first-mentioned person to enter on that building and carry out such work as may be necessary to comply with the notice served on him.

(2) Any person aggrieved by a requirement of the local authority under this section may appeal to a court of summary jurisdiction.

(3) If any person fails to comply with a notice under this section he shall be liable to a penalty not exceeding twenty pounds and in the case of a notice served under sub-paragraph (i) of subsection (1) of this section the local authority may themselves execute such work as may be necessary to comply with the notice and recover the expenses of so doing from the person on whom the notice was served.

122.—(1) If a court of summary jurisdiction is satisfied upon a complaint by a local authority that any smoke gas or vapour from any chimney flue or pipe of a building or structure forming part of or within the curtilage of a house in their district is prejudicial to the health of any of the inhabitants of the district or a nuisance the court may make an order requiring the owner of the chimney flue or pipe within such time as may be specified in the order—

Power to order alteration of domestic chimneys.

(a) to cause it to be raised to a height so specified ; or

(b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit :

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order will not involve an expenditure exceeding fifty pounds.

(2) If any person fails to comply with an order made under this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

123.—(1) No person shall in or in connection with any house shop or office in a district construct without the consent of the local authority any cellar or room the floor level of which is lower than the ordinary level of the subsoil water on under or adjacent to the site of the house shop or office.

Cellars and rooms below subsoil water level.

(2) Any consent under this section may be given subject to such conditions as to the construction or use of the premises as may be specified therein and any such conditions shall be binding on successive owners of the house shop or office.

(3) Any person aggrieved by the refusal of the local authority to give their consent under this section or by any conditions attached to such consent may appeal to a court of summary jurisdiction.

PART VI
—cont.

(4) If any person constructs a cellar or room in contravention of subsection (1) of this section or any conditions attached to any consent under this section—

(a) he shall be liable to a penalty not exceeding twenty pounds ; and

(b) the local authority may by notice require him within such reasonable time as may be specified in the notice either to alter the cellar or room so that its construction will no longer contravene the said subsection or conditions or if he so elects to fill it in or otherwise make it unusable and if he fails to comply with any such notice the local authority may themselves fill in the cellar or room or otherwise make it unusable and recover from him the expenses of so doing.

(5) If any person uses a cellar or room in contravention of any such conditions he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(6) The provisions of the last two foregoing subsections shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 as to the avoidance for want of registration as a local land charge of any prohibition or restriction imposed by virtue of any such conditions.

(7) Nothing in this section shall apply to the construction of any cellar or room in connection with any shop or office which forms part of a railway station.

Food storage
accommoda-
tion.

124.—(1) Every house erected in a district after the coming into operation therein of this section shall be provided with sufficient and suitable accommodation for the storage of food and any other house in the district not so provided shall if reasonably practicable be so provided within one month from the service by the local authority on the owner thereof of a notice requiring it to be so provided.

(2) Any person aggrieved by a requirement imposed by a notice under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If any house required to be provided as aforesaid is occupied when not so provided the owner thereof shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(4) The owner of any house on whom a notice is served under subsection (1) of this section shall have power notwithstanding any lease or other agreement to enter the house and carry out such work as may be necessary to comply with the notice.

(5) For the purposes of this section—

PART VI
—cont.

- (a) the expression “ house ” includes any part of a building which is occupied or intended to be occupied as a separate dwelling ;
- (b) the conversion of a building into two or more dwellings shall be deemed to be the erection of each of those dwellings ; and
- (c) a house the erection whereof was commenced before the coming into operation of this section shall not be deemed to have been erected after the coming into operation of this section :

Provided that where any part of a building has been let for occupation as a separate dwelling-house without the consent of the owner of the building the person so letting that part of the building shall be deemed to be the owner.

125.—(1) Where plans of a house are in accordance with building byelaws deposited with a local authority the local authority may reject the plans if they do not show that the house will be provided with a bathroom containing a fixed bath. Provision of
bathrooms.

(2) If the local authority reject the plans for non-conformity with this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been rejected on account of such non-conformity.

126. The powers of a local authority under section 6 of the Housing Act 1936 shall include power to make byelaws for requiring in the case of tenement houses a separate approach to each room or tenement separately occupied without passing through any other room or tenement. Separate
approach for
separate
tenements.

127.—(1) A house in a district which is occupied or is of a type suitable for occupation by persons of the working classes shall be deemed for the purposes of section 9 of the Housing Act 1936 to be not in all respects fit for human habitation— Extension of
powers under
section 9 of
Housing Act
1936.

- (a) if it is not kept repaired and painted sufficiently to prevent the dilapidation thereof and to secure reasonable amenities for the occupiers thereof ; or
- (b) if the interior surface of the walls thereof is not papered or painted with oil-bound water paint or distempered with washable distemper sufficiently as aforesaid.

(2) On an appeal to the county court under section 15 of the said Act by a person aggrieved by a notice requiring the execution of works to remedy the defects referred to in subsection (1) of this section the court shall take into consideration—

- (a) in the case where the person aggrieved is a lessee or agent for a lessee the length of the unexpired period of the lease ;

PART VI
—cont.

- (b) the period for which the house is likely to continue occupied ;
- (c) the expenditure incurred on the house during the preceding three years by the person having control of the house or the owner thereof ;
- (d) in the case of any house the rent of which is subject to control in pursuance of the Rent and Mortgage Interest Restrictions Acts 1920 to 1939 the financial return accruing to the owner in respect of his ownership of the house ; and
- (e) whether the condition of the house is or is not due to the wilful default or neglect of the occupier.

(3) In this section the expression “ house ” “ owner ” and “ person having the control of the house ” have the same meanings as in the Housing Act 1936.

Further provisions as to means of escape from fire in case of certain buildings.

128.—(1) Section 60 of the Act of 1936 shall in its application to a district have effect as if the following were substituted for subsection (4) thereof:—

“ (4) This section applies to any building which exceeds one storey in height and in which the floor of any upper storey is more than twenty feet above the surface of the street or ground on any side of the building and which—

(a) is let in flats or tenement dwellings ; or

(b) is used as an inn hotel boarding-house hospital nursing home boarding school children’s home aged persons’ home or similar institution or as a restaurant shop store office or warehouse ”.

(2) Where expenditure is incurred by an owner in executing any works required to be executed in pursuance of a notice given under subsection (1) of section 60 of the Act of 1936 in relation to—

(a) any building let in flats or tenement dwellings ; or

(b) premises referred to in paragraph (b) of subsection (4) of the said section 60 as amended by this section ;

not being a building or premises in respect of which a notice could have been given under the said section before the coming into operation of this section the following provisions shall apply and have effect:—

- (i) in the case of expenditure incurred in relation to any such building as aforesaid let in flats or tenements such expenditure shall for the purpose of paragraph (a) of subsection (1) of section 2 of the Increase of Rent and Mortgage Interest (Restrictions) Act 1920 be deemed to be expenditure on the improvement of the dwelling houses within such building and the owner of the

building may apply to the county court for an order apportioning such expenditure between the several dwelling-houses comprised in such building and the court may on such application make such order as may be just and equitable in all the circumstances ;

- (ii) in the case of expenditure incurred in relation to any such premises as aforesaid if the owner thereof alleges that any tenant of the premises should meet or contribute to meeting such expenditure he may (without prejudice to any right of appeal against the notice served on him in pursuance of section 60 of the Act of 1936) apply to the county court for an order making such variations of the terms of the tenancy of the premises as may be reasonable having regard to the expense incurred in executing the works and to other relevant circumstances and the court may on such application make such order as may be just and equitable in all the circumstances.

129.—(1) If it appears to a local authority that for the purpose of preventing fire to any building in their district to which section 59 of the Act of 1936 applies or for the purpose of preventing injury or danger to persons resorting thereto— Further provision for public and other buildings.

- (a) the apparatus or fittings for lighting or heating the building require alteration ; or
- (b) the arrangement of the chairs and seating requires alteration ; or
- (c) any floor requires strengthening in order to prevent overloading ; or
- (d) any of the materials from which any fireplaces flues chimney vents or other like parts of such building are constructed require alteration ;

the local authority may by notice require the owner of the building to make such provision in regard to the matters aforesaid as may be necessary :

Provided that—

- (i) this subsection shall not apply to premises in respect of which a licence under the Theatres Act 1843 or the Cinematograph Act 1909 is for the time being in force ; 9 Edw. 7.
- (ii) nothing in this section shall affect the operation of c. 30.
the Factories Act 1937 or any regulation or order made thereunder.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

PART VI
—cont.Provisions as
to tents vans
etc.

130.—(1) Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of section 3 of the Public Health (Buildings in Streets) Act 1888 in its application to the county be deemed to be a house or building within the meaning of those words where they first occur in the said section.

(2) It shall not be lawful without the written consent of the local authority to place any tent van shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Powers to use
ladders etc. for
entry or
inspection.

131.—(1) Any power conferred on an officer of a local authority by any enactment or byelaw to enter upon and inspect any building or works in course of construction shall include a power to use free of expense for the purpose of the entry or inspection any ladders scaffolding and plant in or about the building or works.

(2) If the builder of or contractor for any such building or works or any person employed by him in or about the building or works—

(a) refuses to give to such an officer all reasonable assistance in the exercise of the powers conferred by this section ; or

(b) otherwise obstructs such an officer in the exercise of those powers ;

he shall be liable to a penalty not exceeding five pounds.

Safety of
stands.

132.—(1) As from the appointed day in any district no person shall commence to erect in that district a stand capable of affording seating or standing accommodation for twenty or more persons at any one time unless he has given notice to the local authority of his intention so to do accompanied by a plan and section of the stand and such further particulars as the local authority may reasonably require and the local authority have approved the erection of the stand under this section.

(2) Within five weeks from the receipt of such a notice from any person the local authority may give him notice that they approve the erection of the stand but only subject to—

(a) such modifications of the plan section and particulars submitted to them ; and

(b) compliance with such requirements as to maintenance and otherwise ;

as may be specified in the notice being modifications and requirements which appear to the local authority to be necessary for

securing the stability of the stand and protection against fire and generally for securing the safety of persons to be accommodated thereon.

PART VI
—cont.

(3) If a notice given under subsection (1) of this section states the period for which it is proposed that the stand will remain erected the local authority shall have regard to that statement in considering what modifications and requirements shall be prescribed by a notice under subsection (2) of this section but may by the last-mentioned notice require that the stand shall be pulled down and removed within such time from the expiration of that period as may be specified in the notice or such further time as the local authority may allow.

(4) The local authority may at any time within the said five weeks give notice that they approve the erection of the stand in accordance with the plan section and particulars submitted to them and if within the said five weeks the local authority have not given notice under subsection (2) of this section they shall be deemed for the purposes of this section to have so approved the erection of the stand.

(5) Any person aggrieved by a requirement or other decision of the local authority under this section may appeal to a court of summary jurisdiction.

(6) If any person—

(a) commences to erect in contravention of subsection (1) of this section a stand capable of affording seating or standing accommodation for twenty or more persons at any one time ; or

(b) erects such a stand otherwise than in accordance with a plan section and particulars submitted to the local authority under the said subsection (1) or if notice has been given of any modifications under subsection (2) of this section otherwise than in accordance with the said plan section and particulars as modified by the notice ; or

(c) being the owner or occupier of such a stand erected otherwise than as aforesaid allows twenty or more persons to be on the stand at any one time ; or

(d) being the owner or occupier of such a stand fails to comply with any requirement imposed by a notice under subsection (2) or subsection (3) of this section ;

he shall be liable to a penalty not exceeding fifty pounds and in the case of any such failure to a daily penalty not exceeding forty shillings :

Provided that nothing in this subsection shall apply to a stand the erection whereof was commenced before the appointed day.

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—cont.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

(8) The provisions of this section shall not apply to any stand erected by the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

(9) In this section the expression "stand" includes a structure but does not include a building or extension of a building to which building byelaws are applicable.

Byelaws for
lighting
staircases.

133. A local authority may make byelaws with respect to tenement houses and flats for the adequate natural and artificial lighting of any common staircase in such premises.

F Nuisances

Discharge of
steam and
waste gas.

134.—(1) No person shall cause or permit to be discharged in a district so as to be prejudicial to health or a nuisance—

- (a) any steam or waste gas ejected from any stationary engine or the boilers or condensers thereof ; or
- (b) any condensing water above a temperature of one hundred and ten degrees fahrenheit so ejected ; or
- (c) any spent or ejected steam arising or produced in the course of any trade or business.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) Nothing in this section shall apply to steam gas or water discharged from a railway locomotive or to any spent or ejected steam arising or produced by operations incidental to the manufacture of gas by the gas board.

Silencers for
internal
combustion
engines.

135.—(1) A stationary internal combustion engine shall not be used in a district unless an effectual silencer is provided and used on the exhaust of the engine.

(2) If any person uses any such engine in contravention of the foregoing subsection or causes or permits any such engine to be so used the local authority may give him notice that the engine is being or has been so used and if after the elapse of such time from the service of the notice as may be reasonably sufficient for remedying the cause of complaint he uses the engine as aforesaid or causes or permits it to be so used he shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

(3) An authorised officer of the local authority shall on producing if so required some duly authenticated document showing his authority have the right—

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—cont.

(a) to enter at all reasonable hours any premises on which there is reason to believe that any such engine is being or has been used in contravention of subsection (1) of this section ; and

(b) to take off remove test inspect and replace any silencer on the exhaust of any such engine found on the premises ;

and any expenses incurred under this subsection by any such officer may be recovered by the local authority from the occupier of the premises if there is found on the premises any such engine which is not provided with an effectual silencer on the exhaust thereof :

Provided that this subsection shall not apply to any premises belonging to railway undertakers and used by them for the purpose of their railway undertaking.

136.—(1) Any excessive or unreasonable or unnecessary noise which is prejudicial to health or a nuisance shall be a statutory nuisance for the purposes of Part III of the Act of 1936:

Provided that—

(a) in any proceedings brought by virtue of this section under the said Part III in respect of a noise occasioned in the course of any trade or business it shall be a defence for the defendant to prove that he has used the best practicable means for preventing or mitigating the noise having regard to the cost and to other relevant circumstances ;

(b) a justice shall not entertain a complaint under section 99 of the said Act with respect to a noise unless the complaint is made by not less than three occupiers of premises within hearing of the noise.

(2) Nothing in this section shall apply to a noise occasioned by the exercise by railway undertakers of statutory powers conferred in relation to their railway undertaking.

(3) Nothing in this section shall affect the power of the council of a borough in the county to make byelaws under section 249 of the Act of 1933.

137.—(1) A local authority may make byelaws—

Lighting
ventilation and
sanitation
of stables.

(a) for securing the proper lighting and ventilation of any building in their district erected before the date on which the byelaws come into operation and used for the time being for stabling horses ;

PART VI
—cont.

(b) for preventing insanitary conditions in or about or arising out of any building in their district so used whether erected before or after the said date.

(2) For the purposes of any byelaws made under this section a building the erection of which was commenced before the date on which the byelaws came into operation shall be deemed to have been erected before the said date.

Smoke from
industrial
furnaces.

138.—(1) As from the appointed day in any district no person shall instal in any building in that district whether erected before or after the passing of this Act any furnace for steam raising or for any manufacturing or trade purpose unless the furnace is so far as practicable capable of being operated continuously without emitting smoke.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding ten pounds and if after conviction of the contravention he uses the furnace he shall be liable to a daily penalty not exceeding five pounds for each day on which he uses it unless and until it is altered so that it is so far as practicable capable of being operated as aforesaid.

(3) If a person before installing in a building a furnace to which this section applies submits to the local authority a plan and specification of the proposed furnace and furnishes them with such other information in regard thereto as they may reasonably require the local authority may within six weeks from the receipt of the plan specification and information serve notice upon him stating whether or not they are satisfied that the furnace is so far as practicable capable of being operated as aforesaid and—

(a) if the notice states that they are so satisfied ; or

(b) if they do not serve any notice under this subsection before the expiration of the said six weeks ;

no proceedings shall be taken against that person under this section in respect of the installation of the furnace in accordance with the plan specification and information so submitted and furnished.

(4) Before serving a notice under this section stating that they are not satisfied that a furnace is so far as practicable capable of being operated as aforesaid the local authority shall consult the Minister of Fuel and Power.

(5) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated as aforesaid—

(a) a court in any proceedings under this section ; and

(b) the local authority on considering a plan and specification and other information received under subsection (3) of this section ;

shall have regard to cost and to local conditions and circumstances.

139.—(1) If as respects any premises in a district which are being used for carrying on an offensive trade the local authority by resolution decide that it is inexpedient— Discontinuance of offensive trade.

(a) in the interest of public health ; or

(b) having regard to any change in the character of the neighbourhood of the premises since the establishment of that trade ;

that that trade should be carried on in the premises the local authority may serve notice on the owner and occupier of the premises stating the effect of the resolution and prohibiting the use of the premises for carrying on the trade after the expiration of such period (not being less than twelve months from the service of the notice) as may be specified in the notice.

(2) If any person uses any premises for carrying on an offensive trade in contravention of a notice under this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) Any person who suffers loss by reason of a prohibition imposed under this section on the use of any premises for carrying on an offensive trade shall be entitled to be paid by the local authority compensation to be determined in case of dispute in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(4) In determining the amount of compensation under the last preceding subsection regard shall be had to any limitation imposed by virtue of subsection (3) of section 107 of the Act of 1936 or section 14 of the Act of 1947 on the period for which the trade may be carried on in the premises.

(5) The powers of this section shall be in addition to and not in derogation of any other powers of the local authority with reference to offensive trades.

(6) Nothing in this section shall extend or apply to any premises used for the carrying on of a trade or business in the course of which by-products from animals slaughtered for food are manufactured worked up processed produced sold or offered for sale.

For the purposes of this subsection “ by-products ” means and includes any material arising from any part of an animal after slaughter and whether in its natural state or after treatment.

(7) In this section the expression “ offensive trade ” has the same meaning as in section 107 of the Act of 1936.

*G Infectious diseases*PART VI
—cont.

Information to be furnished by occupier in case of notifiable disease.

140.—(1) On the application of the medical officer the occupier of any building which is used for human habitation in a district and in which there is or has been any person suffering from a notifiable disease shall furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) If any person required to furnish information under this section fails to furnish it or knowingly furnishes false information he shall be liable to a penalty not exceeding forty shillings.

(3) In this section—

(a) the expression “occupier” includes—

(i) a person having the charge management or control of the building or of the part of the building in which the person suffering from a notifiable disease is or has been ; and

(ii) in the case of a building the whole of which is ordinarily let out in separate tenements or in the case of a lodging-house the whole of which is ordinarily let to lodgers the person receiving the rent payable by the tenants or lodgers either on his own account or as the agent of another person ;

(b) the expression “notifiable disease” includes food poisoning.

Restriction on attendance at schools places of assembly etc.

141. Section 148 of the Act of 1936 shall in its application to a district have effect as if the following paragraph were substituted for paragraph (b) thereof:—

“ (b) having the care of a person—

(i) whom he knows to be suffering from a notifiable disease ; or

(ii) whom he cannot permit to attend school without contravening section 150 of this Act ;

causes or permits that person to expose other persons to the risk of infection by his presence or conduct in any such place as aforesaid ; or ”.

Exclusion of children from entertainments.

142.—(1) With a view to preventing the spread of a notifiable disease a local authority on the advice of the medical officer may by notice published in such manner as they think best for bringing it to the notice of persons concerned prohibit the admission of persons under the prescribed age to places of entertainment or assembly in a district for a time specified in the notice.

(2) If the person responsible for the management of any place of entertainment or assembly having been served by a local authority with a copy of a notice published under the preceding

subsection admits any person under the prescribed age to that place in contravention of the notice he shall be liable to a penalty not exceeding five pounds:

PART VI
—cont.

Provided that in any proceedings under this subsection it shall be a defence to prove that there were reasonable grounds for believing that the person admitted had attained the prescribed age.

(3) In this section the expression “ prescribed age ” in relation to any notice means such age not exceeding sixteen as may be prescribed by the notice.

143. If with a view to preventing the spread of—

(a) a notifiable disease ; or

(b) a milkborne disease as defined in section 37 of the Food and Drugs Act 1938 ; or

(c) food poisoning ;

Compensation
for stopping
employment
to prevent
spread of
disease.

the medical officer requests in writing any person to discontinue his employment a local authority may if they think fit compensate him for any loss occasioned by his compliance with the request.

144.—(1) If it is shown to the satisfaction of a justice of the peace on sworn information by the medical officer in writing—

Entry into
premises in
case of
notifiable
disease.

(a) that in any premises in a district there is a person who is or has been suffering from a notifiable disease ; and

(b) that admission to the premises or examination of that person has been refused or that refusal is apprehended or that the case is one of urgency or that an application for admission would defeat the object of the entry ;

the justice may by warrant under his hand authorise the medical officer to enter the premises if need be by force and examine any person found thereon :

Provided that no such warrant shall authorise the medical officer—

(i) to enter any premises except between the hours of seven in the morning and ten in the evening ; or

(ii) to examine a person who is already under the treatment of a registered medical practitioner except with the consent of that practitioner.

(2) On entering any premises by virtue of a warrant issued under this section the medical officer may take with him such other persons as may be necessary.

(3) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

PART VI

—cont.

Prohibition of
tuberculous
persons from
handling food.**145.**—(1) If the medical officer certifies—

- (a) that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state ; and
- (b) that he is occupied in the cooking preparation or handling of food in a district intended for consumption by persons other than himself or members of his household ; and
- (c) that his continuance in that occupation would in the judgment of the medical officer be a danger to the health of other persons ;

the medical officer or any other person authorised in that behalf by the local authority may request him in writing to discontinue his occupation as aforesaid.

(2) If any person requested as aforesaid complies with the request the local authority may if they think fit compensate him for any loss occasioned by his compliance with the request.

(3) If any person requested as aforesaid fails to comply with the request a court of summary jurisdiction may on the application of the local authority order him to comply with the request and may by any such order if it thinks fit direct that such compensation (if any) as it thinks equitable shall be paid to him by the local authority.

(4) If any person fails to comply with any such order he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(5) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

H Food

Inedible fat.

146. If any person takes or causes to be taken any fat unfit for food into any premises in a district in which any food of which fat is an ingredient is manufactured or prepared for sale he shall be liable to a penalty not exceeding ten pounds or in the case of a second or subsequent offence to a penalty not exceeding fifty pounds :

Provided that in any proceedings under this section it shall be a defence to prove that the fat was not taken into the premises for the purpose of being used and has not been used as an ingredient in the manufacture or preparation of food.

Registration
of hawkers of
food and their
premises.

147.—(1) As from the appointed day in any district the following provisions shall have effect therein:—

- (a) No person shall sell or offer or expose for sale any food from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless he is registered by the local authority of the district in which the food is sold or offered or exposed for sale ;

- (b) No premises shall be used as storage accommodation for food intended for sale from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless the premises are registered by the local authority in whose district the premises are situated :

Provided that nothing in this subsection shall apply—

- (i) to the sale or offer or exposure for sale of food by a person keeping open shop for the sale of food or by a person employed and in the course of his employment by such a person or to the use by a person so keeping open shop or by a person employed and in the course of his employment by such a person of any premises as storage accommodation for food intended for sale by him or his employer (as the case may be) ;
- (ii) to the sale or offer or exposure for sale of food by a dairyman registered under regulations for the time being in force under Part II of the Food and Drugs Act 1938 as amended by any subsequent enactment or by a person employed and in the course of his employment by such a dairyman or to the use by any person as storage accommodation for food of a dairy so registered ;
- (iii) to the use by any person as storage accommodation for food of premises registered under section 14 of the Food and Drugs Act 1938 ;
- (iv) to the sale or offer or exposure for sale of food by any person on premises owned or occupied by him or his employer or to the use by any person of any premises owned or occupied by him or his employer as storage accommodation for food intended for sale by him or his employer on those or any other such premises ;
- (v) to the sale or offer or exposure for sale of food by any person or to the use of any premises as storage accommodation for food intended for sale if the profits of the sale are devoted to a religious or charitable purpose ;
- (vi) to the sale or offer or exposure for sale of food by any person or by any person employed by him at any market or fair for which either such person has paid a toll stallage or rent or to the use of any premises in any such market or fair as storage accommodation for food intended for sale by any such person at such market or fair.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

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—cont.

(3) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the occupier or intending occupier thereof.

(4) If it appears to the local authority—

- (a) that the public health is or is likely to be endangered by any act or default of a person who has applied to be or is registered under this section being an act or default in relation to the quality storage or distribution of food ; or
- (b) that any premises in respect of which an application has been made for registration under this section or which are registered under this section do not satisfy the requirements of subsection (1) of section 13 of the Food and Drugs Act 1938 or are otherwise unsuitable for use as storage accommodation for food intended for sale as aforesaid ;

the local authority shall serve on that person or on the person applying for the registration of the premises or in the case of premises which are registered the occupier of the premises a notice—

- (i) stating the place and time (not being less than seven days after the date of the service of the notice) at which it is proposed that a committee of the local authority shall take the matter into consideration ; and
- (ii) informing him that he may attend before the said committee with any witnesses whom he desires to call at the place and time mentioned to show cause why the local authority should not for reasons specified in the notice refuse to register him or the premises or revoke his or their registration (as the case may be).

(5) If a person on whom a notice is served under the last preceding subsection fails to show cause to the satisfaction of the said committee the local authority may refuse to register him or the premises or revoke his or their registration (as the case may be) and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(6) Any person aggrieved by a decision of the local authority under the last preceding subsection may appeal to a court of summary jurisdiction.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

(8) For the purposes of this section the expression "food" does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

PART VI
—cont.

I Animals and meat

148.—(1) A local authority may make byelaws—

Byelaws as to
sale etc. of
certain articles
for animal
feeding
purposes.

(a) for regulating the construction and equipment of any premises other than a knacker's yard at or from which horseflesh or diseased or unsound meat is—

(i) prepared for sale ;

(ii) sold or offered or exposed for sale ; or

(iii) deposited for the purpose of sale or preparation for sale ;

as food for any animal or for use in the composition or preparation of any such food ;

(b) for regulating the cleanliness and sanitary conditions of such premises and the provision of suitable storage therein for food intended for animal consumption ;

(c) for requiring the keeping of accurate records of—

(i) the description quantities and weights of all horseflesh and all meat (whether wholesome or diseased or sound or unsound) and all products of horseflesh or of such meat as last aforesaid delivered at or sold otherwise than by retail at or from any premises (not being a knacker's yard) at which the sale or offer or exposure for sale of horseflesh or diseased or unsound meat is carried on ;

(ii) the dates at which such deliveries and sales take place ; and

(iii) the names and addresses of the persons from whom the articles so delivered are obtained and the persons to whom such sales are made ;

(d) for requiring the sterilisation in such manner as may be prescribed by the byelaws of animal feeding meat exposed or offered for sale for consumption by dogs and cats or other animals ;

(e) for prohibiting the sale or offer or exposure for sale of animal feeding meat for consumption by dogs cats or other animals unless such meat has been so sterilised ;

(f) for empowering an authorised officer to examine any animal feeding meat which is offered or exposed for sale for consumption by dogs cats or other animals and to seize and destroy or cause to be destroyed such animal feeding meat if it has not been so sterilised as aforesaid ;

Provided that nothing in any byelaws made under the provisions of this section shall extend or apply to require the sterilisation of animal feeding meat which is supplied to a

PART VI
—cont.

zoological garden or to a menagerie for consumption by carnivorous animals and which has been examined and passed as fit for animal food by an authorised officer.

(2) (a) As from the appointed day in any district and subject to the provisions of this subsection no premises (not being a knacker's yard) shall be used for the sale or offer or exposure for sale or deposit or consignment for sale or preparation for sale of horseflesh or diseased or unsound meat as food for any animal or for use in the composition or preparation of any such food unless such premises are registered under this section for that purpose by the local authority and a person who uses any premises in contravention of the provisions of this subsection shall be liable in the case of a first offence to a penalty not exceeding ten pounds and in the case of a subsequent offence to a penalty not exceeding fifty pounds or to imprisonment for a term not exceeding two months or to both such a penalty and such imprisonment.

(b) Subject to the following provisions of this subsection the local authority shall on the application of the occupier of or of a person proposing to occupy any premises register those premises for the purposes of this subsection.

(c) If it appears to the local authority that any premises for the registration of which application has been made under this subsection or which are registered under this subsection do not satisfy the requirements of any byelaws made under subsection (1) of this section or are otherwise unsuitable for use for the purpose for which they are proposed to be used or are being used the local authority shall serve on the applicant for registration or (as the case may be) on the occupier for the time being of the premises a notice stating the place and time not being less than seven days after the date of the service of the notice at which they propose to take the matter into consideration and informing him that he may attend before them with any witnesses whom he desires to call at the place and time mentioned to show cause why the local authority should not for reasons specified in the notice refuse the application or (as the case may be) cancel the registration of the premises.

(d) If a person on whom a notice is served under the last preceding paragraph fails to show cause to the satisfaction of the local authority they may refuse the application or (as the case may be) cancel the registration of the premises and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(e) The provisions of sections 87 88 89 and 90 of the Food and Drugs Act 1938 shall apply in relation to any appeal to a

court of summary jurisdiction and any order determination or other decision of a court of summary jurisdiction and any appeal and any decision of the local authority under this subsection in the same way as they apply in relation to the corresponding proceedings under that Act.

(f) Upon any change in the occupation of premises registered under this subsection the incoming occupier shall if he intends to use them for the purpose for which they are registered forthwith give notice of the change to the local authority who shall thereupon make any necessary alteration in their register. If a person required to give a notice under this paragraph fails to do so he shall be liable to a penalty not exceeding five pounds.

(3) An authorised officer of the local authority and producing if so required his authority shall have power at all reasonable times to enter and inspect premises registered under this section for the purpose of inspecting such registered premises and examining whether there is any contravention of the provisions of this section or any byelaws made thereunder and inspecting any records required by any such byelaws to be kept and also any other premises (not being a knacker's yard) which there is reasonable cause to believe are being used for the sale or offer or exposure or preparation for sale of horseflesh or diseased or unsound meat.

(4) In this section—

the expression "animal feeding meat" means any flesh of cattle horses asses mules swine sheep or goats which is not sold or intended for sale for human consumption and includes any such flesh whether cooked or uncooked and whether alone or accompanied by or mixed with any other substance ;

the expression "authorised officer" means any officer who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act relating to unsound food ;

the expression "flesh" includes any part of an animal ;

the expression "horseflesh" has the meaning given to it in subsection (5) of section 38 of the Food and Drugs Act 1938 ;

the expression "horseflesh or diseased or unsound meat" shall not include any horseflesh or meat or any product containing any of those substances which whilst remaining on the premises is contained in tins effectually sealed ;

the expression "knacker's yard" has the meaning given to it in subsection (1) of section 100 of the Food and Drugs Act 1938.

PART VI

—cont.

Slaughter of
animals
otherwise than
for human
consumption.

149.—(1) As from the appointed day in any district the following provisions shall have effect with respect to the slaughter therein of any of the following animals namely horses cattle sheep goats or pigs where the animal owing to emaciation or disease is slaughtered otherwise than for sale for human consumption within the meaning of the Public Health (Meat) Regulations.

(2) The owner of any such animal shall comply with the following provisions:—

(a) He shall not less than twelve hours before slaughtering the animal or causing it to be slaughtered give notice to an authorised officer of the intention to slaughter it unless by reason of accidental injury illness or exposure to infection it is necessary to slaughter it before the expiration of twelve hours from the giving of such notice or before such notice is given ;

(b) Where it is necessary by reason aforesaid to slaughter the animal before the expiration of the said twelve hours he shall retain the carcase intact until the expiration of twelve hours from the time of slaughter or until its disposal is approved by an authorised officer whichever first occurs ;

(c) Where it is necessary by reason aforesaid to slaughter the animal before such notice is given he shall give notice of the slaughter to an authorised officer as soon as practicable thereafter and shall retain the carcase intact until the expiration of twelve hours from the time when notice is given under this paragraph or until its disposal is approved by an authorised officer whichever first occurs ;

(d) He shall on the application of an authorised officer made within two weeks from the date of the slaughter of the animal furnish such information within his knowledge as that officer may reasonably require for the purpose of enabling him to trace the disposition of the carcase or any part thereof.

(3) If any person—

(a) fails to comply with any of the provisions of subsection (2) of this section ; or

(b) furnishes in response to an application under paragraph (d) of that subsection information which he knows to be false ;

he shall be liable to a penalty not exceeding ten pounds.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Act 1950 or Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

14 Geo. 6.
c. 36.

1 Edw. 8. &
1 Geo. 6. c. 70.

(5) In this section—

PART VI
—cont.

- (a) the expression “authorised officer” means any officer of a local authority who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act relating to unsound food;
- (b) the expression “Public Health (Meat) Regulations” means regulations for the time being in force under section 8 of the Food and Drugs Act 1938 or having effect by virtue of subsection (3) of section 101 of that Act as if they had been made under the said section 8.

150.—(1) As from the appointed day in any district where the slaughter of an animal intended for human consumption shall take place outside a slaughter-house and the carcase of the animal shall be brought into a slaughter-house within the district such carcase and all the organs thereof shall be retained and kept separate and apart from any other meat intended for human consumption until such carcase and organs have been inspected or their removal has been authorised in accordance with the provisions of the Public Health (Meat) Regulations. Animals slaughtered outside slaughter-houses.

(2) Where there is any contravention of the provisions of this section the occupier of the slaughter-house and also the person by whom the carcase is prepared or dressed shall be liable to a penalty not exceeding five pounds.

(3) In this section—

- (a) the expression “Public Health (Meat) Regulations” means regulations for the time being in force under section 8 of the Food and Drugs Act 1938 or having effect by virtue of subsection (3) of section 101 of that Act as if they had been made under the said section 8;
- (b) “animal” “slaughter-house” and “meat” have the same respective meanings as in the Public Health (Meat) Regulations.

151.—(1) A local authority may acquire and convert utilise Acquisition of certain residuals etc. and disposal thereof. treat or otherwise make merchantable any condemned meat and by-products not required by persons whose business is that of manufacturing working up processing producing selling or offering for sale by-products which may at any time be in any slaughter-house or abattoir in their district.

(2) Any condemned meat or by-product acquired or made merchantable under the powers of this section may be sold or otherwise disposed of by the local authority.

(3) For the purposes of this section “by-products” means and includes any material arising from any part of an animal after slaughter and whether in its natural state or after treatment.

*J Rivers and streams*PART VI
—cont.

For preventing
obstruction to
streams by
culverts etc.

152.—(1) Where any obstruction is or may be caused to any river or stream by any inadequate or insufficient culvert channel or other work a local authority may within their district reconstruct improve repair or remove such culvert channel or work or may construct and maintain a proper and sufficient or enlarged culvert channel or other work.

(2) A local authority and any other local authority or person may enter into and carry into effect agreements for and with respect to the carrying out of any works of construction reconstruction improvement repair maintenance or removal for the purposes of this section.

(3) Nothing in this section shall be deemed to—

- (a) restrict the exercise by the local authority of their powers in relation to culverts channels or other works; or
- (b) impose upon the local authority any liability to maintain a culvert channel or other work.

(4) Nothing in this section shall authorise the local authority to execute any works in through or under or so as to affect any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(5) Nothing in this section shall authorise the local authority to execute any work in or in connection with any watercourse for the time being vested in or under the control of any internal drainage board without the consent in writing of that board which consent may be given subject to such reasonable terms and conditions as the said board may think fit but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld or whether such terms and conditions are or are not reasonable shall be determined by the Minister of Agriculture and Fisheries.

Cleansing of
rivers and
streams.

153.—(1) If any river or stream or any part thereof within a district is or becomes in such a state that the proper flow of water along the same is obstructed or impeded the local authority may by notice require the owner or occupier of any lands abutting on any part of such river or stream which is in such a state as aforesaid or any person by whose act or default the proper flow of water in such river or stream is obstructed or impeded to cleanse or put in proper order such river or stream or part thereof so as to allow the proper flow of water in such river or stream.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) Nothing in this section shall authorise the local authority to execute or require the commission to execute any works in through or under or so as to affect any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(4) The powers of this section shall not be exercised in relation to any river or stream for the time being vested in or under the control of any internal drainage board without the consent in writing of that board which consent may be given subject to such reasonable terms and conditions as the said board may think fit but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld or whether any such terms and conditions are or are not reasonable shall be determined by the Minister of Agriculture and Fisheries.

154.—(1) Any authorised officer of a local authority shall on producing if so required some duly authenticated document showing his authority have a right to enter any premises at all reasonable hours for the purpose of—

Entry for purposes of last two preceding sections.

- (a) inspecting any river or stream or any culvert channel or other work ;
- (b) ascertaining whether or not circumstances exist which would authorise or require the local authority to take any action or execute any work under the last two preceding sections ;
- (c) taking any action or executing any work authorised or required by the last two preceding sections to be taken or executed by the local authority :

Provided that admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) The provisions of this section shall not authorise any officer of the local authority to enter any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

K Miscellaneous

PART VI

—cont.

Hairdressers
and barbers.

155.—(1) As from the appointed day in any district no person shall carry on the business of a hairdresser or barber or manicurist on any premises therein unless he and those premises are registered by the local authority of the district in which the premises are situate.

(2) Subject to the provisions of this section any person who makes an application in that behalf and furnishes the local authority with particulars of his name and residence and of the premises in respect of which he desires to be registered shall be registered in respect of those premises by the local authority in a book kept for the purpose and on so registering any person the local authority shall issue to him a certificate of registration.

(3) The local authority may make byelaws for the purpose of securing—

(a) the cleanliness of premises registered under this section and of the instruments towels materials and equipment used therein; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(4) If any person carries on business in contravention of subsection (1) of this section or contravenes any byelaw made under subsection (3) of this section he shall be liable—

(a) in the case of a contravention of subsection (1) to a penalty not exceeding twenty pounds and a daily penalty not exceeding five pounds; and

(b) in the case of a contravention of a byelaw to a penalty not exceeding five pounds;

and in either case the court by which he is convicted may (in lieu of or in addition to imposing a penalty) order the suspension or the cancellation of his registration.

(5) Where the registration of any person is cancelled by order of a court under the last preceding subsection—

(a) he shall within seven days deliver up to the local authority his certificate of registration and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings; and

(b) he shall not again be registered by the local authority under this section except in pursuance of a further order of a court of summary jurisdiction made on his application.

(6) A person registered under this section shall keep a copy of the said byelaws and of his certificate of registration displayed in the premises in respect of which he is registered and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

PART VI
—cont.

156. A local authority may erect construct provide maintain furnish equip regulate and manage medicated and other baths (including baths the efficient properties of which are due to agencies other than water but excluding baths for use for therapeutic purposes) and they may demand and take reasonable charges for the use thereof.

Medicated and other baths.

157. As from the appointed day in any district if any person for the purpose of obtaining for himself or any other person a rebate in the rent of any house belonging to the local authority or a reduction in the amount of any other payment due to the local authority—

False statements to obtain rent rebate etc.

- (a) knowingly makes to the local authority or any of their employees a false statement or false representation relating to his or that other person's ability to pay the rent or make the payment; or
- (b) produces or furnishes or knowingly allows to be produced or furnished to the local authority or any of their employees any document or information relating as aforesaid which he knows to be false in a material particular;

he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding four months or to both such fine and imprisonment.

PART VII

ESTABLISHMENTS FOR MASSAGE OR SPECIAL TREATMENT

158. In this Part of this Act the expression “ establishment for massage or special treatment ” means any premises or part thereof in the county used or represented as being or intended to be used for the reception or treatment of persons requiring—

Definition of establishment for massage or special treatment.

- (a) massage ; or
- (b) electric treatment physiotherapy or radiant heat light electric vapour or other baths for therapeutic purposes ; or
- (c) other similar treatment.

159.—(1) This Part of this Act shall not come into force in any part of the county except in pursuance of the following provisions of this section.

Date of commencement of Part VII.

PART VII
—cont.

(2) The Council may from time to time by resolution declare that this Part of this Act shall come into force in any particular district or districts specified in the resolution and at the date stated in the resolution :

Provided that no such date shall be earlier than the expiration of three months from the passing of the resolution and no such resolution shall be passed before the first day of January one thousand nine hundred and fifty-two.

(3) The Council shall forward a copy of such resolution to the Secretary of State.

(4) If any such resolution shall be passed by the Council this Part of this Act shall (subject to compliance by the Council with section 174 (Notice of Part VII) of this Act) come into force in the district or districts specified and at the date stated in the resolution.

(5) The expression "the prescribed date" in this Part of this Act means with respect to the several districts the respective dates on which this Part of this Act shall come into force in such districts respectively in accordance with the foregoing provisions of this section.

Establishments
for massage or
special
treatment to
be licensed.

160. On and after the prescribed date no person shall in a district in which this Part of this Act shall have come into force carry on an establishment for massage or special treatment without a licence from the Council authorising him so to do.

Application for
licences.

161.—(1) A person requiring a licence or the renewal of a licence under this Part of this Act shall make application in writing to the Council and shall in the application state—

- (a) his full name ;
- (b) his age and nationality ;
- (c) his technical qualifications ;
- (d) his private address or if the application be made by or on behalf of a company society association or body the registered or principal office (if any) of such company society association or body and so far as may reasonably be required the names and private addresses of the directors or other persons directly or indirectly responsible for the management of such company society association or body ;
- (e) the name under which and the address at which the establishment is carried on or proposed to be carried on ;
- (f) the nature of the establishment and of the business carried on or proposed to be carried on thereat ;
- (g) whether and if so to what extent he is or has been interested or employed in any other establishment for massage or special treatment ; and

(h) such further information (if any) as the Council may reasonably require with respect to him or the establishment carried on or proposed to be carried on by him.

(2) The person making an application under this section shall when making the application pay to the Council such fee as the Council may fix not exceeding—

	£	s.	d.
(a) in respect of an application for the grant of a licence	2	2	0
(b) in respect of an application for the renewal of a licence	1	1	0

and the fees paid on any application for the grant or renewal of a licence may be retained by the Council whether such licence is or is not granted or renewed.

(3) An applicant for a licence or renewal of a licence under this section shall give not less than twenty-one days' notice in writing of his intention to make such application to the Council and to the chief officer of police of the district in which the premises to which the application relates are situate.

(4) Every application for a licence to carry on an establishment for massage or special treatment in existence at the passing of any resolution under the foregoing provisions of this Part of this Act declaring that this Part shall come into force within the district in which the establishment is situate shall be made within two months after the date or (if more than one date) the latest date of publication under section 174 (Notice of Part VII) of this Act of the advertisement declaring that this Part shall come into force in that district.

(5) Subject to the foregoing provisions of this section the Council may make such regulations as they think fit as to the manner in which and the dates at which applications for a licence or the renewal of a licence under this Part of this Act shall be made.

162.—(1) The Council shall as soon as reasonably practicable after the receipt of an application under this Part of this Act grant or renew a licence to the applicant to carry on an establishment for massage or special treatment of the description and in the name and at the address specified in the application and may attach such conditions thereto as they may consider reasonably necessary for securing the due notification to them of any change in the name or private address of the licensee or in the treatment afforded or the nature of the business carried on at the establishment and generally for securing the proper conduct of the establishment:

Provided that the Council before granting a licence in respect of any particular establishment for massage or special treatment shall give notice to the local authority of the district in which the

Grant of
licences.

PART VII
—cont.

establishment is situate of the application for the licence and of the date when the application will be considered by the Council and shall have regard to any representations which may be made to the Council by the local authority with respect to the application or the establishment to which it relates:

Provided also that the Council may refuse to grant or renew a licence or may revoke a licence granted—

- (a) to any person under the age of twenty-one years; or
- (b) to any person who may be unsuitable to hold such a licence; or
- (c) in respect of any premises which are unsuitable for the purposes of an establishment for massage or special treatment or in which the accommodation or provision for such treatment is not reasonably adequate or suitable; or
- (d) in respect of any establishment which has been or is being improperly conducted; or
- (e) in respect of any establishment in which massage or special treatment is or may be administered by any person who does not possess such technical qualifications as may be reasonably necessary; or
- (f) in respect of any establishment which is being carried on in contravention of the provisions of this Part of this Act or any byelaw made thereunder.

(2) If the Council refuse to grant or renew a licence or revoke a licence under this Part of this Act they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days of the receipt of such requirement particulars in writing of the ground or grounds for such refusal or revocation.

(3) Where an application is made for the renewal of a licence and objections have been taken to such renewal or when it is proposed to revoke a licence notice in writing to that effect shall at least seven days before the question of renewal or revocation is considered be given to the applicant or holder of the licence and if within three days after the receipt of this notice the applicant or holder requires to be heard the application shall not be refused or the licence revoked unless the Council have afforded him an opportunity of being heard against the refusal or revocation.

Any notice served under this subsection shall state the objections to renewal or the grounds on which revocation is proposed and shall notify the aforesaid right of being heard and also the effect of subsection (2) of this section and the right of appeal conferred by subsection (5) of this section and section 281 (Appeals) of this Act and the time within which such appeal may be brought.

(4) Every such licence as aforesaid shall (unless revoked) be valid for a period of one year:

Provided that the Council may if they deem it convenient so to do—

(a) at their annual meeting for considering applications under this Part of this Act in respect of establishments or premises within any particular district first held after the resolution of the Council declaring that this Part of this Act shall be in force in that district grant licences to be valid for a period not exceeding fifteen months; and

(b) grant or renew any licence otherwise than at an annual licensing meeting for considering applications as aforesaid for a period expiring at the same date as the licences granted at the then last preceding annual meeting for such purpose.

(5) Any person aggrieved by the refusal of the Council to grant or renew a licence under this section or by the revocation by the Council of a licence or by the conditions attached to such licence may appeal to a court of summary jurisdiction.

163.—(1) As soon as reasonably practicable after the grant renewal or revocation by the Council of a licence under this Part of this Act or the refusal by the Council to grant or renew such a licence the Council shall give notice of their decision to the local authority of the district in which are situate the premises to which the licence or the application for a licence related. If there be any appeal under subsection (5) of the last preceding section and section 281 (Appeals) of this Act the Council shall as soon as practicable give to the relevant local authority notice of the appeal and after the hearing of the appeal notice of the decision thereon.

Council to give notice to local authorities as to licences.

(2) Where the powers and duties of this Part of this Act are exercisable by a local authority as provided by subsection (1) of section 172 (As to exercise of powers of Part VII by local authorities) of this Act any notice required to be given by subsection (1) of this section by the Council to the local authority shall be given to the Council by such local authority.

164.—(1) The Council may make byelaws—

Byelaws as to establishments for massage etc.

(a) prescribing the keeping by every person holding a licence under this Part of this Act of books cards or forms showing the business conducted by him so far as it relates to his establishment for massage or special treatment;

(b) prescribing the entries to be made in connection with such business in such books or cards or forms;

PART VII
—cont.

- (c) prescribing the technical qualifications to be possessed by any person who administers massage or special treatment at any establishment licensed under this Part of this Act ;
- (d) for preventing fraud and immorality in the conduct of establishments so licensed ; and
- (e) generally for regulating any premises used for the purposes of or in connection with any such establishment.

(2) A copy of all byelaws made under this section shall as soon as reasonably practicable after the byelaws have been confirmed or allowed be sent by the Council to the local authority of every district in which this Part of this Act is at the time in force.

(3) Where the powers and duties of this Part of this Act are exercisable by a local authority as provided by subsection (1) of section 172 (As to exercise of powers of Part VII by local authorities) of this Act a copy of any byelaws made under this section by the local authority shall be sent by such local authority to the Council and after such byelaws have been confirmed or allowed any byelaws made by the Council under this section shall cease to apply in the district of such local authority.

(4) Every person holding a licence under this Part of this Act shall keep exhibited in a suitable place (to be approved by the Council) in the premises to which the licence relates a copy of the byelaws made by the Council under this section.

Powers of
entry and
inspection.

165. Any officer or other person duly authorised by the Council in that behalf may and any officer or other person duly authorised by any local authority in that behalf may as regards premises in the district of the local authority—

- (a) enter the premises specified in any licence or application under this Part of this Act or any premises which are situate within a district in which this Part of this Act is in force and are used or which there is reasonable cause to believe are used for the purposes of or in connection with an establishment for massage or special treatment ; and
- (b) inspect such premises and the books cards or forms kept in connection with the establishment carried on at those premises.

Penalties for
offences in
respect of
establishments
for massage
etc.

166.—(1) Subject to the provisions of this Act every person who in a district in which this Part of this Act is in force carries on an establishment for massage or special treatment without a licence under this Part of this Act or otherwise than in accordance with the terms and conditions of such licence or obtains a licence or the renewal of a licence by wilful misrepresentation or

by wilfully omitting to give such particulars as are required by this Part of this Act to be given shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding twenty pounds and in respect of a second or subsequent offence the court may in lieu of or in addition to inflicting a fine impose any term of imprisonment not exceeding three months.

(2) Subject as aforesaid every person who in a district in which this Part of this Act is in force—

(a) refuses to permit any officer or person duly authorised by the Council or of any local authority to enter or inspect any premises which such officer or person is authorised under the provisions of this Part of this Act to enter and inspect or obstructs any such officer or person in the execution of his duty under such provisions or under the provisions of any byelaw made thereunder ; or

(b) contravenes the provisions of any byelaw made under this Part of this Act ; or

(c) issues publishes or displays or causes to be issued published or displayed any advertisement relating to an establishment for massage or special treatment which is not licensed in accordance with the provisions of this Part of this Act after the expiration of a period of seven days from the receipt of notice in writing from the Council that the licence relating to such establishment has expired or has been refused or revoked under the provisions of this Part of this Act ;

shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) In respect of any conviction for an offence under this Part of this Act the court may (in lieu of or in addition to imposing a penalty) make an order revoking the licence (if any).

167. Proceedings for the recovery of any penalties imposed by Local authorities may institute proceedings for penalties.
this Part of this Act may be taken by the Council or by the local authority for the district in which the offence was committed :

Provided that proceedings shall not be taken by both the Council and the local authority for the same offence.

168. The local authority of every district in which are situate Local authorities to report to Council.
any premises where there is carried on an establishment for massage or special treatment licensed by the Council under this Part of this Act shall during the first week of October in each year or at such other date as the Council may approve send to the Council a report on the conduct and management of the establishment since the date of the grant or last renewal of the

PART VII
—cont.

licence and such report may contain recommendations as to the renewal of the licence or otherwise and if it contains a recommendation that the renewal of the licence be refused shall state the grounds for such recommendation.

If a local authority during the period in which a licence shall be in force relating to premises situate in their district shall detect the existence of conditions which under subsection (1) of section 162 (Grant of licences) of this Act would be a ground for the revocation of the licence or shall secure a conviction against the holder of the licence for any of the offences enumerated in section 166 (Penalties for offences in respect of establishments for massage etc.) of this Act the local authority shall thereupon report the existence of such conditions or the offence to the Council with such recommendation as to revocation of the licence or otherwise as the local authority may deem expedient.

Saving for
establishments
carried on by
medical
practitioners.

169. Subject as hereinafter provided the provisions of this Part of this Act shall not apply to an establishment for massage or special treatment carried on by a duly registered medical practitioner.

Saving for
members of
Chartered
Society of
Physiotherapy.

170.—(1) Subject as hereinafter provided the provisions of this Part of this Act prohibiting a person from carrying on an establishment for massage or special treatment without a licence from the Council authorising him so to do shall not apply to a registered member of the Chartered Society of Physiotherapy carrying on or proposing to carry on any such establishment with respect to which there has been lodged with the Council a certificate in a form to be approved by the Council and signed by two registered medical practitioners practising or residing in the county not being in partnership with each other and not having any financial or other interest in such establishment to the effect that the person carrying on or proposing to carry on such establishment is a suitable person to carry on the same at the premises used or to be used therefor:

Provided that any such certificate shall not be valid—

- (a) with respect to any person or premises other than the person or premises specified therein; or
- (b) for a period extending beyond the expiration of one month after the date of the annual meeting fixed for the purpose of considering applications under this Part of this Act.

(2) Any registered member of the said society carrying on an establishment for massage or special treatment with respect to which a valid certificate is deposited with the Council under subsection (1) of this section is in this section referred to as a “registered member”.

(3) During the validity of any such certificate the provisions of this Part of this Act (other than section 160 (Establishments for massage or special treatment to be licensed) section 161 (Application for licences) and section 162 (Grant of licences)) shall apply to a registered member and to the establishment carried on by him—

(a) as if he held a licence under this Part of this Act ; and

(b) as if the premises with respect to which the certificate has been given were the premises specified in the licence :

Provided that no person other than a medical officer of health or a qualified medical practitioner in the employment of the Council shall be entitled for the purposes of this Part of this Act to inspect the premises at which the establishment is carried on or the books cards or forms kept in connection with such establishment.

(4) The provisions of this section shall apply to a registered member and to the establishment carried on by him so long only as he complies with the provisions of the charter granted to the said society and with the byelaws made thereunder.

171. Notwithstanding anything in this Part of this Act the provisions thereof shall not except as provided by the next succeeding section apply to— Saving for certain premises.

(a) any hospital provided by the Minister of Health ; or

(b) any nursing home which is for the time being registered under Part VI of the Act of 1936 or exempted from registration under that Act by a certificate granted either by the Council or by the said Minister and at which the persons administering massage or special treatment have such technical qualifications as may be reasonably necessary ; or

(c) any premises used for the reception or treatment of persons for any purpose to which the provisions of this Part of this Act apply but not so used for the purpose of gain or reward ; or

(d) any premises being an establishment for massage or special treatment merely by reason of face or scalp massage being administered in those premises.

172.—(1) If at any time before the first day of January one thousand nine hundred and fifty-two a local authority shall by notice in writing addressed to the clerk of the Council notify the Council of their desire that the powers and duties of this Part of this Act should so far as applicable be exercisable as respects their district by such local authority the Council shall by resolution declare that this Part of this Act shall come into force in As to exercise of powers of Part VII by local authorities.

PART VII
—cont.

such district on the date on which the resolution takes effect under subsection (2) of this section and upon such resolution taking effect the said powers and duties shall be exercisable by such local authority:

Provided that the Council may by their resolution impose such conditions and restrictions (if any) upon the exercise of such powers and duties by such local authority as may be agreed between the Council and such local authority or as failing agreement may be determined by the Secretary of State.

(2) The resolution referred to in subsection (1) of this section shall come into force as soon as practicable after the conditions and restrictions referred to in that subsection shall have been agreed or determined by the Secretary of State.

(3) Where the powers and duties of the preceding sections of this Part of this Act are exercisable by a local authority as provided by subsection (1) of this section this Part of this Act shall subject to the provisions thereof have effect as if references to such local authority were respectively substituted therein for the references to the Council.

Saving for
future
autonomous
licensing
authorities.

173. If any local authority shall by any enactment passed after the passing of this Act be empowered (either directly or by adoption) to exercise powers and duties in relation to establishments for massage or special treatment within their district similar to the powers and duties of the Council under this Part of this Act then as from the date on which such local authority shall have commenced to exercise under such enactment the first-mentioned powers and duties the provisions of this Part of this Act and any such resolution of the Council as is referred to in subsection (1) of section 172 (As to exercise of powers of Part VII by local authorities) of this Act shall cease to be in force or have effect in or in relation to the district of that authority or if those provisions shall not have come into force in that district before the said date they shall not be brought into force therein by any resolution passed or to be passed by the Council.

Notice of
Part VII.

174.—(1) The Council shall as soon as practicable after the passing of any resolution under this Part of this Act declaring that this Part shall come into force in any particular district or districts cause to be published in a local newspaper circulating in such district or districts notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this Part of this Act.

(2) A copy of—

- (a) any such newspaper containing any such notice ; or
- (b) a photostatic or other reproduction certified by the clerk to the Council to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence that the provisions of this section have been complied with in regard to the district or districts to which the resolution of the Council referred to in the notice relates and of the date of the publication.

PART VII
—cont.

PART VIII

WEIGHTS AND MEASURES

A Sale of coal coke and wood

175. In this Part of this Act the expression “ coke ” includes Interpretation coke and any solid fuel derived from coal or of which coal or of Part VIII. coke is a constituent.

176. The provisions of sections 20 21 22 24 25 26 28 and 29 of the Weights and Measures Act 1889 and of any byelaws made by the Council thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the county and those provisions (except section 28 and the byelaws made thereunder) shall apply to the sale within the county of wood fuel in quantities of fourteen pounds or over.

Application of
Weights and
Measures Act
1889.

52 & 53 Vict.
c. 21.

177. The Council may make byelaws—

- (a) regulating for the purposes of this Part of this Act and the Weights and Measures Act 1889 the sale of wood fuel in quantities of fourteen pounds or over but not exceeding two hundredweights ; and
- (b) requiring either generally or in specified classes of cases a weighing instrument of a form approved by the Council to be carried with any vehicle in which wood fuel is carried for sale or delivery to a purchaser.

Byelaws
relating to
wood fuel.

178. If in the county any person wilfully makes any false statement as to the weight of any coke or wood fuel which is being sold delivered or offered or exposed for sale or as to the tare weight of a vehicle used for the delivery of coke or wood fuel or wilfully increases the weight of any such coke or wood fuel by damping the same or wilfully does any other act by which the seller or the purchaser or prospective purchaser of coke or wood fuel is or may be defrauded he shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

Penalty on
fraudulent sale.

PART VIII

—cont.

As to sale in
sacks of coal or
coke in
quantities
exceeding two
hundred-
weights.

179.—(1) Where in the county—

- (a) any quantity of coal or coke exceeding two hundredweights is carried by means of any one vehicle on any one journey for delivery to more than one purchaser ;
or
- (b) any person sells or intends to sell or exposes or offers for sale coal or coke from or on any vehicle in quantities exceeding two hundredweights ;

and such coal or coke is carried on such vehicle in sacks the net weight of coal or coke in any one sack shall be equal to one of the following weights :—

- two hundredweights ;
- one hundredweight ;
- one-half of a hundredweight ;
- one-quarter of a hundredweight ;

and each sack shall be legibly marked so as to show the net weight of coal or coke carried in such sack and a weighing instrument of a type approved by the Council and stamped by an inspector of weights and measures shall be carried on such vehicle.

(2) If default is made in complying with any of the requirements of subsection (1) of this section or the net weight of coal or coke in any such sack is less than the weight shown thereon or stated in the ticket or note referred to in section 21 of the Weights and Measures Act 1889 the seller of the coal or coke and the person responsible for loading the coal or coke on such vehicle and the person in charge of such vehicle shall severally be liable to a penalty not exceeding five pounds.

(3) In addition to the matters which in accordance with the said section 21 and the Third Schedule to the said Act of 1889 are required to be stated on the ticket or note referred to in that section there shall in all cases in which subsection (1) of this section applies be stated on such ticket or note the number of sacks carried on the vehicle to which the ticket or note refers and the net weight of coal or coke in each of such sacks and the said section 21 in its application to the county shall be read and have effect accordingly.

Notice of
Part VIII.

180.—(1) The foregoing provisions of this Part of this Act shall come into operation on but not until the first day of January one thousand nine hundred and fifty-two.

(2) (a) The Council shall forthwith after the passing of this Act cause public notice to be given of the effect of this Part of this Act by advertisement in two or more newspapers circulating in the county and otherwise in such manner as the Council think fit.

(b) No evidence shall be required in any proceedings that the provisions of this subsection have been complied with.

B Weighbridges and weighing machines

PART VIII

—cont.

181.—(1) In this section the expression “personal weighing machine” means any weighing machine in the county which is used or exposed for use or proposed to be used or exposed for use for the purpose of ascertaining the weight of any person and—

Personal
weighing
machines.

(a) for the use of which a charge is made or is proposed to be made ; or

(b) which is kept or is proposed to be kept in any premises or place to which the public have access.

(2) The Council may make byelaws—

(a) generally with respect to the examination on verification and to the inspection of personal weighing machines and the distinguishing marks to be affixed to personal weighing machines under this section and the circumstances and conditions in and under which such marks may be affixed or cancelled ;

(b) with respect to the tests to be applied for the purpose of ascertaining the accuracy and efficiency of personal weighing machines ;

(c) for fixing the limits of error to be allowed on verification and inspection of any personal weighing machine ;

(d) for fixing the fees to be paid to the Council for the examination and marking of personal weighing machines submitted for verification or for the examination of such personal weighing machines as are found to be incorrect or defective.

(3) On and after the expiration of a period of twelve months from the coming into force of any byelaws made under subsection (2) of this section the owner or the person in charge of any personal weighing machine which is used or exposed for use and which is false or unjust beyond the limits allowed by any such byelaws as aforesaid shall be liable to a penalty not exceeding forty shillings or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited.

(4) On and after the expiration of the said period a personal weighing machine shall not be used or exposed for use unless such machine has been examined and approved by an inspector of weights and measures of the Council and has been marked with a distinguishing mark by such inspector or unless it has been stamped by an inspector of weights and measures in pursuance of the Weights and Measures Acts 1878 to 1936 and on or after the expiration of the said period the owner or the person in charge of any personal weighing machine which is used or

PART VIII
—cont.

exposed for use and which is not so stamped or marked shall be liable to a penalty not exceeding forty shillings or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited:

Provided that the provisions of this subsection shall not apply to a personal weighing machine owned by a travelling showman and used or exposed for use by him at a pleasure fair if at any time within the three months preceding such use or exposure for use such weighing machine has been examined and approved and marked by any inspector of weights and measures appointed under the Weights and Measures Acts 1878 to 1936 or has been duly stamped by an inspector of weights and measures in pursuance of the said Acts and the said mark or stamp has not been cancelled.

(5) If any person forges counterfeits or removes any such stamp or distinguishing mark as is referred to in the last preceding subsection or unlawfully stamps or marks a machine with any such stamp or distinguishing mark or knowingly exposes for use any personal weighing machine on which there is any such forged or counterfeit stamp or mark he shall be liable to a penalty not exceeding five pounds and the machine shall be liable to be forfeited.

(6) (a) Any inspector of weights and measures of the Council may at all reasonable times examine inspect and test any personal weighing machine which is used or exposed for use and may seize and detain any personal weighing machine which there is reasonable cause to believe may be liable to be forfeited under the provisions of this section and may for such purposes enter any premises or place where there is reason to believe that there is a personal weighing machine which he is authorised to examine and inspect.

(b) Any person who neglects or refuses to produce for such examination inspection and testing any such personal weighing machine in his possession or custody or on his premises or refuses to permit any such inspector of weights and measures to examine inspect or test the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section shall be liable to a penalty not exceeding five pounds or in the case of a second or any subsequent offence ten pounds.

(7) For the purpose of this section a personal weighing machine shall not be deemed to be stamped or marked with a distinguishing mark by reason of its bearing a cancelled stamp or distinguishing mark.

(8) A personal weighing machine which is liable to be forfeited under any of the foregoing provisions of this section shall not be forfeited if in the opinion of the court it is reasonably

practicable having regard to cost or other relevant circumstances to restore such machine to a condition in which it may lawfully be used or exposed for use under this section.

(9) (a) The provisions of subsections (5) (6) and (7) of this section shall come into operation on but not until the date on which any byelaws made under subsection (2) of this section shall come into force and the Council shall forthwith after the confirmation of any such byelaws give public notice of the provisions of this section by advertisement in a local newspaper circulating in the county.

(b) No evidence shall be required in any proceedings that the provisions of this subsection as to public notice have been complied with.

182. A local authority may in any premises belonging to or occupied by them provide and maintain weighing machines for ascertaining the weight of persons and may charge for the use thereof.

Local authority may provide weighing machines.

183. Any person keeping or who acts as a keeper of a weighing machine in the county for the purpose of ascertaining the weight of any vehicle or the loading thereof (hereinafter in this Part of this Act called a "weighing machine") who shall—

Offences by weighing machine keepers and others.

(a) during ordinary business hours (which expression for the purposes of this section means from eight o'clock in the morning till six o'clock in the afternoon on weekdays other than Saturdays and from eight o'clock in the morning till half-past twelve in the afternoon on Saturdays) wilfully neglect on application duly to weigh any vehicle with or without loading that shall come to the machine kept by him to be weighed ;

(b) not fairly weigh any such vehicle with or without loading ;

(c) not deliver to the purchaser of any such loading or any person interested therein on application a ticket or account containing the true weight of such loading ;

(d) give to the driver of any such vehicle a false ticket or account of the weight of such vehicle or the loading thereof ;

(e) weigh any vehicle knowing that anything has been added to the loading thereof so as to increase the weight of the same or that the wheels thereof have been changed between the time of the same being weighed with its loading and the time of its coming back to be again weighed without its loading and shall not give immediate notice thereof to the person interested therein ; or

PART VIII
—cont.

(f) knowingly assist in or connive at any fraud committed or attempted concerning the weighing of any such vehicle or the loading thereof or shall make or connive at making any false representation of the weight of the same respectively ;

shall be liable to a penalty not exceeding ten pounds and in respect of any subsequent offence to a penalty not exceeding fifty pounds and in respect of any such subsequent offence the court may in lieu of or in addition to inflicting a penalty impose any term of imprisonment not exceeding six months :

Provided that paragraphs (a) and (b) of this section shall not impose an obligation to weigh any vehicle upon any railway canal or inland navigation undertakers or upon the Council or a local authority so far as the said paragraphs relate to a weighing machine not available for the public or upon the keeper of any such weighing machine.

Drivers of
vehicles to
take them
to weighing
machines on
request.

184.—(1) The driver of any vehicle in the county loaded with any goods to be sold by reference to the weight of such loaded vehicle shall at the request of the buyer or seller of any such goods or the person on whose behalf the same shall be consigned or of any of their respective agents or of an inspector of weights and measures of the Council or other officer appointed for the purpose by the Council take such vehicle with or without the loading thereof to be weighed by the nearest suitable and available weighing machine stamped by an inspector of weights and measures.

(2) If such vehicle shall be required to go a greater distance from the regular course of the road by which it would be otherwise necessary to pass than one mile the owner of such vehicle shall be paid sixpence for every half-mile that such vehicle shall be taken out of the direct road as aforesaid.

(3) All charges for carriage made under subsection (2) of this section together with the tolls or fees to be paid for weighing any such vehicle shall be paid by the person requiring the same to be weighed and such charges for carriage shall if demanded be paid before the driver of such vehicle shall be obliged to go out of his way for the purpose of having the same weighed.

(4) The driver of any such vehicle who shall not upon being requested and paid such charges as aforesaid (if demanded) take such vehicle to such weighing machine as hereinbefore is directed shall be liable to a penalty not exceeding ten pounds and the driver of any such vehicle who shall refuse to assist in the weighing of the same in such manner as the drivers of vehicles are used and accustomed to do shall be liable to a penalty not exceeding five pounds.

(5) The provisions of this section shall not apply with respect to any vehicle of the commission other than a vehicle loaded with goods to be sold as aforesaid and consigned for delivery within the county.

(6) For the purposes of this section the word “driver” includes the owner driver or person in charge of any vehicle.

185.—(1) The Council or any local authority may erect and maintain on any open space or public place on or adjoining any highway in the county or their district (as the case may be) such weighbridges or weighing machines and offices in connection therewith as they may consider necessary or desirable for the use of the public. Power to erect weighbridges.

(2) The Council or the local authority may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing machines erected by the Council or any local authority under the provisions of this section.

(4) The powers of this section shall not be exercised in such a manner as to obstruct or interfere with the access to or exit from any station wharf or depot of any railway canal or inland navigation undertakers.

(5) The Council or the local authority shall not exercise the powers of this section in relation to a trunk road without the consent of the Minister of Transport.

186. Any person who in regard to the weighing of any vehicle at any weighing machine in the county— Penalties on persons committing frauds.

(a) at or before the time of weighing any such vehicle shall place or knowingly leave any matter or thing in or about the same other than the proper loading thereof ;

(b) shall alter any ticket denoting the weight of any such vehicle or of the loading of the same ;

(c) shall make or use or be privy to the making or using of any false or fraudulent ticket or knowingly give a false statement to a weighing machine keeper respecting the weight of any such vehicle or the loading thereof ;

(d) after the weighing of such vehicle with the loading of the same shall remove any part of such loading and afterwards dispose or attempt to dispose of the residue of such loading as being the full loading denoted by such ticket ;

(e) after such vehicle and the loading thereof shall have been so weighed shall substitute or attempt to substitute any vehicle with or without the loading thereof or

PART VIII
—cont.

shall change the wheels of the vehicle which shall have been so weighed or make any alteration or do any other act to such vehicle before the same shall be brought back to the machine to be again weighed without the loading thereof;

(f) when any such vehicle shall have been weighed with the loading thereof at any such machine as aforesaid if required shall refuse to bring back the same without alteration to be weighed without the loading at the same machine; or

(g) shall be guilty of any other fraudulent contrivance touching the weight of any such vehicle or of the loading thereof;

shall be liable to a penalty not exceeding ten pounds and in respect of any subsequent offence to a penalty not exceeding fifty pounds and in respect of any such subsequent offence the court may in lieu of or in addition to inflicting a penalty impose any term of imprisonment not exceeding six months.

Further
offences in
relation to
weighing
machines.

187.—(1) Any person in the county who knowingly delivers or passes off or who knowingly causes or permits to be delivered or passed off with or in connection with a particular vehicle or the loading thereof any ticket which has been issued by a person keeping or acting as a keeper of a weighing machine to denote the weight of a different vehicle or loading shall be liable to a penalty not exceeding ten pounds and in respect of any such subsequent offence to a penalty not exceeding fifty pounds.

(2) Any person in the county in charge of a vehicle who in regard to the weighing of such vehicle at any weighing machine refuses after being requested so to do by any person keeping or who acts as a keeper of the weighing machine to give his name and address or who wilfully gives an incorrect name or address shall be liable to a penalty not exceeding ten pounds.

Power to
charge for use
of weighbridge
testing unit.

188.—(1) The Council may if they think fit hire out any weighbridge testing unit or any other appliance provided by them for the testing of weighbridges or weighing instruments to any local authority or person whether within or outside the county on such terms and conditions as the Council may from time to time prescribe and may make such reasonable charges as they think fit for the use of such unit or appliance.

(2) Nothing in this section shall affect or modify the requirements of the Weights and Measures Acts 1878 to 1936 in relation to the custody and use of local standards or working standards of weight or of measure.

(3) In this section the expression “local authority” has the meaning assigned to it by section 305 of the Act of 1933.

189.—(1) In addition to their powers under section 182 (Local authority may provide weighing machines) and section 185 (Power to erect weighbridges) of this Part of this Act the mayor aldermen and burgesses of the borough of Newark shall exercise the provisions of this Part of this Act in the borough of Newark and those provisions shall accordingly have effect with any necessary modifications including the substitution of—

PART VIII
—cont.
Application of certain provisions of Part VIII to Newark Corporation.

(a) “the mayor aldermen and burgesses of the borough of Newark” for “the Council”; and

(b) “the borough of Newark” for “the county”.

(2) The powers conferred by the said provisions shall not be exercised by the Council in the borough of Newark otherwise than by agreement under section 52 of the Weights and Measures Act 1878.

PART IX

SUPERANNUATION PENSIONS ETC.

190. In this Part of this Act—

“Act of 1937” means the Local Government Superannuation Act 1937;

“regulations” means the National Health Service (Superannuation) Regulations 1950;

“superannuation fund” means the superannuation fund of the Council;

words and expressions to which meanings are assigned in the Act of 1937 and to which meanings are not assigned by this Part of this Act have the same respective meanings.

Interpretation
of Part IX.
1 Edw. 8. &
1 Geo. 6. c. 68.

191.—(1) The provisions of this section and of the next succeeding two sections which provisions are in this Part of this Act referred to as “the extended provisions” shall come into operation on the first day of April one thousand nine hundred and fifty-two and shall apply to every employee of the Council who is or becomes a contributory employee in relation to the superannuation fund and to any justices’ clerk or assistant to a justices’ clerk who by virtue of section 20 of the Act of 1937 is or becomes deemed to be a contributory employee of the Council and to any person who by virtue of an order under section 1 of the Probation Officers (Superannuation) Act 1947 is or becomes a contributor to the superannuation fund except—

Extension and
modification
of Act of 1937.

(a) any employee of the Council who by virtue of Part III (Officers of local health authorities) or Part IV (Officers of local education authorities) of the regulations may become entitled to superannuation benefits under the Act of 1937 as modified by the regulations or would

PART IX
—cont.

have become so entitled had he not exercised the option under the regulations or under any regulations thereby revoked to retain former superannuation benefits;

- (b) any person who on the first day of April one thousand nine hundred and fifty-two is a contributory employee and who before the first day of June one thousand nine hundred and fifty-two gives notice to the Council that he desires that the extended provisions shall not apply to him:

Provided that such notice shall remain effective only so long as the person remains a contributory employee without a disqualifying break of service;

- (c) any contributory employee who on the first day of April one thousand nine hundred and fifty-two is entitled to contribute to the superannuation fund at a rate of less than five per cent. of his remuneration unless before the first day of June one thousand nine hundred and fifty-two he agrees that the rate of his contributions shall as from the said first day of April be increased to five per cent.;
- (d) any contributory employee who is appointed after the first day of April one thousand nine hundred and fifty-two and who is entitled to contribute to the superannuation fund at a rate of less than five per cent. of his remuneration unless within three months after his appointment he agrees that the rate of his contributions shall as from the date of his appointment be increased to five per cent.

(2) The Act of 1937 shall extend and apply in relation to any person to whom the extended provisions apply as if in consideration of the contributions required thereby there were substituted for any title accruing in respect of service reckonable under the Act of 1937 to a superannuation allowance lump sum retiring allowance injury allowance or death gratuity a title to such benefits as are conferred by regulations 7 to 9 inclusive (as modified by regulation 34) and regulation 12 of the regulations and there were conferred by the Act of 1937 in addition or in substitution for any similar benefits to which such person might become entitled thereunder in respect of service reckonable under the Act of 1937 the benefits conferred by regulations 10 11 and 13 of the regulations and the Act of 1937 shall have effect accordingly with any necessary modifications:

Provided that in the application of any regulation in Part I of the regulations for the purposes of this subsection references to pensionable age shall be construed as references to the age of compulsory retirement references in regulations 6 (1) (a) and

19 (1) to such an age as is thereafter mentioned shall be construed as references to the age of compulsory retirement and references to forty-five years or forty-five-eightieths respectively shall be construed as references to forty years and forty-eightieths respectively :

Provided also that the amount of any retiring allowance to which any person to whom the extended provisions apply may become entitled shall be increased as nearly as may be in accordance with the provisions of regulation 29 (3) of the regulations.

(3) The Act of 1937 in its application to any person to whom the extended provisions apply shall be further modified to provide that the Council may on any annual pension lump sum retiring allowance or death gratuity becoming payable to or in respect of such person resolve that in respect of every year of non-contributing service there shall be substituted for the fraction of his average remuneration a larger fraction thereof but not larger than the fraction applicable under the regulations in respect of every year of contributing service :

Provided that subject to the provisions of the next following section any extra charge resulting from any resolution passed by the Council under this subsection shall be repaid by the Council to the superannuation fund.

(4) The Act of 1937 in its application to any such person as aforesaid shall be further modified to confer a right on him by making payments similar to those provided for by the Third Schedule to the regulations to reckon any period of non-contributing service as a period of contributing service and shall have effect as if the provisions of the said Third Schedule were incorporated therein with the modification that the reference therein to the calculation of interest at the rate of two and one-half per cent. with yearly rests shall be construed as a reference to the calculation of interest at the rate of three per cent. per annum with half-yearly rests and with any other necessary modifications.

(5) The Act of 1937 shall be further amended to provide that any pension or injury allowance to which any such person as aforesaid becomes entitled shall be granted subject to the conditions contained in regulations 23 and 24 of the regulations with any necessary modifications in lieu of any similar conditions in corresponding provisions of the Act of 1937 :

Provided that where the person is re-employed by any local authority and is in his new employment a contributory employee or local Act contributor regulation 5 of the Local Government Superannuation (Reduction and Adjustment of Superannuation Allowance) Regulations 1939 shall apply with any necessary modifications.

PART IX
—cont.

(6) In this section the expression “local authority” has the meaning assigned to it by section 305 of the Act of 1933.

Application to
persons not
employed by
Council.

192. In every case in which under the Act of 1937 the regulations or the last foregoing section a discretion is exercisable in relation to a person to whom the extended provisions apply but who is not an employee of the Council and the effect of exercising such discretion in favour of that person would if this section had not been enacted be to increase the amount from time to time payable out of the superannuation fund to or in respect of him the following provisions shall have effect:—

(a) as regards any justices’ clerk or assistant to a justices’ clerk the discretionary powers shall be exercisable by the standing joint committee but a copy of every determination of that committee in reference thereto shall be sent forthwith to the Council who if dissatisfied therewith may within three months after the receipt thereof appeal to the Secretary of State whose decision shall be final;

10 & 11 Geo. 6.
c. 38.

(b) as regards persons to whom an order under section 1 of the Probation Officers (Superannuation) Act 1947 applies the discretionary powers shall be exercisable by the probation committee but a copy of every determination of that committee in reference thereto shall be sent forthwith to the Council who if dissatisfied therewith may within three months after the receipt thereof appeal to the Secretary of State whose decision shall be final.

Saving for
existing
officers.

193. Nothing in this Part of this Act shall prejudice or affect the rights already vested at the passing of this Act in any existing employee to whom the extended provisions apply in regard to the period of contributing or non-contributing service which on the first day of April one thousand nine hundred and thirty-nine he was entitled to take into account.

As to district
medical
officers.

194. Where the Council and one or more local authorities each agrees or has agreed to appoint the same person as assistant county medical officer of health for the county and medical officer of health for the district or districts or united district of such local authority or local authorities then in respect of any such person who is a contributory employee the provisions of regulation 48 (except paragraphs (2) and (5) thereof) and regulation 49 of the regulations shall with the necessary modifications apply in relation to his employment as such district medical officer of health and those provisions of the regulations shall be deemed to have applied accordingly as from the date of such appointment or from the appointed day defined in the regulations whichever is the later :

Provided that any such officer who was appointed as aforesaid prior to the passing of this Act may within three months thereafter elect that the foregoing provisions of this section shall not apply to him.

195.—(1) Subsection (2) of section 11 of the Act of 1937 (which authorises the grant of a gratuity in certain cases to a contributory employee who is permanently incapacitated by an injury sustained in the discharge of his duty) shall apply in respect of a contributory employee who has not attained the age of compulsory retirement applicable in his case and who ceases to be employed in consequence of his being permanently incapacitated by disease acquired by him in consequence of his duty and without his own default and specifically attributable to the nature of his duty. Power to grant gratuities in certain cases.

(2) Subject to the provisions of this section the Council (if they think fit) may grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any of their employees who may die in their service or of any former employee who may die within twelve months after he shall have ceased to be in their employment :

Provided that—

- (a) no grant shall be made under this subsection if a grant is made under section 11 of the Act of 1937 or subsection (1) of this section ;
- (b) a resolution to make a grant under this subsection shall not be passed more than one year after the date on which the notification of the death of the employee is received by the Council.

(3) The amount of a gratuity granted under the last foregoing subsection shall not exceed in the aggregate an amount equal to twice the remuneration of the employment :

Provided that—

- (a) if a pension is granted to the widow of the deceased employee in pursuance of section 9 of the Act of 1937 or of any other enactment or regulation made thereunder ; or
- (b) if the widow or dependant of the deceased employee is entitled in consequence of his death to compensation under the Workmen's Compensation Act 1925 or to death benefit under the National Insurance (Industrial Injuries) Act 1946 ;

15 & 16 Geo. 5.
c. 84.
9 & 10 Geo. 6.
c. 62.

the amount of the gratuity shall not in the aggregate exceed an amount equal to the remuneration of the employment if the employee was a contributory employee or half of that amount if he was not a contributory employee.

PART IX
—cont.

(4) In this section the expression "remuneration of the employment" means the remuneration received by the employee during the twelve months preceding his death in the service of the Council or the date of his ceasing to be in employment:

Provided that if his remuneration is reduced on account of his absence from employment through ill-health at any time during the period of twelve months before his retirement or death his remuneration at the time of his retirement or (as the case may be) at the time of his death shall for the purposes of this section be deemed to be his remuneration immediately before such reduction or (if there be more than one) immediately before the first such reduction.

(5) Every gratuity granted under this section shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

(6) The Council may exercise the powers of this section in reference to an employee of the standing joint committee as if he were an employee of the Council:

Provided that as regards justices' clerks or persons to assist a justices' clerk in the performance of his duties the powers of this section shall be exercisable by that committee but a copy of every determination of the committee in reference thereto shall be sent forthwith to the Council who if dissatisfied therewith may within three months after the receipt thereof appeal to the Secretary of State whose decision shall be final.

(7) As regards any person who by virtue of an order made under section 1 of the Probation Officers (Superannuation) Act 1947 is a contributor to the superannuation fund the powers of this section shall be exercisable by the probation committee but a copy of every determination of that committee in reference thereto shall be sent forthwith to the Council who if dissatisfied therewith may within three months after the receipt thereof appeal to the Secretary of State whose decision shall be final.

(8) No grant shall be made under this section to an employee or to the widow or dependant of an employee to whom the regulations or the foregoing provisions of this Part of this Act apply or to whom they applied immediately before his death.

Payment of
pension etc. of
person of
unsound mind.
53 & 54 Vict.
c. 5.

196.—(1) Subject to the provisions of this section where a person entitled to receive from the Council any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 the Council may pay the whole of that sum or so much thereof as they think fit to the person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of

the surplus (if any) thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

PART IX
—cont.

(2) Subject to the provisions of this section where a person entitled to receive from the Council any sum to which this section applies is in the opinion of the Council through mental infirmity incapable of managing his affairs the Council may pay or apply the whole or so much as they think fit of that sum to or for the maintenance or benefit of such person or of the wife or husband or relations of such person.

(3) This section applies to any sum payable by the Council to an employee or former employee or pensioner of the Council or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund but the amount to be paid in pursuance of this section to or in respect of any such employee former employee or pensioner shall not exceed one hundred pounds in any year.

(4) Not less than fourteen days before exercising their power under this section for the first time in relation to any person the Council shall give to the Master in Lunacy notice in writing of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Council intend to exercise the said power and in relation to any person to whom subsection (2) of this section applies the Council shall at the same time give notice to that person in a form approved by the Master in Lunacy ;

Provided that the Council may with the approval of the Master in Lunacy exercise the powers of this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

(5) If at any time the Master in Lunacy gives to the Council notice in writing that he objects to the exercise by the Council of the said power in relation to any person the said power shall as from the date of the receipt by the Council of the notice cease to be exercisable by the Council in relation to that person unless and until the master withdraws the notice.

(6) The Council shall be discharged from all liability in respect of any payment or application of money effected by them in the exercise of the said power.

197. Notwithstanding anything in the Local Government Superannuation Acts 1937 and 1939 the Council shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1944 and 1947 or any other superannuation

As to proof of continued existence of pensioners.
2 & 3 Geo. 6.
c. 18.
7 & 8 Geo. 6.
c. 21.
10 & 11 Geo. 6.
c. 7.

PART IX
—cont.

pension compensation or other such payment under any statutory authority to or for the benefit of any person unless satisfactory proof is given to the Council in such manner and at such times as they may from time to time require of the continued existence of such person.

As to
payments due
to deceased
employees.

198.—(1) On the death of an employee (which expression in this section includes a former employee or pensioner) of the Council to whom or to whose legal personal representative a sum not exceeding one hundred pounds is due on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation or other fund with or without interest if probate of the will of the employee or letters of administration to his estate are not produced within such time (not being less than one month after his death) as the Council may think reasonable then at the expiration of that time the Council may pay the sum to the person or persons entitled to the residuary estate of the employee in accordance with the provisions of paragraphs (i) to (vi) inclusive of subsection (1) of section 46 of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926:

15 & 16 Geo. 5.
c. 23.
16 & 17 Geo. 5.
c. 60.

Provided that if the Council receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not (except in any case in which the provisions of paragraph (vi) of subsection (1) of section 46 of the Administration of Estates Act 1925 are applicable) pay such sum or the balance thereof in their hands to any person other than to the personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) The Council before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require—

- (a) a statutory declaration or (when payment is made to the Crown or to the Duchy of Lancaster or to the Duchy of Cornwall) a statement by the person or one of the persons to whom the Council may pay and propose to pay such sum or any part thereof to the effect that the total estate of the deceased employee (including such sum but after deduction of debts and funeral expenses) does not exceed four hundred pounds; or
- (b) the production of a certificate from the Commissioners of Inland Revenue to the effect that no death duties are payable in respect of such moneys or that any duties so payable have been paid.

199.—(1) A local authority may exercise the powers contained in the provisions of this Act hereinafter mentioned and those provisions shall accordingly have effect with any necessary modifications including the substitution of “a local authority” for “the Council”.

PART IX
—cont.

Application of
certain
sections of
Part IX to local
authorities.

(2) The provisions hereinbefore referred to are the following:—

- Section 195 (Power to grant gratuities in certain cases) ;
- Section 196 (Payment of pension etc. of person of unsound mind) ;
- Section 197 (As to proof of continued existence of pensioners) ;
- Section 198 (As to payments due to deceased employees).

PART X

FINANCE

A Financial provisions relating to funds of the Council

200.—(1) The Council shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow—

Power to
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act ;
- (b) without the consent of any sanctioning authority such sums as may be necessary for paying the costs charges and expenses of this Act ;
- (c) such sums as may be requisite for the purpose of lending to a local authority under section 205 (Power to Council to lend money to local authorities) of this Act.

(2) The Council shall pay off all moneys borrowed under paragraph (b) of the foregoing subsection within such period as the Council may determine not exceeding five years from the passing of this Act.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed under this section for the repayment of any money borrowed under subsection (1) of this section shall as respects that money be the fixed period for the purpose of the said Part IX.

201.—(1) The Council may (if they think fit) establish a fund to be called “the capital fund” to which they may pay—

Capital fund.

- (a) any sums derived from the sale of any property of the Council (not otherwise applied) ;

PART X
—cont.

- (b) the balance of the revenue moneys of the county fund (not required by law to be carried forward for any other purpose) on the thirty-first day in March in any year or any part of such balance ; and
- (c) such other sums being revenue moneys from the county fund (in addition to a sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) as the Council may by resolution direct :

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (exclusive of the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of three times the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925 ; and
- (ii) payments into the capital fund shall not be made during any period in which that fund amounts to two hundred and fifty thousand pounds or such greater sum as may from time to time be approved by the Minister.

(2) The Council may apply any moneys in the capital fund to an amount not exceeding in any one transaction the sum of thirty thousand pounds or such greater sum as may be allowed by the Minister in any case in defraying any expenditure to which capital is properly applicable (including the exercise of any statutory borrowing powers) or in providing money for repayment of loans (but not in making the annual payment required to be made therefor).

(3) (a) Pending the application of the capital fund to the purposes authorised in the last foregoing subsection the moneys in the capital fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital fund in the manner provided by the foregoing paragraph of this subsection together with any income arising from the application of the capital fund to the purposes authorised shall be carried to and form part of the county fund and (subject to the limitation imposed by proviso (ii) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital fund.

(4) All moneys derived from the sale of any land which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the Council think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Council.

202.—(1) The Council may establish a fund to be called *Renewal and repairs fund*. “the renewal and repairs fund” for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining renewing and replacing any buildings works plant tools machinery appliances vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and may from time to time apply any fund so established or any part thereof in defraying such expenditure.

(2) The Council may from time to time pay out of the county fund such sums as they think fit into the renewal and repairs fund.

(3) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed two hundred thousand pounds or such larger sum as the Minister may from time to time approve.

(4) (a) Pending the application of moneys forming part of the renewal and repairs fund to the purposes authorised in subsection (1) of this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in the manner provided by this subsection together with any income arising from the application of the renewal and repairs fund to the purposes authorised shall be carried to and form part of the county fund and (subject to the limitation imposed by subsection (3) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

203.—(1) Notwithstanding anything contained in any other enactment the Council may establish a fund to be called “the consolidated loans fund”. *Consolidated loans fund*. consolidated loans fund” to which (except so far as may be provided by the scheme hereinafter mentioned) shall be paid—

(a) all moneys borrowed by the Council by the issue of any authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

(b) all moneys of a capital nature received by the Council whether from the sale of capital assets or otherwise except such as are paid to the capital fund established

PART X
—cont.

by the Council under section 201 (Capital fund) of this Act or are applied by the Council with due authority to another capital purpose ; and

- (c) the appropriate sums provided in each year out of other funds of the Council to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt :

And except as aforesaid there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Council as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Council—

- (a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Council ;
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Council ; and
- (c) in lending money to any local authority in accordance with section 205 (Power to Council to lend money to local authorities) of this Act :

And the moneys of the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of those sums and their application.

(4) The Council may pay into the consolidated loans fund any moneys forming part of any reserve capital renewal and repairs depreciation contingency insurance superannuation or other similar fund (in this section respectively referred to as “ the lending fund ”) and not for the time being required for the purposes for which the lending fund was established and such moneys shall be deemed to be moneys borrowed by the Council

within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

PART X
—cont.

(a) the moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established; and

(b) there shall be paid out of the consolidated loans fund to the county fund an amount equal to the interest on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the average rate of interest payable by the Council on their current borrowings and in the accounts of the county fund an amount equal to the interest as aforesaid (subject in the case of any of the said funds to any prescribed limit on the amount thereof) shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Council to the holders of authorised securities shall continue in force.

(6) (a) The powers conferred by this section shall not be exercised by the Council except in accordance with a scheme made by the Council and approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(b) Any scheme approved by the Minister under this section may be altered extended or revoked by a scheme made and approved in like manner as the original scheme.

204.—(1) The Council may establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “the specified risks”). General insurance fund.

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Council shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Council fully insured in some insurance office of good repute against the specified risks; or

(b) if the Council insure in some insurance office against the whole or part of all or any of the specified risks

PART X
—cont.

such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Council may (if they think fit) discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Council shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Council shall provide the yearly payments aforesaid by contributions from the county fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Council which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in respect of the specified risks all moneys for the time being standing in the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to the county fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Council shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the county fund an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the county fund may be apportioned in the accounts of the Council between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Council in respect of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Council may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act

of 1933 such sums of money as will be necessary to make up the deficiency.

PART X
—cont.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings departments or services of the Council and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(8) In this section “the prescribed amount” means such sum as may from time to time be prescribed by the Council.

B General

205.—(1) The Council may lend to any local authority and the local authority may borrow from the Council such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed. Power to Council to lend money to local authorities.

(2) The provisions of the County Councils (Advances to Parish Councils) Order 1934 or any other order made by the Minister for the time being in force under section 201 of the Act of 1933 shall apply to any money lent under the powers of this section as if any local authority were a parish council.

(3) For the purposes of this section the expression “local authority” means the council of any county or county district and any authority being a local authority as defined by section 34 of the Local Loans Act 1875 and includes any river board or drainage board and any joint board or joint committee if all the constituent authorities are such local authorities as aforesaid.

206.—(1) The Council may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter consecutive period next before the date on which interest on the authorised securities to which such transfer book or register relates is payable. Closing of registers.

(2) The persons who on the date on which the transfer book or register is closed are entered therein as holders of any security of the class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

207.—(1) In addition to any other form of borrowing the Council may exercise any statutory borrowing power by the issue of bonds (in this Act referred to as “bonds”) in accordance with the provisions of this Act. Power to issue bonds.

PART X
—cont.

(2) Where the Council raise money by the issue of bonds the following provisions of the Act of 1933 shall apply as if the money had been raised by borrowing on mortgage under that Act and bonds were mortgages within the meaning of that Act:—

Section 209 (Notice of trusts);

Section 210 (Receipts on behalf of joint holders and infants);

Section 211 (Appointment of receiver);

Section 212 (Repayment of moneys borrowed on mortgage);

Section 213 (Sinking fund);

Section 214 (Adjustments of sinking fund).

(3) The provisions set out in the Fourth Schedule to this Act shall have effect with regard to bonds.

61 & 62 Vict.
c. 9.
7 Edw. 7. c. 13.
54 & 55 Vict.
c. 39.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

Expenses of
public
entertainment
etc. by Council.

208. The Council may pay reasonable expenses in providing—

(i) public entertainment on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the county;

(ii) refreshments for representatives of the Council local authorities or other bodies and for other persons attending conferences convened by the Council.

Interest
warrants by
post.

209.—(1) The Council may give notice to any person being registered as a holder of any authorised security (other than stock) that they intend to send interest to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Council of such objection the Council may from time to time send orders for the payment of interest or warrants by post to the address of such person appearing in the register:

Provided that if such person give notice to the Council that he desires such orders or warrants to be sent to another person at a given address the Council may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for

the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Council by any other of them.

PART X
—cont.

(3) The posting by the Council of an order for the payment of interest or a warrant in pursuance of this section shall as respects the liability of the Council be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Council shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.

C Financial provisions relating to local authorities

210. The provisions of section 201 (Capital fund) of this Act shall extend and apply to a local authority as if—

Capital fund
of local
authorities.

- (a) the local authority were therein referred to in lieu of the Council ;
- (b) the general rate fund were therein referred to in lieu of the county fund ;
- (c) the equivalent of two times the product of a penny rate were therein referred to in lieu of the equivalent of three times the product of a penny rate ; and
- (d) such respective sums as the Minister may prescribe were therein referred to in lieu of the respective sums of two hundred and fifty thousand pounds and thirty thousand pounds :

Provided that any sum derived from the sale of any corporate land of the council of a borough as defined by section 305 of the Act of 1933 and paid into the capital fund shall not except with the consent of the Minister be applied otherwise than in the purchase or acquisition of other corporate land.

211. The provisions of section 202 (Renewal and repairs fund) of this Act shall extend and apply to a local authority as if—

Renewal and
repairs fund of
local
authorities.

- (a) the local authority were therein referred to in lieu of the Council ;
- (b) the general rate fund were therein referred to in lieu of the county fund ; and
- (c) such sum as the Minister may prescribe were therein referred to in lieu of the sum of two hundred thousand pounds :

Provided that the provisions of the said section 202 shall not extend and apply to any expenditure of the local authority in connection with any buildings works plant appliances or things for the purposes of any undertaking of the local authority in

PART X
—cont.

respect of which they are authorised to provide a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

Consolidated
loans fund of
local
authorities.

212. With the consent of the Minister the provisions of section 203 (Consolidated loans fund) of this Act shall extend and apply to a local authority as if—

- (a) the local authority were therein referred to in lieu of the Council ;
- (b) the general rate fund were therein referred to in lieu of the county fund ; and
- (c) paragraph (c) of subsection (2) were omitted from that subsection.

General
insurance fund
of local
authorities.

213.—(1) With the consent of the Minister the provisions of section 204 (General insurance fund) of this Act shall extend and apply to a local authority as if—

- (a) the local authority were therein referred to in lieu of the Council ;
- (b) the general rate fund were therein referred to in lieu of the county fund :

Provided that the Minister when giving his consent to a local authority to establish an insurance fund or at any time thereafter may determine the sum which for the purposes of the said section in its application to such local authority shall be “the prescribed amount”.

(2) Two or more local authorities having power to exercise the provisions of the said section may with the consent of the Minister exercise that power jointly in accordance with a scheme made by such local authorities and approved by the Minister who may prescribe such modifications as appear to him desirable when giving his consent.

(3) Any moneys standing to the credit of any existing insurance fund of a local authority shall be carried to the credit of the insurance fund of such local authority authorised by this section.

Reserve fund
of local
authorities.

214.—(1) A local authority may establish a reserve fund in respect of any undertaking of the local authority from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the fund so provided amounts to the maximum reserve fund for the time being prescribed.

(2) A local authority may subject to the approval of the Minister determine the sum which for the purposes of this section shall be the maximum prescribed.

(3) The reserve fund provided under this section may be applied—

- (a) in making good any deficiency at any time happening in the income of the local authority from the undertaking in connection with which it is formed ; or
- (b) in meeting any extraordinary claim or demand at any time arising against the local authority in respect of that undertaking ; or
- (c) in or towards the payment of the cost of renewing improving or extending any works buildings machinery plant or conveniences forming part of the undertaking or otherwise for the benefit thereof ;

and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to the reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(5) If and when the local authority establish a reserve fund under this section in respect of any such undertaking as aforesaid any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the local authority in respect of that undertaking and in existence at the date of the passing of this Act shall be carried to and form part of the reserve fund provided under this section in respect of that undertaking.

215. The layout and development of any corporate land (as defined by section 305 of the Act of 1933) for the time being belonging to the council of a borough in the county and the alteration enlargement improvement extension reconstruction or rebuilding of any existing building thereon shall be purposes for which such council may borrow or may expend money out of their general rate fund. Power to borough councils to borrow etc. for reconstruction of corporate land.

216. With the consent of the Minister the provisions of section 207 (Power to issue bonds) of this Act shall extend and apply to a local authority as if— Power to local authorities to issue bonds.

- (a) the local authority were therein referred to in lieu of the Council ; and
- (b) the financial officer were referred to in lieu of the treasurer in paragraph 4 of the Fourth Schedule to this Act.

217. If in respect of any financial year the moneys received by a local authority on account of the revenue of any of their undertakings (including the interest and other annual proceeds received by the local authority in that year on the investments representing or forming part of any authorised fund Application of general rate fund for certain purposes.

PART X
—cont.

provided in connection with the undertaking) shall exceed the moneys expended or applied by the local authority in respect of that undertaking properly chargeable to revenue the local authority may in respect of that year (if they think fit) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) in the reduction of capital moneys borrowed for the purpose of the undertaking; or
- (b) in the renewal construction extension or improvement of any works and conveniences for the purposes of the undertaking; or
- (c) towards the provision of any reserve fund in respect of the undertaking which the local authority are authorised to provide.

Expenses of
public
ceremonies etc.
by local
authority.

218. A local authority may pay—

- (a) reasonable expenses of the local authority in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting their district;
- (b) reasonable expenses in connection with official and courtesy visits by or on behalf of the local authority and payments for travelling expenses and for expenses reasonably incurred by or on behalf of any member or officer of the local authority in connection therewith; and
- (c) if the local authority is the council of a borough reasonable expenses in connection with the presentation of the freedom of the borough to persons whom the local authority may resolve to admit as honorary freemen.

Recovery of
rate etc. from
persons
removing.

219. If a justice is satisfied on complaint by any officer of a local authority duly authorised that any person is quitting or about to quit any premises in the district and has failed to pay on demand any general rate water rate or water charge which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the person in default to meet the claim of the local authority and to detain them until the complaint is determined upon the return of the summons.

Recovery of
rates from
certain
owners.

220.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable

to pay to the local authority so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the local authority from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the local authority under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the local authority.

221. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of a local authority.

222.—(1) A local authority may exercise the powers contained in the provisions of this Act hereinafter mentioned and those provisions shall accordingly have effect with any necessary modifications including the substitution of "a local authority" for "the Council".

Application of certain sections of Part X to local authorities.

(2) The provisions hereinbefore referred to are the following:—

Section 206 (Closing of registers);

Section 209 (Interest warrants by post).

PART XI

MISCELLANEOUS

223.—(1) In any proceedings under any enactment—

Evidence of appointments authority etc.

(a) a document purporting to be certified by the clerk of the Council as a copy of a resolution order or report passed or made by the Council or by any committee thereof on a specified date shall be evidence that that resolution order or report was duly passed or made by the Council or that committee on the said date;

(b) a document purporting to be so certified as a copy of a minute duly drawn up entered and signed in accordance with paragraph 3 of Part V of the Third Schedule to the Act of 1933 of the proceedings of a

PART XI
—cont.

meeting of the Council or of any committee thereof on a specified date shall be evidence to the same extent as the original minute ;

- (c) a document purporting to be so certified as a copy of the appointment of or of any authority given to an officer of the Council or any committee thereof on a specified date shall be evidence that that appointment or authority was duly made or given by the Council or that committee on the said date.

(2) In this section the expression " officer " includes a servant solicitor or agent.

(3) Section 286 of the Act of 1936 shall cease to apply to the Council.

Authorisation of appearance of Council's officers in legal proceedings.

224. A resolution of the Council under section 277 of the Act of 1933 may refer either to an officer by name or to the holder or holders for the time being of the office or offices stated therein.

Amendment of section 7 of Act of 1933 in its application to Council.

225. Section 7 of the Act of 1933 shall in its application to the Council be read and have effect as if the following proviso had been inserted at the end of subsection (4) of that section:—

" Provided that if the persons entitled to vote at such meeting so determine the person presiding at the meeting may declare the names of the persons for whom votes have been cast and the number of votes which each has received ".

As to minutes of Council meetings etc.

226. Notwithstanding anything contained in paragraph 3 of Part V of the Third Schedule to the Act of 1933 or in any other enactment or rule of law to the contrary the minutes of the proceedings of meetings of the Council or of any committee thereof may be recorded on loose leaves consecutively numbered the minutes of the proceedings of any meeting being signed and each leaf comprising those minutes being initialled at the same or next ensuing meeting of the council or committee as the case may be by the person presiding thereat and any minutes purporting to be so signed shall be received in evidence without further proof.

Power for Council to contribute to provision of public conveniences.

227. The Council may contribute towards the cost of the provision in or adjacent to a highway of public sanitary conveniences by a local authority under section 87 of the Act of 1936.

Acquisition of pictures etc.

228.—(1) The Council may acquire by agreement any picture or sculpture and may erect and maintain or contribute towards the provision erection and maintenance of any picture or sculpture in any place provided by or vested in the Council under section 125 of the Act of 1933 and may from time to time enter

into and carry into effect a contract for the production of a picture or sculpture and for the purchase thereof by the Council when completed.

(2) For the purpose of providing for the accommodation exhibition and preservation of pictures or sculptures or objects of historical antiquarian or other public interest which may for the time being be in the possession of the Council by virtue of this section or of any gift loan or discovery the Council may adapt furnish and maintain any premises given to and for the time being vested in the Council for the purposes of this section.

(3) The Council may let any building vested in them as aforesaid on such terms and conditions as to payment or otherwise as they think fit and may make charges for admission to any such building which may for the time being be under their management and control.

229.—(1) The Council may preserve arrange index classify and publish such records deeds and other documents of the county and of the Council or such extracts from them or reference to their contents as the Council may think to be of public interest.

Preservation
and
publication of
records.

(2) A local authority may publish such charters deeds records and other documents as are referred to in subsection (2) of section 279 of the Act of 1933 or such extracts from them or reference to their contents as they may think to be of public interest.

230.—(1) The Council a local authority or parish council may erect and maintain such posts and signs as may be necessary for the purpose of warning persons of dangerous conditions existing in the vicinity of such posts and signs with the consent of the owner in fee simple of the land in which it is proposed to erect the same and of any person having the control or management of such land.

As to warning
posts and signs.

(2) The Council may contribute to the expenses incurred by a local authority or parish council in exercising the powers of this section.

(3) Nothing in this section shall be in derogation of any order or regulations made by the Minister of Transport in respect of traffic signs or any general or special directions given by him in pursuance of section 48 of the Road Traffic Act 1930.

231.—(1) For the purpose of preventing or reducing loss of life and property resulting from and alleviating distress caused by the flooding of lands and buildings by the overflowing of the river Trent or any of its tributaries a local authority may provide equip and maintain or arrange for the provision equipment and maintenance of boats boat-houses vehicles garages drying rooms store-rooms hostels and other premises and may employ and pay such number of persons as they may think fit for the purpose.

Flood
precautions
and provision
of life-saving
apparatus.

PART XI
—cont.

(2) A local authority may utilise any appliances premises and accommodation provided under subsection (1) of this section for the rescue reception care and temporary accommodation of persons or property affected or likely to be affected by the flooding of lands or buildings in any portion of their district which lies near any river and may if they think fit make and recover charges for the use of such appliances premises and accommodation.

(3) A local authority may provide and maintain boats for the purpose of saving life on any river lake or water in their district to which the public have access and may employ and pay such number of persons as they may think fit for the purpose.

(4) The Council may contribute towards the cost of the provision and maintenance of boats appliances premises and accommodation provided under this section by a local authority or by any body or person and the services of persons employed in connection therewith.

Agreements to
maintain
graves and
tombstones.

232.—(1) Any burial authority in the county may agree with any person in consideration of the payment of a capital sum by him to maintain for a period fixed by the agreement a grave or tombstone in a cemetery provided by the burial authority and the following provisions shall apply in relation to any such agreement:—

- (a) The said sum shall subject to the next following paragraph and any other enactment authorising its application in some other manner be invested in statutory securities ;
- (b) If and in so far as the cost of maintaining the grave or tombstone in accordance with the agreement exceeds in any year the interest received on the said sum the cost shall be defrayed out of the capital of the said sum ;
- (c) At the expiration of the period fixed by the agreement for the maintenance of the grave or tombstone the burial authority may apply the capital of the said sum or so much thereof as has not been expended under the last foregoing paragraph in any manner in which capital money may properly be applied by them under any enactment ;
- (d) The amount of the capital of the said sum and the interest thereon shall be shown separately in the accounts of the burial authority relating to the cemetery.

(2) In this section—

the expression “ cemetery ” includes a burial ground and a crematorium ;

the expression “ grave ” includes a grave space niche or urn ;

the expression “ tombstone ” includes a monument or other memorial of a deceased person.

233.—(1) The powers of a burial authority in the county in relation to a burial ground provided by them or a closed or disused burial ground maintainable by them shall include power to put and keep in order any grave or tombstone and remove the kerbs surrounding a grave therein subject to the following provisions:—

Extension of
power to
maintain
burial grounds.

(a) Before exercising the powers of this section the burial authority shall give notice of their intention so to do—

(i) by publishing the notice once in each of two successive weeks in a local newspaper circulating in the area affected with an interval between each publication of not less than six clear days; and

(ii) by displaying the notice in a conspicuous position in the burial ground;

(b) Any such notice shall—

(i) contain a description of the works intended to be executed; and

(ii) specify the date on which it is intended that those works will commence which shall not be earlier than the fourteenth day after the last publication of the notice in a newspaper as aforesaid or the twenty-first day after the notice is first displayed in the burial ground as aforesaid; and

(iii) state the effect of paragraph (c) of this subsection;

(c) If notice of objection to the execution of any such works and of the ground thereof is given to the burial authority before the date so specified and is not withdrawn before the expiration of fourteen days from that date the works to which the objection relates shall not be executed without the consent of the Minister;

(d) All kerbs removed by the burial authority under the powers of this section shall remain the property of the owner of the grave space from which they have been removed and if such owner does not claim them within a period of three months after the first publication of the advertisement referred to in sub-paragraph (i) of paragraph (a) of this subsection the burial authority may put the kerbs to such use as they may deem appropriate or they may destroy them;

(e) Where any kerbs constitute a memorial the burial authority may (if requested so to do) after consultation with any known next of kin at their own expense in substitution therefor erect a memorial stone of a value not exceeding twenty-five pounds;

(f) The burial authority shall cause to be made a record of any kerb surrounding a grave space removed under the

PART XI
—cont.

powers of this section showing the particulars respecting each kerb so removed as a separate entry and a copy of such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(2) In this section—

the expression “burial ground” includes a cemetery;

the expression “grave” includes a grave space;

the expression “tombstone” includes a monument or other memorial of a deceased person.

As to
provision of
crematoria by
rural district
councils.

1 Edw. 7. c. 8.
42 & 43 Vict.
c. 31.

Collection and
delivery of
washing.

234. A rural district council may provide and maintain a crematorium and shall be deemed to be a burial authority for the purposes of the Cremation Act 1902 notwithstanding that they do not maintain a cemetery under the Public Health (Inter-ments) Act 1879.

235.—(1) A local authority may collect and carry to any public washhouse provided by them clothes and other articles intended to be washed there and may carry from any such washhouse and deliver clothes and other articles which have been washed there.

(2) The local authority shall make such charges for the service provided by them under this section as will taking one year with another produce a revenue sufficient to meet the expenses of providing it.

(3) Nothing in this section shall relieve the local authority from the necessity of obtaining the appropriate licence under the Road and Rail Traffic Act 1933 in respect of any goods vehicle to which that Act applies.

23 & 24 Geo. 5.
c. 53.

Golf courses.

236.—(1) The local authority of an urban district may provide a golf course and for that purpose may by agreement acquire whether by way of purchase lease or exchange land whether situated within or without their district.

(2) Such local authority may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of any golf course under this section and references in the following provisions of this section to a golf course so provided shall include references to any buildings provided or works executed under this subsection and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) Such local authority may either—

(a) themselves manage any golf course provided under

this section making such reasonable charges for the use thereof or admission thereto as they think fit ; or

(b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) Such local authority may—

(a) at any such golf course provide and sell refreshments of all kinds subject to the provisions of all enactments relating thereto ;

(b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid ;

(c) grant upon such terms and conditions and for such period as they think fit the right so to provide and sell refreshments ;

(d) by themselves or any person appointed by them in that behalf apply for and hold licences for the sale of beer intoxicating liquors and tobacco at any such golf course.

(5) Such local authority may make byelaws for regulating the use of golf courses provided under this section whether within or without their district and the conduct of persons using them or resorting thereto.

237. A local authority may levy and recover such charges as they think fit for taking at the request and for the convenience of any consumer supplied by them at a time other than that of the periodical meter readings the reading of any water meter fixed in any premises : Charges for special readings of water meters.

Provided that such charges shall not exceed the sum of—

(a) one shilling in the case of premises in the district of the local authority ; and

(b) two shillings in the case of premises outside such district ;

for each reading.

238.—(1) A local authority may provide erect maintain and use such apparatus and conveniences as they may consider necessary for the purpose of transmitting any concert or entertainment or any part thereof from a building or park belonging to the local authority at which such concert or entertainment is provided or held to any other building or park at which concerts or entertainments may be provided by the local authority and for that purpose may erect and maintain posts and wires in any street : Transmission of entertainments.

Provided that nothing in this section shall affect the exclusive privileges conferred upon the Postmaster-General by the Telegraph Act 1869 or exempt the local authority or any other body

PART XI
—cont.
12 13 & 14
Geo. 6. c. 54.

or person from any obligation to obtain any licence under the Wireless Telegraphy Acts 1904 to 1926 or the Wireless Telegraphy Act 1949 and any electrical apparatus posts or wires which may be erected under this section shall be so constructed maintained and used as to prevent interference with—

- (a) any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line ; or
- (b) the working of any wire or line used for the purpose of electric signalling communication on railways or the electrical control of railways.

(2) The local authority shall not under the powers of this section without the consent of the transport undertakers concerned execute any works—

- (i) in or upon any bridge carrying a street over any railway canal or inland navigation or the approaches thereto or under a bridge carrying a railway canal or inland navigation over any street except where the portion of the street over or under any such bridge or approach is a highway repairable by the inhabitants at large ; or
- (ii) in any street belonging to and repairable by any transport undertakers and forming the approach to any station dock wharf or depot of such undertakers :

Provided that any consent required under this subsection shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

In this subsection the expression “transport undertakers” means any railway dock canal inland navigation or statutory passenger road transport undertakers.

Supply of
goods by
Council
to other
authorities.

239.—(1) The Council may purchase and store and supply to an authority any goods or materials required for the discharge of the functions of that authority and for those purposes the Council and any authority may enter into and carry into effect agreements and do all such other acts as may be necessary or convenient.

(2) For the purposes of this section the expression “authority” means an authority discharging functions within the county of Nottingham being—

- (a) the council of a county borough or of a district or a joint committee appointed by two or more such councils ;

- (b) any statutory or other body of persons discharging functions in pursuance of any statutory enactment or regulation made thereunder ;
- (c) any university medical school or hospital management committee.

PART XI
—cont.

240.—(1) No person shall for the purpose of advertising any trade or business or any part of a trade or business operate or cause or suffer to be operated any loudspeaker when such loudspeaker is in any street in the county. Restrictions
on use of
loudspeakers
in streets.

(2) No person shall operate or cause or suffer to be operated any loudspeaker for any purpose when such loudspeaker is in any street in a district unless he shall have given notice at the principal police station in such district at least forty-eight hours before such loudspeaker is operated.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds.

(4) This section shall not apply to the use of a loudspeaker—

(a) by the Council or a local authority or the police in the execution of their duty or in case of emergency ;

(b) by the commission for the purpose of announcements to their passengers or staff at any station or depot of the commission ; or

(c) by a travelling showman in any part of a street while such part thereof is being used as a pleasure fair and such fair is open to the public.

(5) In this section the expression “loudspeaker” includes an amplifier or similar instrument.

241. A local authority may let on hire plants flowers and other floral decorations and may make such charges therefor as they may think fit. As to hire of
floral
decorations.

242. A local authority may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sum as they may think fit not exceeding in any one year the sum of one hundred pounds. Prizes for
garden
competitions.

243.—(1) Any agreement entered into between the Council and the parent or guardian of a pupil at any secondary school may make provision for the payment by such parent or guardian to the Council of any sum not exceeding ten pounds in the event of the pupil ceasing without reasonable cause to attend such school before the date fixed by such agreement for the pupil to cease such attendance and the Council shall be entitled without proof of any actual damage incurred by reason of such pupil ceasing to attend such school to recover from such parent or

PART XI
—cont.

guardian any sum not exceeding the sum specified in the agreement which the court may think fit to award in all the circumstances of the case.

(2) For the purposes of this section the expression “secondary school” includes—

- (a) a secondary school as defined by section 114 of the Education Act 1944; and
- (b) a school in respect of which grants are paid by the Minister of Education under regulations made in pursuance of paragraph (b) of subsection (1) of section 100 of that Act and in which secondary education as defined by section 8 of the said Act is provided.

Subscriptions
to scientific
bodies and
other
expenses.

244. The Council may pay reasonable subscriptions (whether annually or otherwise) to the funds of any scientific or other society or body (not carrying on business for profit) which or the members of which is or are engaged in investigations or the keeping of records of use or value to the Council and any reasonable expenses of the attendance of any members or officers of the Council at or of persons nominated by the Council to attend conferences or meetings of such society or body and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings:

Provided that the payments to be made by the Council under this section shall not in any financial year exceed the equivalent of one-tenth of the product of a rate of one penny in the pound as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925.

Power to
Mansfield
Corporation
to make and
supply ice.

245. The mayor aldermen and burgesses of the borough of Mansfield may make sell and supply ice and for that purpose may provide or take on lease and maintain and use ice-making machinery and refrigerators together with all necessary buildings plant machinery appliances works and conveniences in connection therewith and may let the whole or any part thereof or permit the use thereof subject to such terms and conditions as they may think fit.

Demand
complaint
information
or summons
may contain
several sums.

246. There may be included by a local authority—

- (a) in one and the same demand or in any schedule thereto any general rate and any water rate or charge; and
- (b) in one and the same complaint information or summons or in any schedule thereto any water rate or charge:

Provided that the rates or charges are due and payable to the local authority from the same person whether under the same or different enactments from time to time in force in the district.

247. If a local authority commence proceedings for the summary recovery of a sum due for the supply of water any other sum due or payable to the local authority in respect of the sale or hire of any apparatus or fittings supplied by them for or in connection with the consumption or use of water or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily provided the amount due or payable in respect thereof does not in the aggregate exceed twenty pounds.

PART XI
—cont.

As to recovery summarily of sums due for fittings.

248.—(1) A local authority may exercise the powers contained in the provisions of this Act hereinafter mentioned and those provisions shall accordingly have effect with any necessary modifications including the substitution of—

Application of certain provisions of Part XI to local authorities.

(a) “local authority” for “Council”; and

(b) “district of the local authority” for “county”.

(2) The provisions hereinbefore referred to are the following:—

Section 223 (Evidence of appointments authority etc.);

Section 226 (As to minutes of Council meetings etc.);

Section 244 (Subscriptions to scientific bodies and other expenses).

PART XII

SUPPLY OF HEAT BY BOROUGH COUNCILS

249. In this Part of this Act the following expressions have the meanings hereby assigned to them:—

Interpretation of Part XII.

“borough” means the borough of the corporation in relation to which the expression is used;

“corporation” means the mayor aldermen and burgesses of the borough of East Retford or the mayor aldermen and burgesses of the borough of Mansfield or the mayor aldermen and burgesses of the borough of Newark or the mayor aldermen and burgesses of the borough of Worksop (as the case may be);

“electric line” has the same meaning as in the Electric Lighting Act 1882;

45 & 46 Vict.
c. 56.

“electricity authority” means the British Electricity Authority;

“electricity board” means the East Midlands Electricity Board;

“heat” means heat supplied or intended to be supplied by means of hot water or steam;

PART XII
—cont.

“ heating fittings ” includes radiators air heaters water heaters mains pipes meters taps cocks valves ferrules and other works used in connection with the supply of heat ;

“ heating undertaking ” means an undertaking for the supply of heat by the corporation under and in accordance with the provisions of this Part of this Act and includes all lands stations boiler-houses properties works buildings machinery plant mains pipes apparatus appliances easements rights powers and privileges for the time being belonging to or held or used or enjoyed by the corporation for or in connection with the provision of storage transmission distribution and supply of heat ;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878.

Application
of Part XII.

250.—(1) The council of a borough may adopt this Part of this Act on a date fixed by resolution passed by a majority of the whole number of the members of such council.

(2) Any such council shall cause to be published in a local newspaper circulating in their borough notice—

(a) of the passing of any such resolution and of the date fixed thereby ; and

(b) of the general effect of the provisions of this Part of this Act coming into operation as from that date ;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(3) A copy of—

(a) any such newspaper containing any such notice ; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of publication.

(4) At any time before the expiration of one month from the date of the publication of the notice of any such resolution a poll may be demanded with respect to the question whether this Part of this Act shall come into operation in the borough by a requisition in writing signed by not less than one hundred persons registered in accordance with the provisions of the Representation of the People Acts as local government electors in the borough and delivered to the mayor of the borough.

(5) The provisions of subsections (3) to (8) of section 95 (Application of Part VI in urban districts) of this Act shall apply with any necessary modifications to a poll demanded in pursuance of this section.

251.—(1) The corporation may supply heat to such premises as they may think fit in the borough upon and subject to the terms and conditions provided by this Part of this Act and such other terms and conditions as may be agreed between the corporation and the owners or occupiers of those premises:

PART XII
—cont.

Supply of heat.

Provided that in the exercise of the powers of this section the corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(2) Before the corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises they shall give notice of their intention to do so to the owner of the premises and in the event of the supply of heat to such premises being discontinued notice of such discontinuance shall be given by the corporation to the owner of such premises.

252.—(1) Subject to the provisions of this Part of this Act the corporation may on lands in the borough belonging or leased to them erect lay down maintain work and use stations boiler-houses mains pipes and other works for providing storing transmitting distributing and supplying heat and for producing any material product matter or thing arising or used in the process of such provision of heat (including the generation of electricity) together with such buildings boilers engines machinery sidings electric lines matters and things of whatever description as may be required by the corporation to enable them to provide store transmit distribute and supply heat and the corporation may accordingly on those lands provide store transmit distribute and supply heat and may produce such materials products matters and things:

Works for
provision of
heat.

Provided that—

- (a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the corporation in any case in which such consent would have been required if this section had not been enacted ;
- (b) any electrical works or apparatus erected laid down maintained worked and used in pursuance of this section shall be so constructed maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(2) Any electricity generated by the corporation as aforesaid may be sold—

- (a) to the electricity authority ; or

PART XII
—cont.

(b) with the approval of the electricity authority to the electricity board ;

and any electricity so generated and not so sold as aforesaid may only be used for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated or (with the consent of the electricity authority and the electricity board) elsewhere.

(3) The electricity authority shall take all the electricity generated by the corporation as aforesaid which is not—

(i) required for or in connection with the supply of heat ; or

(ii) supplied to the electricity board with the approval of the electricity authority ;

upon such terms and conditions as may be agreed between the corporation and the electricity authority or in default of agreement determined by arbitration on the basis of a supply by a willing seller to a willing buyer.

(4) Any matter to be determined by arbitration under the last preceding subsection shall be referred to and determined by an arbitrator to be agreed upon between the corporation and the electricity authority or in default of agreement to be appointed by the President of the Institution of Electrical Engineers.

As to
construction of
station for
providing heat.

253.—(1) If the corporation shall resolve to construct extend modify or enlarge a station for providing heat under the powers of this Part of this Act they shall forthwith give to the Minister of Fuel and Power and to the electricity authority and to the gas board notice of such resolution together with such information with regard to such station as the electricity authority or the gas board (as the case may be) may within six weeks of the service of such notice reasonably require including information as to the nature position and capacity of the proposed station (but not details of design) the proposed method of producing heat thereat the area proposed to be supplied therefrom and an estimate of the quantity or quantities of heat required by the corporation and of the times and form at and in which such quantity or quantities will be required Any dispute between the corporation on the one hand and the electricity authority and the gas board or either of them on the other hand as to whether any information is reasonably required by the electricity authority and the gas board or either of them under this subsection shall be referred to and determined by the Minister of Fuel and Power.

(2) Within three months after the service of the said notice or the receipt of such information (whichever is the later) the electricity authority and the gas board or either of them may serve upon the corporation a counter-notice offering a supply of

heat to them upon such terms and conditions as may be specified in the counter-notice or as may be agreed between the corporation and the electricity authority or the gas board as the case may be.

PART XII
—cont.

(3) If within three months after the receipt of such counter-notice or such longer period as may be agreed between the corporation and the electricity authority or the gas board (as the case may be) the terms and conditions upon which a supply of heat is to be given to the corporation by the electricity authority or the gas board (as the case may be) for the purposes of the heating undertaking are not agreed between them the corporation shall submit to the Minister for determination the question whether a supply of heat shall be afforded to the corporation by the electricity authority or the gas board and (if he determines that a supply of heat is to be afforded by the electricity authority or the gas board) the terms and conditions upon which such a supply is to be afforded.

(4) If the Minister determines that a supply of heat shall be afforded to the corporation by the electricity authority or the gas board the electricity authority or the gas board (as the case may be) shall afford such a supply in accordance with the terms and conditions approved by the Minister:

Provided that if the Minister makes a substantial alteration in the terms or conditions on which the electricity authority or the gas board offered a supply of heat to the corporation then if within twenty-eight days after the receipt of the determination of the Minister the electricity authority or the gas board (as the case may be) give notice in writing to the Minister and the corporation that the said terms or conditions are not acceptable they shall not be required to afford a supply of heat to the corporation and the corporation shall be entitled to proceed with their proposals as if this section had not been enacted unless within twenty-eight days of such last-mentioned notice the corporation serve on the electricity authority or the gas board (as the case may be) a notice requiring a supply in which case the electricity authority or the gas board (as the case may be) shall afford a supply on the terms and conditions specified in the counter-notice referred to in subsection (2) of this section.

254.—(1) The corporation may enter into and carry into effect agreements with any persons competent to supply heat for the furnishing to the corporation by such persons of a supply of heat for the purposes of this Part of this Act and any such agreement may provide for the provision by the corporation or for the joint user by them and any other party to the agreement of any works plant materials or things required for the purposes of the agreement.

PART XII
—cont.Purchase of
land for
heating
undertaking.9 & 10 Geo. 6.
c. 49.

(2) The corporation may for the said purposes also enter into and carry into effect agreements for the taking and use of waste heat hot water or steam from any generating station or gas-works and any authority entitled to give any such supply may enter into such an agreement.

255.—(1) The corporation may be authorised by the Minister to purchase compulsorily for the purposes of the heating undertaking land within the borough.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

(3) In this section the expression “land” includes easements and rights in respect of land and the corporation may be authorised under this section to acquire compulsorily such easements or rights only as they may require without purchasing any other interest in the land. In relation to the compulsory acquisition of any such easement or right the Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) and the enactments incorporated therewith shall have effect as if references (whatever the terms used) to the land comprised in the compulsory purchase order were construed where the context so requires as references to the land in respect whereof the easement or right is acquired and references to the obtaining or taking possession of the land so comprised were construed as references to the exercise of the easement or right.

(4) Where the corporation have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement) entitled to fence off or sever that land from the adjoining land;

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use and cultivate the land as if this Act had not been passed.

(5) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the corporation to acquire the land the corporation shall not be entitled under this section to acquire the easement or right unless the tribunal by whom the compensation is to be assessed determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

(6) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (5) of this section.

PART XII
—cont.

256.—(1) The following provisions of the Third Schedule to the Water Act 1945 as amended by the Act of 1950 are hereby incorporated with this Part of this Act (namely):—

Power to lay
mains etc. and
break open
streets.

8 & 9 Geo. 6.
c. 42.

Part V (Power to lay mains &c.);

Section 22 (Power to break open streets);

Section 25 (Protection for railway companies navigation authorities tramway undertakers &c.);

Section 27 (Remedies where undertakers fail to comply with foregoing requirements);

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(2) For the purposes of this Part of this Act in the construction of the provisions incorporated by this section—

“the undertakers” means the corporation;

“supplying water” means supplying heat and “supply of water” shall be construed accordingly;

“service pipe” means a pipe for supplying heat from a main to any premises; and

“the limits of supply” means the borough.

(3) Nothing in the provisions incorporated by this section shall authorise the corporation—

(a) to lay down a main outside the borough except for the purpose of giving or facilitating a supply of heat within the borough or of taking a supply of heat from any works or premises outside the borough;

(b) to supply heat to any premises outside the borough.

257.—(1) Before the corporation—

Consultation
with
electricity
authority and
boards as to
certain works.

(a) apply to the appropriate sanctioning authority for consent to the borrowing of money for the purpose of constructing laying down or executing any works for providing storing transmitting or distributing heat under the powers of this Part of this Act; or

(b) lay down any main under the provisions of this Part of this Act other than a main extending for a distance of not more than two hundred yards from any main laid down in accordance with proposals previously made under this section;

they shall give to the Minister of Fuel and Power (in this section referred to as “the Minister”) and to the electricity authority

PART XII
—cont.

and the electricity board and the gas board notice of their proposals and such information with regard thereto as the electricity authority or the electricity board or the gas board may within six weeks of the receipt of such notice reasonably require and shall consult with the electricity authority and the electricity board and the gas board on such proposals. Any dispute between the corporation and the electricity authority or the electricity board or the gas board as to whether any information is reasonably required by the electricity authority or the electricity board or the gas board under this subsection shall be referred to and determined by the Minister.

(2) Without prejudice to the generality of subsection (1) of this section such information shall include particulars of the proposals (if any) of the corporation as to the standards of heat proposed to be maintained in premises supplied with heat under the powers of this Part of this Act and the measures to be taken with respect to—

- (a) the securing of the safety of the mains pipes electric lines and apparatus of the electricity authority and the electricity board and the gas board from damage or injury arising directly or indirectly from any mains or pipes to be laid down or placed by the corporation under the powers of this Part of this Act ;
- (b) the insulation of any such last-mentioned mains or pipes so as to prevent the escape of heat therefrom ;
- (c) the maximum and minimum temperatures and pressures at which hot water or steam may be stored transmitted or distributed by the corporation ;
- (d) the methods for measuring the quantity temperature and pressure of the hot water or steam so stored transmitted or distributed ; and
- (e) the independent testing of such measurements.

(3) The electricity authority and the electricity board and the gas board or any of them may within three months after the receipt of such notice or the receipt of such information (whichever is the later) make representations to the Minister with respect to such proposals.

(4) If no such representations are made the corporation shall not proceed except in accordance with the proposals sent to the electricity authority and the electricity board and the gas board or any alteration thereof which may be agreed.

(5) If any such representations are made the corporation shall not proceed with their proposals except with the approval of the Minister and in accordance with any modification of such proposals which the Minister may require.

(6) The provisions of this section shall not apply to the construction extension modification or enlargement of a station for providing heat under the powers of this Part of this Act.

PART XII
—cont.

258. The provisions of section 41 (Attachment of street lamps brackets etc.) of this Act shall in its application to the borough brackets etc. extend to enable the corporation subject to the provisions of that section to affix to any buildings in the borough such brackets mains electric lines and attachments as may be required for the purposes of the heating undertaking.

259.—(1) For the purposes of the heating undertaking or in connection with the use or sale of electricity under the provisions of subsection (2) of section 252 (Works for provision of heat) of this Act the corporation may within the borough lay down or erect electric lines and apparatus—

Power to lay
down or erect
electric lines
etc.

(a) in under or over any street subject however to the provisions of subsection (3) of this section ; and

(b) with the consent of every owner and occupier of any land not forming part of a street in on or over that land ;

and may from time to time inspect repair alter or renew or may at any time remove any electric line or apparatus laid down or erected by them whether by virtue of this section or otherwise :

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld and any question whether such a consent is or is not unreasonably withheld shall be referred to and determined by the Minister.

(2) (a) Where the corporation in the exercise of the powers of this section lay down or erect any electric line or apparatus in on or over any land not forming part of a street or inspect repair alter renew or remove any electric line or apparatus laid down or erected in on or over any such land they shall from time to time pay compensation to every person interested in that land for any damage done to or injurious affection of that land by reason of the laying erection inspection repair alteration renewal or removal of the electric line or apparatus.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by arbitration.

(3) The following provisions of the Third Schedule to the Water Act 1945 as amended by the Act of 1950 shall apply with the necessary modifications to the laying down erection inspection repair alteration renewal or removal of electric lines and apparatus under this section and for the purpose of such application the borough shall be deemed to be the limits of supply (namely) :—

Section 22 (Power to break open streets) except the words
“ and outside those limits for the purpose of

PART XII
—cont.

laying any mains which they are authorised to lay and of inspecting repairing renewing or removing mains” ;

Section 25 (Protection for railway companies navigation authorities tramway undertakers &c.) ;

Section 27 (Remedies where undertakers fail to comply with foregoing requirements) ;

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense) ; and

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(4) The provisions for the protection of the Postmaster-General and his telegraphic lines which are contained in the Electricity (Supply) Acts 1882 to 1936 as amended by the 10 & 11 Geo. 6. Electricity Act 1947 and in the schedule to the Electric c. 54. Lighting (Clauses) Act 1899 shall so far as applicable extend and apply to any electric lines or apparatus laid down or erected 62 & 63 Vict. under this section and references in those provisions to the c. 19. electricity board or the undertakers shall be construed as references to the corporation.

(5) The powers of this section shall not be exercised except with the consent of the electricity authority and the electricity board.

Power to
supply
fittings.

260.—(1) In any premises to which the corporation supply or propose to supply heat they may provide (but not manufacture) and may supply by way either of sale or hire any such heating fittings as may be required for or in connection with the supply of or utilisation of the heat so supplied and may instal repair renew or alter any heating fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation repair renewal or alteration.

(2) The corporation may make such charges as may be agreed or in default of agreement as may be reasonable for any heating fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied.

(3) Any heating fittings let for hire by the corporation and marked or impressed with a sufficient mark or brand indicating the corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be ; and

(b) shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and (subject to the provisions of the Hire Purchase Act 1938) removable by the corporation: 1 & 2 Geo. 6. c. 53.

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All heating fittings supplied by the corporation under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the corporation.

(5) (a) The corporation shall so adjust the charges to be made by them under this section as will taking one year with another meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums carried to a sinking fund for repayment of moneys so borrowed.

(b) The total sums expended and received by the corporation in connection with the purposes of this section in each year including interest and any sums carried to a sinking fund shall be separately shown in the abstract of accounts of the Corporation for that year.

(6) If any person wilfully injures or suffers to be injured any heating fittings belonging to the corporation he shall be liable to a penalty not exceeding five pounds and the corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender and if the amount does not exceed twenty pounds summarily as a civil debt.

261.—(1) The corporation may from time to time prescribe Heating a scale of charges (in this Part of this Act referred to as "heating charges. charges") for heat supplied to premises under the powers of this Part of this Act and for connecting premises to the heating undertaking and (where premises have been disconnected from the said undertaking) for reconnecting premises thereto and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed with the corporation to pay the same in which case they shall be payable by the owner.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the corporation

PART XII
—cont.

either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt and subject as hereinafter provided where a person fails to pay within seven days after a demand therefor any heating charges payable by him in respect of any premises the corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the heating charges:

Provided that if before the expiration of the said seven days notice is given to them that there is a dispute as to the amount due in respect of the heating charges or as to the liability to pay the same the corporation shall not cut off the supply of heat until the dispute has on the application of either party been determined by a court of competent jurisdiction.

(3) Without prejudice to any other method of recovery any heating charges payable by the tenant of any premises belonging to the corporation and connected as aforesaid may be recovered as rent due from him.

Security for
payment of
accounts.

262. The corporation may require any person desiring to take a supply of heat or to be supplied with heating fittings or materials under this Part of this Act to deposit with the corporation such sum as the corporation may reasonably require as security for the payment of any moneys which may become due from him to the corporation in respect of such supply of heat or of any fittings or materials supplied to him in connection therewith.

Power to enter
premises.

263.—(1) Subject to the provisions of this section any authorised officer of the corporation shall on producing if so required some duly authenticated document showing his authority have a right to enter at all reasonable hours any premises to which the corporation are supplying or have agreed to supply heat under the powers of this Part of this Act or any premises upon which any heating fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid for the purpose of—

- (a) inspecting and examining any heating fittings whether belonging to the corporation or not ;
- (b) ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act or of any byelaws made thereunder ;
- (c) ascertaining whether or not circumstances exist which would authorise the corporation to take any action or execute any work under this Part of this Act ;

- (d) taking any action or executing any work authorised or required by this Part of this Act to be taken or executed by the corporation :

PART XII
—cont.

Provided that—

- (a) except in cases of emergency arising from defects in any heating fittings admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier ;
- (b) nothing in this section shall authorise any authorised officer of the corporation without the previous consent in writing of the electricity authority to enter any premises occupied or used by the electricity authority in connection with the generation or supply of electricity other than offices and showrooms ;
- (c) nothing in this section shall authorise any authorised officer of the corporation without the previous consent of the commission to enter any premises (other than offices hotels or houses) occupied or used by the commission in connection with their undertaking ;
- (d) nothing in this section shall authorise any authorised officer of the corporation without the previous consent in writing of the area board to enter any premises occupied or used by the area board in connection with the manufacture storage or supply of gas or the supply of electricity other than offices and showrooms.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing that—

- (a) admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry ; and
- (b) there is reasonable ground for entry into the premises for any such purpose as aforesaid ;

the justice may by warrant under his hand authorise the corporation by any authorised officer to enter the premises if need be by force :

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer of the corporation entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary

PART XII
—cont.

and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) If any person who in compliance with the provisions of this section or of a warrant issued thereunder is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a penalty not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

Interference
with
apparatus etc.

264.—(1) If any person wilfully and without the consent of the corporation turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the corporation and thereby improperly causes the supply of heat to be interfered with he shall be liable to a penalty not exceeding five pounds and (whether proceedings be taken against him in respect of his offence or not) the corporation may recover from him the amount of any damage sustained by them either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt.

(2) If any person wrongfully takes uses or diverts any heat from any apparatus provided for the purposes of this Part of this Act he shall (without prejudice to any other right or remedy of the corporation) be liable to a penalty not exceeding five pounds.

Byelaws for
protection of
heating
undertaking.

265.—(1) The corporation may make byelaws for preventing the waste misuse undue consumption or contamination of or interference with the circulation of hot water or steam used by them in connection with the supply and use of heat under this Part of this Act or for preventing the waste misuse or undue consumption of heat supplied under this Part of this Act.

(2) Byelaws under this section may include provisions—

(a) prescribing the size nature materials strength and workmanship and the mode of arrangement connection disconnection insulation alteration and repair of the heating fittings to be used ; and

(b) forbidding the use of any heating fittings which are of such a nature or are so arranged or connected as to cause or permit or be likely to cause or permit—

(i) waste misuse undue consumption or contamination of or interference with the circulation of hot water or steam ;

(ii) reverberation in pipes ; or

(iii) waste misuse or undue consumption of heat.

(3) If any person contravenes the provisions of any byelaw made under this section the corporation may without prejudice to their right to take proceedings for a penalty in respect of such contravention cause any heating fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered repaired or replaced and may recover the expenses reasonably incurred by them in so doing from the person in default either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt.

(4) Nothing in this section or in any byelaw made thereunder shall apply to any heating fittings used on premises which belong to the commission and are held or used by them for the purposes of their railways so long as those fittings are not of such a nature or so arranged or connected as to cause or permit or be likely to cause or permit—

- (a) waste misuse undue consumption or contamination of or interference with the circulation of hot water or steam ;
- (b) reverberation in pipes ; or
- (c) waste misuse or undue consumption of heat :

Provided that the exemption conferred by this subsection shall not extend to heating fittings used in hotels or dwelling-houses or in offices not forming part of a railway station.

(5) Nothing in this section or in any byelaw made thereunder shall apply to any electricity generating station belonging to the electricity authority.

266. The corporation may if they think fit make an allowance by way of discount on all sums of money due to them for the supply of heat from any person who pays the same within such time of the demand thereof as the corporation think fit to prescribe in that behalf and notice to that effect shall (if and so long as the corporation shall allow such discount) be endorsed on every demand note in respect of such charges : Discount for prompt payment.

Provided that the corporation shall make the same allowance to all persons under similar conditions.

267.—(1) If the occupier of any premises supplied with heat by the corporation quits the premises without giving notice of his intention so to do to the corporation in manner provided by this section he shall be liable to pay to the corporation all money accruing due for heat supplied by them to the premises and for meter rent up to the next date on which the register of the meter on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the corporation to supply heat to the premises whichever first occurs. Notice to be given before quitting premises supplied with heat.

PART XII
—cont.

(2) The notice to be given under this section by any occupier of premises shall be given in writing and sent by registered post or otherwise delivered to the corporation at the town hall so that it is received by the corporation at least twenty-four hours before he quits the premises.

(3) The foregoing provisions of this section or a statement of the effect thereof shall be endorsed upon every demand note for heating charges payable to the corporation.

Application of
Special Roads
Act 1949 to
heating
undertaking.
12 13 & 14
Geo. 6. c. 32.

268. For the purposes of section 4 of the Special Roads Act 1949 the corporation in relation to the powers conferred upon them by this Part of this Act shall be deemed to be statutory undertakers.

Separate
accounts.

269.—(1) The corporation shall keep separate accounts of the heating undertaking so as to include all items which ought to be entered therein in order to show the financial position of the undertaking and so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all income in respect of the undertaking and on the other side all expenditure in respect of the undertaking such expenditure being divided so as also to show the amounts expended in respect of each of the following purposes (that is to say):—

- (a) the working and establishment expenses and costs of maintenance of the undertaking;
- (b) the interest on moneys borrowed by the corporation for the purposes of or in connection with the undertaking;
- (c) the requisite appropriations and instalments or sinking fund payments in respect of the repayment of moneys borrowed for the purposes of or in connection with the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the corporation are authorised to maintain.

(2) The corporation shall apportion between the account to be kept by them under this section and any other accounts of the corporation any receipts credits payments and liabilities which from time to time ought to be so apportioned.

Reports etc.
with respect to
heating
undertaking
etc.

270.—(1) The corporation shall give to the electricity authority and the electricity board and the gas board such reports and returns and such information with respect to the heating undertaking as the electricity authority or the electricity board or the

gas board may reasonably require and the electricity authority and the gas board shall give to the corporation such reports and returns and such information with respect to any supply by them of heat as the corporation may reasonably require.

PART XII
—cont.

(2) Any dispute between the corporation on the one hand and the electricity authority or the electricity board or the gas board on the other hand as to whether any reports returns or information are reasonably required by the electricity authority or the electricity board or the gas board or the corporation (as the case may be) shall be determined by the Minister of Fuel and Power.

271. Nothing in this Part of this Act shall exonerate the corporation from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

Corporation
not to be
exempted from
proceedings
for nuisance.

272.—(1) In any case in which—

Modification
of section 26
of Act of 1950.

- (i) the corporation are the operating undertakers within the meaning of section 26 of the Act of 1950 in respect of undertakers' works authorised by this Part of this Act or are the owning undertakers within the meaning of that section in respect of apparatus laid down under the powers of this Part of this Act ; and
- (ii) either the electricity authority the electricity board or the gas board are the owning undertakers or (as the case may be) the operating undertakers ;

the said section 26 shall be modified as follows :—

- (a) the notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans sections and particulars of the works ;
- (b) the said notice shall be given not less than seven days before the works are commenced ;
- (c) any question which may arise under the said section as modified by this section between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the Act of 1950 and the proviso to subsection (2) of that section shall not apply.

(2) In this section any expressions to which meanings are assigned by the Act of 1950 have the same respective meanings.

PART XIII

GENERAL

Protection of
Council and
their officers
from personal
liability.

273.—(1) No matter or thing done and no contract entered into by the Council and no matter or thing done by any member of the Council or by any officer of the Council or other person whomsoever acting under the direction of the Council shall if the matter or thing were done or the contract were entered into bona fide for the purpose of carrying out any powers or duties of the Council subject any member or officer of the Council or other person as aforesaid personally to any action liability claim or demand whatsoever and any expense incurred by the Council or any such member officer or other person acting as aforesaid shall be borne and repaid out of the county fund :

Provided that nothing in this section shall exempt any member of the Council from liability to be surcharged with the amount of any payment which may be disallowed by the auditor in the accounts of the Council and which such member authorised or joined in authorising.

(2) The provisions of section 265 of the Public Health Act 1875 affording protection to local authorities and their officers from personal liability shall enure for the benefit of any member of any local authority and any officer of such authority or other person acting under the direction of such authority in relation to the execution by such local authority officer or person of the provisions of any local enactment.

In executing
works for
owner Council
liable for
negligence
only.

274. Whenever the Council or any of their officers under any enactment execute re-execute or alter any work or do any act or thing in default of the owner occupier or other person required to execute re-execute or alter such work or do such act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on their part or the part of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Breach of
conditions
of consent.

275. Where in pursuance of any enactment the Council or a local authority give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of

the work or the doing of the act or thing without the required consent and the provisions of this section shall mutatis mutandis apply to conditions imposed by any highway authority under any provision of this Act.

PART XIII
—cont.

276. Proceedings in respect of an offence created by or under this Act (except Part VIII (Weights and measures) thereof) shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council.

Restriction on right to prosecute.

277. Where under the provisions of any enactment the Council shall execute any works of common benefit to two or more buildings belonging to different owners the expenses which under those enactments or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the Council or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

278. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages and charges to be settled by court.

279. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Compensation how to be determined.

280. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister except that in the case of byelaws made under the sections mentioned in the first column of the following table the confirming authority shall be the authority respectively mentioned in the second column of that table:—

Confirming authority for byelaws.

70. (Boating pools)	Secretary of State.
76. (Byelaws as to pleasure fairs and roller-skating rinks)	Secretary of State.
148. (Byelaws as to sale etc. of certain articles for animal feeding purposes)	Minister of Food.
164. (Byelaws as to establishments for massage etc.)	Secretary of State.
177. (Byelaws relating to wood fuel)	Board of Trade.
181. (Personal weighing machines)	Board of Trade.
236. (Golf courses)	Secretary of State.

PART XIII
—cont.
Appeals.

281.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Council or highway authority against which a right of appeal is conferred by this Act—

(a) involves the execution of any work or the taking of any action ; or

(b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

(i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council or highway authority themselves execute the work or take the action ; and

(ii) that person may carry on that business and use those premises for that purpose.

Inquiries by
Ministers.

282. The Minister the Minister of Transport the Minister of Fuel and Power or the Minister of Civil Aviation may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Application of
provisions of
Act of 1936.

283.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto and as if the expression “local authority” included the Council and any local authority :—

Section 271 (Interpretation of “provide”) ;

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers) ;

Section 276 (Power of local authority to sell certain materials) ;

Section 277 (Power of councils to require information as to ownership of premises) ;

Section 283 (Notices to be in writing ; forms of notices &c.) ;

- Section 284 (Authentication of documents) ;
Section 285 (Service of notices &c.) ;
Section 287 (Power to enter premises) ;
Section 288 (Penalty for obstructing execution of Act) ;
Section 289 (Power to require occupier to permit works to be executed by owner) ;
Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments) ;
Section 293 (Recovery of expenses &c.)
Section 294 (Limitation of liability of certain owners) ;
Section 295 (Power of local authority to grant charging orders) ;
Section 296 (Summary proceedings for offences) ;
Section 297 (Continuing offences and penalties) ;
Section 299 (Inclusion of several sums in one complaint &c.) ;
Section 304 (Judges and justices not to be disqualified by liability to rates) ;
Section 328 (Powers of Act to be cumulative) ;
Section 329 (Savings for certain provisions of the Land Charges Act 1925):

Provided that—

- (a) the said sections 277 287 288 289 291 294 295 and 329 shall only apply to the provisions contained in Part III (Highways) Part IV (Open spaces camps and pleasure grounds) and Part VI (Public health) of this Act ;
(b) the said section 293 shall not apply to the provisions contained in Part XII (Supply of heat by borough councils) or to the sections of this Act hereinafter referred to (namely):—

- Section 156 (Medicated and other baths) ;
Section 188 (Power to charge for use of weigh-bridge testing unit) ;
Section 235 (Collection and delivery of washing) ;
Section 241 (As to hire of floral decorations) ; and
Section 245 (Power to Mansfield Corporation to make and supply ice).

(2) Section 284 of the Act of 1936 shall extend and apply in relation to any enactment for the time being in force in the county or in any district as if that section were enacted in that enactment and in terms made applicable thereto.

PART XIII
—cont.

Power to
charge in
respect of
establishment
expenses.

284. Whenever under any public general Act from time to time in force in the county (other than the Act of 1936) or under any local enactment the Council on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Council may include in and recover as part of such cost such additional sum not exceeding five per centum of the cost of the works as they think fit in respect of their establishment charges.

Application of
Arbitration
Acts.

14 Geo. 6. c. 27.

285. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) the reference shall be subject to the provisions of the Arbitration Act 1950 and unless other provision is made or it is otherwise agreed the arbitrator shall be appointed by the Minister.

Saving for
trusts etc.

286. No power conferred upon a local authority by section 18 (Development of land) section 69 (Power to let parks etc. for games) section 70 (Boating pools) section 71 (Parking places in parks etc.) section 236 (Golf courses) and section 238 (Transmission of entertainments) of this Act shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the local authority without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person ; or
- (b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by or granted to the local authority without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

Application
of certain
provisions of
Part XIII
to local
authorities.

287.—(1) The provisions of this Part of this Act hereinafter mentioned shall extend to the local authorities and those provisions shall accordingly have effect with any necessary modifications including the substitution of—

- (a) “ local authority ” for “ Council ” ; and
- (b) “ district of the local authority ” for “ county ”.

(2) The provisions hereinbefore referred to are the following:—

Section 274 (In executing works for owner Council liable for negligence only);

- Section 276 (Restriction on right to prosecute) ;
Section 277 (Apportionment of expenses in case of joint owners) ;
Section 281 (Appeals) ;
Section 284 (Power to charge in respect of establishment expenses).

288.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of a local authority subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The local authority shall cause to be published in a local newspaper circulating in the district notice—

- (a) of the passing of any such resolution and of the date fixed thereby ; and
- (b) of the general effect of the provisions of this Act coming into operation as from that date ;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) A copy of—

- (a) any such newspaper containing any such notice ; or
- (b) a photostatic or other reproduction certified by the clerk to the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing or registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business or using any premises for that purpose ; and
- (b) had before that day duly applied for the licence or registration required by that provision ;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 281 (Appeals) of this Act.

PART XIII
—cont.

Saving for
powers of
Treasury.
8 & 9 Geo. 6.
c. 18.
9 & 10 Geo. 6.
c. 58.

Saving for
town and
country
planning.

For protection
of area
boards.

289. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

290. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

291. For the protection of the area boards the following provisions shall unless otherwise agreed in writing between the appropriate authority and the area board concerned apply and have effect:—

(1) In this section—

“apparatus” means—

(a) in relation to the gas board mains pipes or other apparatus belonging to such board;

(b) in relation to the East Midlands Electricity Board or the Yorkshire Electricity Board all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to such board;

and includes any structures constructed for the lodging therein of apparatus;

“appropriate authority” means the Council the standing joint committee the highway authority or the local authority as the case may be;

“area board” means in relation to any apparatus the area board to whom such apparatus belongs;

“in” in a context referring to apparatus includes under over across along or upon;

(2) Subject to the provisions of section 66 (Application of Act of 1950 to certain provisions) of this Act whenever the appropriate authority in the exercise of the powers of section 29 (Adjustment of boundaries of county roads) and section 64 (As to exercise of certain provisions of Part III of Act with respect to certain roads) of this Act shall give up land forming part of a road in exchange for other land and there is in such first-mentioned land any apparatus the appropriate authority shall give notice in writing to the area board of such exchange with a plan showing the position and

dimensions of the portion of the road so exchanged and the area board shall notwithstanding any agreement entered into under the said section continue to have the same powers and rights in respect of any apparatus remaining in the land previously forming the site of the road as if such land had continued to be part of the road or the area board may and (if reasonably so required by the appropriate authority) shall alter the position of such apparatus to such other position in the road as altered under the said powers as may be reasonable:

- (3) Subject to the provisions of section 66 (Application of Act of 1950 to certain provisions) of this Act whenever by virtue of the provisions of section 32 (Stopping up and diversion of highways) of this Act any highway or part of a highway in which any apparatus is situate is stopped up or diverted the area board shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of any apparatus remaining in the highway or part of a highway so stopped up or diverted as if it had remained a highway or may and if reasonably so required by the appropriate authority shall—

(i) remove the apparatus and re-lay or replace it in the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or in such other position as the area board may reasonably determine; or

(ii) provide and lay or place other apparatus in such substituted highway or in such other position as aforesaid in lieu of such existing apparatus:

- (4) If so requested by the appropriate authority an area board shall not commence any works authorised by section 50 (Means of access to buildings) of this Act until such time (not being later than the date of the commencement of the construction of the means of communication) as may be specified by the appropriate authority in such request:
- (5) For the purposes of section 20 (Prohibition of building until street defined) of this Act land shall not be deemed to be occupied in connection with a building by reason only of the existence of apparatus in such land:
- (6) Nothing in section 21 (Prohibition of building until street formed and sewered) of this Act shall prevent an area board before a new street is constructed or sewered in accordance with street byelaws from beginning to erect

PART XIII
—cont.

or proceeding with the erection for the purposes of their undertaking of a pressure governor house or an electricity sub-station feeder pillar or transformer kiosk abutting on such new street :

- (7) Nothing in section 30 (Enforcement of improvement line) of this Act shall apply to any building or structure used for the manufacture or storage of gas permission for the construction or extension of which by an area board is granted or deemed to be granted in accordance with the provisions of the Act of 1947 :
- (8) The appropriate authority shall not pursuant to section 44 (Pavement lights and ventilators) of this Act consent to the provision of any means for the admission of light or air through a pavement if such provision may cause any damage to or obstruct or render unreasonably inconvenient the access to any apparatus :
- (9) In exercise of the powers of section 135 (Silencers for internal combustion engines) of this Act in relation to any premises occupied or used by an area board in connection with the manufacture storage or supply of gas or electricity (as the case may be) an authorised officer of the appropriate authority shall observe any precautions reasonably required by the area board in the interests of safety and for preventing interference with the supply of gas or electricity :
- (10) Nothing in the following sections of this Act:—
Section 152 (For preventing obstruction to streams by culverts etc.) ;
Section 153 (Cleansing of rivers and streams) ;
Section 154 (Entry for purposes of last two preceding sections) ;
shall authorise the appropriate authority to execute any works in under over across along or upon any operational lands within the meaning of the Act of 1947 of the gas board without the consent of the gas board but such consent shall not be unreasonably withheld and any question whether such consent is unreasonably withheld shall be determined by arbitration :
- (11) The appropriate authority shall so exercise the powers of the following sections of this Act as not to cause any damage to or to obstruct or render unreasonably inconvenient the access to any apparatus:—
Section 25 (Trees grass verges and gardens) ;
Section 36 (Shelters etc. for passengers on public service vehicles) ;

Section 43 (Barriers in streets) ;

Section 88 (Police telephone call boxes and
shelters) ;

Section 185 (Power to erect weighbridges) ;

Section 238 (Transmission of entertainments) ;

(12) (a) Any difference which may arise between the appropriate authority and an area board under this section shall be referred to and determined by a single arbitrator to be agreed upon between the parties or in default of such agreement appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1950 shall apply to any such arbitration ;

(b) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the area board may be under in respect of any apparatus and may if he thinks fit require the appropriate authority to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

292. The provisions contained in Part I (Mansfield) Part II (Worksop) and Part III (West Bridgford) of the Fifth Schedule to this Act shall apply to and in respect of the boroughs and urban district therein referred to respectively.

Provisions
applicable to
boroughs of
Mansfield and
Worksop and urban
district of West
Bridgford.

293. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

Costs of Act.

SCHEDULES

FIRST SCHEDULE

PART I

SECTIONS OF THIS ACT WHICH MAY BE ADOPTED BY A RURAL DISTRICT
COUNCIL IN RESPECT OF THEIR DISTRICT OR A PART THEREOF

Part	Section and marginal note		
Part II (Lands)	Section 8	(Extension of power to acquire land by agreement).	
	Section 9	(Power to reinstate owners or occupiers of property).	
	Section 10	(Retention and disposal of land).	
	Section 11	(Proceeds of disposal of surplus land).	
	Section 14	(Compensation may be in land).	
	Section 15	(Application of Lands Clauses Acts to purchases by agreement).	
	Section 17	(Loans for erection etc. of buildings).	
Part III (Highways)	Section 18	(Development of land).	
	Section 20	(Prohibition of building until street defined).	
	Section 21	(Prohibition of building until street formed and sewered).	
	Section 22	(Termination of new streets).	
	Section 23	(Rounding or splaying off corners at street junctions).	
	Section 24	(Adjustment of boundaries of estates in connection with streets).	
	Section 33	(Maintenance of forecourts to which public have access).	
	Section 34	(Forecourts injurious to amenities of street).	
	Section 39	(Direction signs).	
	Section 40	(Illumination of street names etc.).	
	Section 41	(Attachment of street lamps brackets etc.).	
	Section 42	(Awnings over footways).	
	Section 43	(Barriers in streets).	
	Section 44	(Pavement lights and ventilators).	
Part IV (Open spaces camps and pleasure grounds)	Section 46	(Application of building line to walls etc.).	
	Section 47	(Retaining walls).	
	Section 49	(Restriction on buildings under footways).	
	Section 50	(Means of access to buildings).	
	Section 52	(Urgent repairs of private streets).	
	Section 70	(Boating pools).	
	Section 71	(Parking places in parks etc.).	
	Section 72	(Court may prohibit movable dwellings in certain areas).	
	Section 73	(Byelaws as to camping grounds).	
	Section 74	(Saving from last two preceding sections).	
Part VI (Public health)	Section 99	(Recovery of cost of maintaining public sewers).	
	Section 100	(Separate sewers for foul water and surface water).	

Part	Section and marginal note
Part VI (Public health)—cont.	Section 101 (Delegation of power to examine and test drains etc.).
	Section 102 (Summary power to remedy stopped-up drains etc.).
	Section 103 (Power to repair drains and private sewers).
	Section 104 (Abandoned drains to be cut off).
	Section 105 (Power to cleanse drains etc.).
	Section 106 (Demolition of buildings).
	Section 108 (Penalty for damage to surface water drains).
	Section 109 (Penalty for improper construction or repair of water-closet etc.).
	Section 110 (Closet accommodation for separate dwellings).
	Section 111 (Sanitary conveniences for persons employed on construction work).
	Section 112 (Loan of temporary sanitary conveniences).
	Section 113 (Tipping of spoil and refuse).
	Section 114 (Cost of provision maintenance and renewal of dustbins).
	Section 115 (Cleansing of filthy or verminous premises).
	Section 116 (Power to require vacation of premises during fumigation).
	Section 117 (Prohibition of sale of verminous articles).
	Section 118 (Ruinous and dilapidated buildings and neglected sites).
	Section 119 (As to defective houses).
	Section 120 (Height of new chimneys).
	Section 121 (New building overreaching adjoining chimneys).
	Section 122 (Power to order alteration of domestic chimneys).
	Section 123 (Cellars and rooms below subsoil water level).
	Section 124 (Food storage accommodation).
	Section 125 (Provision of bathrooms).
	Section 126 (Separate approach for separate tenements).
	Section 127 (Extension of powers under section 9 of Housing Act 1936).
	Section 128 (Further provisions as to means of escape from fire in case of certain buildings).
	Section 129 (Further provision for public and other buildings).
	Section 130 (Provisions as to tents vans etc).
	Section 131 (Powers to use ladders etc. for entry or inspection).
	Section 133 (Byelaws for lighting staircases).
	Section 134 (Discharge of steam and waste gas).
	Section 135 (Silencers for internal combustion engines).
	Section 136 (Noise nuisance).
	Section 137 (Lighting ventilation and sanitation of stables).
	Section 139 (Discontinuance of offensive trade).
	Section 140 (Information to be furnished by occupier in case of notifiable disease).
	Section 141 (Restriction on attendance at schools places of assembly etc.).

1ST SCH.
—cont.

Part	Section and marginal note
Part VI (Public health)—cont.	Section 142 (Exclusion of children from entertainments).
	Section 143 (Compensation for stopping employment to prevent spread of disease).
	Section 144 (Entry into premises in case of notifiable disease).
	Section 145 (Prohibition of tuberculous persons from handling food).
	Section 147 (Registration of hawkers of food and their premises).
	Section 148 (Byelaws as to sale etc. of certain articles for animal feeding purposes).
	Section 152 (For preventing obstruction to streams by culverts etc.).
	Section 153 (Cleansing of rivers and streams).
	Section 154 (Entry for purposes of last two preceding sections).
	Section 155 (Hairdressers and barbers).
	Section 156 (Medicated and other baths).
	Section 157 (False statements to obtain rent rebate etc.).

PART II

RESOLUTION OF ADOPTION

1. A resolution of adoption shall not be effective unless passed by a majority of the whole number of the members of the rural district council (hereinafter in this schedule referred to as "the rural council") at a meeting thereof.

2. One month at least before the meeting of the rural council special notice of the meeting and of the intention to propose the resolution shall be given to every member of the rural council and such notice shall also be inserted once at least in one or more of the newspapers circulating within the district in each of two successive weeks.

3. A resolution of adoption after being passed shall be published by advertisement in some one or more newspapers circulating within the district and may also be published otherwise in such manner as the rural council think sufficient for giving notice thereof to all persons interested.

4. A copy of the resolution of adoption shall be sent to the Minister and to the Minister of Food.

5. The resolution of adoption shall come into operation at such time not being less than one month after the first publication of the advertisement as may be fixed by the rural council.

SECOND SCHEDULE

SECTIONS OF THIS ACT WHICH MAY BE APPLIED TO A RURAL DISTRICT COUNCIL BY ORDER OF THE MINISTER IN RESPECT OF THEIR DISTRICT OR A PART THEREOF

Part	Section and marginal note
Part VI (Public health)	Section 96 (Recovery of expenses of sewerage public highway).
	Section 97 (Recovery of expenses of sewerage prospective street).
	Section 98 (Prevention of evasion of liabilities under last two preceding sections).
	Section 132 (Safety of stands).
	Section 138 (Smoke from industrial furnaces).
	Section 146 (Inedible fat).
	Section 149 (Slaughter of animals otherwise than for human consumption).
	Section 150 (Animals slaughtered outside slaughter-houses).
	Section 151 (Acquisition of certain residuals etc. and disposal thereof).

THIRD SCHEDULE

APPORTIONMENT AND RECOVERY OF EXPENSES OF CONSTRUCTING SEWERS

1. The sum apportionable shall not exceed the sum certified by the surveyor to be at the relevant date the average cost per lineal yard of providing a public sewer having an internal diameter of nine inches in a private street in a district multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

2. The expenses incurred by the local authority not exceeding the sum so apportionable shall be apportioned by the local authority on the premises fronting adjoining or abutting on the street or part of the street in question according to the frontages of the respective premises as existing at the relevant date:

Provided that no sum shall be apportioned on any premises in contravention of any agreement between the local authority and the owner of the premises and any sum which but for this proviso would have been apportioned on any premises shall be deducted from the aggregate sum to be apportioned under this paragraph.

3. As soon as the apportionment has been made the local authority shall serve on the owners of the several premises affected notice of the sums respectively apportioned to them and the notice shall state the right of appeal conferred by the next following paragraph.

4. Any person aggrieved by an apportionment under this schedule may appeal to a court of summary jurisdiction and may on the appeal dispute the correctness of the surveyor's certificate as well as any other matter affecting the validity or correctness of the apportionment.

3RD SCH.
—cont.

5. If the court finds on any such appeal that the aggregate sum apportioned is excessive or that the apportionment thereof is erroneous the court—

- (a) shall order the local authority to revise not only the sum apportioned to the appellant but also the sums apportioned to the owners of the other premises affected and to submit the revised apportionment to the court for approval; and
- (b) may if satisfied that the owners of all premises affected have had due notice of the proceedings and an opportunity of being heard approve any such revised apportionment either without amendment or with such amendments as they think just.

6. Whenever a new building requiring foul water drainage is erected after the relevant date on any premises on which a sum has been or is thereafter apportioned under this schedule that sum shall be recoverable by the local authority subject to and in accordance with the following provisions:—

- (a) The said sum shall be recoverable to an extent proportionate to the frontage on the street or part of the street of the site of the new building and the land occupied therewith:

Provided that where a sum has become payable under sub-paragraph (c) of this paragraph in respect of the frontage of the site of a new building and land occupied therewith no further sum shall be recoverable in respect of the same length of frontage or any part thereof by reason of the erection of another new building on that site or that land;

- (b) At any time after whichever of the following events last occurs (that is to say):—

- (i) the erection of the new building; or

- (ii) the expiration of the time for appealing against the apportionment or if an appeal is brought within that time the final determination of the appeal;

the local authority may serve on the owner for the time being of the new building a demand for payment of the amount recoverable together with interest thereon from the date of the demand:

Provided that where the drains of the new building are at the time of its erection made to communicate with a sewer other than the sewer the expenses of the construction of which are apportioned no such demand shall be served in respect of the building unless and until the drains thereof are made to communicate with the last-mentioned sewer;

- (c) As from the date of the service of the said demand the amount recoverable together with interest thereon from that date until payment thereof shall be payable by the owner on whom the demand is served and shall be charged on the new building and the land occupied therewith and on all estates and interests therein;

- (d) The rate of interest chargeable under this paragraph shall be such rate as the local authority may determine not exceeding the maximum rate fixed by the Minister for the purpose of

section 291 of the Act of 1936 at the time when the said demand is served or if different maximum rates are then so fixed the highest of those rates.

3RD SCH.
—cont.

7.—(1) If any person from whom any sum becomes recoverable under the last preceding paragraph proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum is so recoverable the amount of that sum is disproportionate to the benefit accruing to the premises the local authority may remit such part of that sum as they may think just but in that event if another new building is subsequently erected on the said land the said paragraph shall apply to that other building as if the first-mentioned building had not been erected:

Provided that the amount recoverable in respect of that other building shall not exceed the amount remitted.

(2) Any person aggrieved by a decision of the local authority with respect to any such remission may appeal to a court of summary jurisdiction.

8.—(1) The sum apportioned on any premises under this schedule shall for the purposes of section 15 of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 be deemed to be a charge on the premises notwithstanding that it is not immediately recoverable.

(2) Where the whole or part of the sum so deemed to be a charge (hereinafter in this sub-paragraph referred to as “the provisional charge”) becomes actually charged on the whole or part of the premises under the foregoing provision of this schedule—

(a) within fourteen days the registration of the provisional charge under the said section 15 shall be cancelled and the actual charge shall be registered under that section as from the date on which the provisional charge was registered;

(b) where a part only of the said sum has become actually charged on a part of the premises the remainder of that sum shall be deemed to be a charge on the remainder of the premises notwithstanding that it is not immediately recoverable and shall be registered accordingly within the said fourteen days under the said section as from the said date and the foregoing provisions of this sub-paragraph shall apply thereto accordingly.

9. For the purposes of this schedule—

(a) a building shall be deemed to be a new building erected after the relevant date unless its erection was completed before that date;

(b) the following alterations and extensions shall be deemed to be the erection of a new building (that is to say):—

(i) the re-erection wholly or partially of any building of which an outer wall is pulled down (otherwise than in consequence of fire or other accident) either completely or to such a distance that the part of that wall remaining is less than half the previous height of the building (the height being measured from ground level to the highest point of the building);

3RD SCH.
—cont.

(ii) the conversion into a house of any building not originally constructed for human habitation;

(iii) the conversion of any premises into a factory shop or place of public resort;

(iv) any extension by reason whereof the area occupied by the site of the building will (with any previous extension made since the relevant date) be increased by an area of more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date;

(c) the expression “ the relevant date ” means—

(i) in relation to an apportionment under section 96 (Recovery of expenses of sewerage public highway) of this Act in pursuance of a resolution of the council of a local authority the date when the resolution became operative; and

(ii) in relation to an apportionment under section 97 (Recovery of expenses of sewerage prospective street) of this Act in respect of land becoming a street the date on which the street was laid out.

(d) the expression “ surveyor ” means the surveyor of the district.

FOURTH SCHEDULE

PROVISIONS AS TO BONDS

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than seven years as the issuing authority may determine.

2. (a) Bonds may be issued at such price and at such rates of interest as the issuing authority may from time to time determine Provided that bonds shall not be issued at a price lower than par except with the consent of the Minister.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the issuing authority.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the issuing authority on or before the date for repayment specified in the certificate issued in respect of the bond.

3. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the place and on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

4.—(1) The treasurer of the issuing authority shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars:—

(a) the name and address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;

(b) the date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

5.—(1) The issuing authority shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the issuing authority on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the issuing authority on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect:—

No.....

Date.....

.....per centum.....bond

repayable at par on the.....19.....

at.....

This is to certify that

of

is the registered holder of a bond for

pounds (£) issued by the

under the Nottinghamshire County Council Act 1951 at

The seal of the

was hereunto affixed in the presence of }

Clerk (Town Clerk).

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the issuing authority shall not prevent the holder of the bond from disposing of and transferring the bond.

4TH SCH.
—cont.

7.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect:—

FORM OF DEED OF TRANSFER

I

in consideration of the sum of
paid by
(hereinafter called “ the transferee ”) do hereby assign and
transfer to the transferee.....

To hold unto the transferee his executors administrators
and assigns subject to the several conditions on which I held
the same immediately before the execution hereof

And I the transferee do hereby agree to accept and take the said
.....subject to the conditions aforesaid.

As witness our hands and seals this day of
one thousand nine hundred and

(2) A bond may be transferred in whole or in part so however that
any part transferred shall not be for an amount other than an amount
for which a bond may be issued by the issuing authority.

(3) The deed of transfer shall be delivered to and retained by the
issuing authority and the issuing authority shall enter a note thereof
in a book to be called the “ Register of transfers of bonds ” and shall
endorse on the deed of transfer a notice of that entry.

(4) The issuing authority shall upon receipt of the deed of transfer
duly executed and properly stamped together with the certificate
issued in respect of the bond enter the name of the transferee in the
register and shall issue a new certificate or certificates to the transferee
or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered
to the issuing authority as aforesaid the issuing authority shall not be
affected by the transfer and the transferee shall not be entitled to
receive any payment of interest on the bond.

(6) The issuing authority before registering a transfer of a bond may
if they think fit require evidence by statutory declaration or otherwise
of the title of any person claiming to make the transfer.

8. The issuing authority may close the register for a period not
exceeding thirty days immediately before the date for the payment of
any interest on the bonds and notwithstanding the receipt by the
issuing authority during those periods of any deed of transfer the
payment of interest next falling due may be made to the persons
registered as holders of the bonds on the date of the closing of the
register.

9.—(1) Any person becoming entitled to a bond by reason of the
death or bankruptcy of a holder or by any lawful means other than a
transfer may by the production of such evidence of title as the issuing
authority may require either be registered as holder of the bond or
instead of being himself registered may make such transfer of the
bond as the holder could have made and the issuing authority shall
issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the issuing authority they shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10. The issuing authority before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

11.—(1) Unless the holder of a bond otherwise requests the issuing authority may pay the interest thereon by posting a warrant to the holder at his address as shown on the register.

(2) The posting by the issuing authority of an interest warrant addressed to a holder as aforesaid shall as respects the liability of the issuing authority be equivalent to the delivery of the warrant to the holder himself.

12. The production to the issuing authority of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the issuing authority as sufficient evidence of the grant.

FIFTH SCHEDULE

PART I

MANSFIELD

1. Notwithstanding the provisions of section 16 (Application of certain provisions of Part II to local authorities) of this Act the mayor aldermen and burgesses of the borough of Mansfield shall not exercise the powers contained in the following provisions of Part II of this Act:—

Section 8 (Extension of power to acquire land by agreement);

Section 10 (Retention and disposal of land).

2. The following sections of this Act shall have effect as if the expression “highway authority” or “local authority” did not include the mayor aldermen and burgesses of the borough of Mansfield:—

Section 30 (Enforcement of improvement line);

Section 69 (Power to let parks etc. for games);

Section 135 (Silencers for internal combustion engines);

5TH SCH.
—cont.

- Section 139 (Discontinuance of offensive trade);
 Section 212 (Consolidated loans fund of local authorities);
 Section 214 (Reserve fund of local authorities).

3. Section 134 (Discharge of steam and waste gas) of this Act shall not have effect within the borough of Mansfield.

1 Edw. 7.
c. xcvi.

4. Section 57 (Crossings over footways) of this Act shall in its application to the mayor aldermen and burgesses of the borough of Mansfield have effect as if in subsection (6) for the words "section 18 of the Public Health Acts Amendment Act 1907 shall if in force in a district cease to be in force therein and if not in force in a district shall not be declared to be in force therein" there were substituted the words "section 79 (Crossings for horses and vehicles) of the Mansfield Corporation Act 1901 shall cease to be in force in the borough of Mansfield" and as if for the words "such district" there were substituted the words "the said borough".

5. The provisions of section 217 (Application of general rate fund for certain purposes) of this Act shall not apply in respect of moneys received by the mayor aldermen and burgesses of the borough of Mansfield on account of the revenue of their water undertaking.

15 & 16 Geo. 5.
c. xcvi.

6. The following provisions of the Mansfield Corporation Act 1901 and the Mansfield Corporation Act 1925 are hereby repealed:—

The Mansfield Corporation Act 1901—

Section 70 (No building allowed until street defined laid out and kerbed);

The Mansfield Corporation Act 1925—

- Section 66 (Adjustment of boundaries);
 Section 76 (As to hoardings and similar structures);
 Section 78 (As to retaining walls);
 Section 183 (Power to grant gratuities in certain cases);
 Section 192 (Attachment of brackets and wires to buildings);
 Section 199 (In executing works for owner Corporation liable for negligence only);
 Section 200 (As to breach of conditions of consent of corporation);
 Section 202 (Apportionment of expenses in case of joint owners).

7. In the event of the sections of this Act mentioned in the first column of the following table coming into operation in the borough of Mansfield in pursuance of section 95 (Application of Part VI in urban districts) or section 288 (The appointed day) of this Act the corresponding sections of the Mansfield Corporation Act 1901 the

Mansfield Corporation Act 1905 or the Mansfield Corporation Act 1925 specified in relation thereto in the second column of that table shall thereupon be repealed:—

5TH SCH.
—cont.

5 Edw. 7.
c. ci.

1	2
Section of this Act	Corresponding section of Mansfield Corporation Act 1901
Section 100 (Separate sewers for foul water and surface water).	Section 81
Section 101 (Delegation of power to examine and test drains etc.).	Section 97
Section 143 (Compensation for stopping employment to prevent spread of disease).	Section 113
	Corresponding section of Mansfield Corporation Act 1905
Section 101 (Delegation of power to examine and test drains etc.).	Section 39
Section 120 (Height of new chimneys).	Section 29
Section 121 (New building overreaching adjoining chimneys).	Section 30
	Corresponding section of Mansfield Corporation Act 1925
Section 103 (Power to repair drains and private sewers).	Section 86
Section 115 (Cleansing of filthy or verminous premises).	Section 110
Section 118 (Ruinous and dilapidated buildings and neglected sites).	Section 74
Section 124 (Food storage accommodation).	Section 82
Section 132 (Safety of stands).	Section 83
Section 140 (Information to be furnished by occupier in case of notifiable disease).	Section 96

PART II

WORKSOP

1. Notwithstanding the provisions of section 16 (Application of certain provisions of Part II to local authorities) of this Act the mayor aldermen and burgesses of the borough of Worksop shall not exercise the powers contained in the following provisions of Part II of this Act:—

- Section 8 (Extension of power to acquire land by agreement);
- Section 9 (Power to reinstate owners or occupiers of property);
- Section 10 (Retention and disposal of land);
- Section 11 (Proceeds of disposal of surplus land).

5TH SCH.
—cont.

2. The following sections of this Act shall have effect as if the expression “highway authority” or “local authority” did not include the mayor aldermen and burgesses of the borough of Worksop:—

- Section 18 (Development of land);
- Section 30 (Enforcement of improvement line);
- Section 45 (Erection of structures at street corners);
- Section 102 (Summary power to remedy stopped-up drains etc.);
- Section 139 (Discontinuance of offensive trade);
- Section 213 (General insurance fund of local authorities);
- Section 214 (Reserve fund of local authorities);
- Section 216 (Power to local authorities to issue bonds);
- Section 217 (Application of general rate fund for certain purposes).

23 & 24 Geo. 5.
c. xliii.

3. Section 196 (Renewal and repairs fund) of the Worksop Corporation Act 1933 shall cease to have effect and any fund formed under that section shall be deemed to have been established under section 211 (Renewal and repairs fund of local authorities) of this Act.

22 & 23 Geo. 5.
c. vi.

4. Section 3 (Audit of accounts) of the Worksop Corporation Act 1932 shall have effect as if subsection (3) were omitted therefrom.

5. The following provisions of the Worksop Corporation Act 1933 are hereby repealed:—

- Section 61 (Adjustment of boundaries of streets);
- Section 62 (Adjustment of boundaries of estates);
- Section 64 (Rounding off of corners at street junctions);
- Section 67 (As to termination of new streets);
- Section 71 (As to pavement lights);
- Section 73 (Power to determine width of carriageways and footways);
- Section 75 (Direction signs);
- Section 80 (As to urgent repairs of private streets);
- Section 81 (Planting of trees in private streets);
- Section 86 (As to erection of retaining walls);
- Section 104 (No building allowed until street defined);
- Section 105 (Attachment of lighting brackets and wires to buildings);
- Section 182 (Consolidated loans fund);
- Section 188 (Closing of registers);
- Section 200 (Recovery of rates from persons removing);

- Section 202 (Power to Corporation to advance money for erection of buildings);
 Section 205 (Power to erect weighbridges);
 Section 206 (Corporation may provide automatic weighing machines);
 Section 218 (Compensation for injuring lamps &c.).

5TH SCH.
—cont.

6. The provisions of Part VIII (Sale of coke) of the Worksop Corporation Act 1933 are hereby repealed as from the first day of January one thousand nine hundred and fifty-two.

7. (a) In the event of the sections of this Act mentioned in the first column of the following table coming into operation in the borough of Worksop in pursuance of section 95 (Application of Part VI in urban districts) or section 288 (The appointed day) of this Act the corresponding sections of the Worksop Corporation Act 1933 specified in relation thereto in the second column of that table shall thereupon be repealed:—

1	2
Section of this Act	Corresponding section of Worksop Corporation Act 1933
Section 100 (Separate sewers for foul water and surface water).	Section 114
Section 103 (Power to repair drains and private sewers).	Section 113
Section 109 (Penalty for improper construction or repair of water-closet etc.).	Section 111
Section 113 (Tipping of spoil and refuse).	Section 149
Section 120 (Height of new chimneys).	Section 98
Section 121 (New building overreaching adjoining chimneys).	Section 89
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Section 149 (Slaughter of animals otherwise than for human consumption).	Section 153

(b) All byelaws made under section 149 of the said Act of 1933 and in force immediately before the coming into operation of section 113 (Tipping of spoil and refuse) of this Act shall continue in force in like manner and to the like extent as if the said section 149 had not been repealed.

5TH SCH.
—cont.

PART III

WEST BRIDGFORD

1. Notwithstanding the provisions of section 16 (Application of certain provisions of Part II to local authorities) of this Act the urban district council of West Bridgford shall not exercise the powers contained in section 10 (Retention and disposal of land) of this Act.

17 & 18 Geo. 5.
c. xxiv.

2. Section 16 (As to urgent repairs of private streets) of the West Bridgford Urban District Council Act 1927 is hereby repealed.

3 & 4 Geo. 5.
c. lviii.

3. In the event of the sections of this Act mentioned in the first column of the following table coming into operation in the urban district of West Bridgford in pursuance of section 95 (Application of Part VI in urban districts) of this Act the corresponding sections of the West Bridgford Urban District Council Act 1913 or the West Bridgford Urban District Council Act 1927 specified in relation thereto in the second column of that table shall thereupon be repealed:—

1	2
Section of this Act	Corresponding section of West Bridgford Urban District Council Act 1913
Section 100 (Separate sewers for foul water and surface water).	Section 22
Section 109 (Penalty for improper construc- tion or repair of water-closet etc.).	Section 29
	Corresponding section of West Bridgford Urban District Council Act 1927
Section 124 (Food storage accommodation).	Section 18

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